

THE TRAGEDY  
OF FORTINBRASS  
IN MY END IS  
MY BEGINNING





THE GRAGEDY  
OF FOTHERINGHY  
IN MY ENDS IS  
MY BEGINNING



## **The Project Gutenberg eBook of The Tragedy of Fotheringay**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Tragedy of Fotheringay

Author: Mary Monica Maxwell-Scott

Contributor: Dominique Bourgoing

Release date: June 10, 2017 [eBook #54884]

Most recently updated: October 23, 2024

Language: English

Other information and formats: [www.gutenberg.org/ebooks/54884](http://www.gutenberg.org/ebooks/54884)

Credits: Produced by MWS, Linda Cantoni, and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/Canadian Libraries)

\*\*\* START OF THE PROJECT GUTENBERG EBOOK THE TRAGEDY  
OF FOTHERINGAY \*\*\*

*Transcriber's Note*

Obvious printer errors have been corrected without note; inconsistent and archaic spellings in quoted material have been retained as they appear in the original.

# **The Tragedy of Fotheringay**

## **[CONTENTS](#)**





Walker &amp; Boutall, Ph. Sc.

*Mary Queen of Scots,  
from the Memorial Portrait*

*in the possession of the Trustees of Blairs College, Aberdeen.*

[Enlarge](#)

**The**  
**Tragedy of Fotheringay**

FOUNDED ON  
THE JOURNAL OF D. BOURGOING,  
PHYSICIAN TO MARY QUEEN OF  
SCOTS, AND  
ON UNPUBLISHED MS. DOCUMENTS

BY THE  
HON. MRS. MAXWELL SCOTT  
OF ABBOTSFORD

LONDON  
ADAM & CHARLES BLACK  
1895

---

## PREFACE

IN compiling this book, my original intention was to deal with the material afforded by Bourgoing's Journal, supplemented by the Letters of Sir Amyas Paulet. Both narrate the events of the last few months of Queen Mary's prison life, the details of which have been hitherto little known. As time went on, however, and further new and valuable matter was offered to me by the kindness of friends, the scope of the work gradually expanded. Many details regarding the Queen's execution and burial have been added, and I feel that some apology is due for possible repetitions and other errors of style which almost necessarily follow such a change of plan. Many of the illustrative notes regarding Queen Mary's last moments are culled from original contemporary accounts of the execution, for the use of which I am indebted to the kindness of the Rev. Joseph Stevenson, S.J., LL.D. Some of these narratives are printed in the [Appendix](#) in their entirety. The valuable collection of the Calthorpe MSS. has furnished many interesting details, and I am especially indebted to the courtesy of the present Lord Calthorpe for permission to publish the two curious contemporary drawings of the [trial](#) and [execution](#). The value of these drawings is materially increased by the annotations in Beale's handwriting. To him we owe several of the most interesting notes regarding the execution, etc., and the knowledge that these MSS. have come down to us under the direct guardianship of Beale's descendants lends additional value to their testimony.

Robert Beale, whose name occurs so frequently in my narrative, had long been employed in a subordinate position by Elizabeth's Government, and in 1576 was sent by the Privy Council on an embassy to the Prince of Orange. He was later appointed Clerk of Council to the Queen, the office in which he comes before us at the time of Queen Mary's trial and death, and his daughter Margaret married Sir Henry Yelverton, Attorney-General, the ancestor of the Calthorpe family, who thus became the possessors of the documents I have referred to.

The [frontispiece](#), taken from what is known as the Blairs portrait of Queen Mary, has its own pedigree of unusual interest, although it cannot claim to be an original portrait. The following description of this picture is taken from the pen of the Right Rev. Bishop Kyle, Vicar Apostolic of the Northern district of Scotland:—

This large picture of Queen Mary belonged once to Mrs. Elizabeth Curle, wife and widow of Gilbert Curle, one of the Queen's secretaries during the last years of her life and at her death. Mrs. Curle herself was one of the attendants at her execution. When, and by whom it was painted, I have never learned. The attire and attitude of the principal figure being the same in which it is said Mary appeared on the scaffold, seem to testify decisively that the picture is not what can be called an original—that is traced from the living subject under the painter's eye. The adjuncts were evidently added by another and an inferior artist, but when, I have no means of knowing. Mrs. Curle survived her mistress long, at least thirty years. She had two sons, who both became Jesuits. Of one, John, there is little known. He died in Spain. The other, Hyppolytus, was long Superior, and a great benefactor of the Scotch College of Douai. To that College he bequeathed the property, not inconsiderable, which he derived from his mother, and among the rest the very picture now at Blairs. The picture remained in that College (Douai) till the French Revolution. At the wreck of the College it was taken from its frame, and being rolled up was concealed in a chimney, the fireplace of which was built up, and was so preserved. After the peace of 1815 it was taken from its place of concealment and conveyed first to Paris, but ultimately to Scotland, through the late Bishop Paterson and the Reverend John Farquharson, who being the latter Principal, the former Prefect of Studies in the Douai College at the time of the Revolution, identified it as the picture that had been kept



there according to the tradition mentioned above.<sup>[1]</sup>—(From *Annals of Lower Deeside*, John A. Henderson.)

In the background of this picture the execution of the Queen at Fotheringay is represented, along with the portraits of Jane Kennedy and Elizabeth Curle, the two maids of honour who were present on the sad occasion. The royal arms of Scotland are painted on the right-hand corner of the picture, and there are three inscriptions in Latin, the translations of which are as follow:—

1. Mary Queen of Scotland, Dowager Queen of France, truly legitimate Sovereign of the Kingdoms of England and Ireland, mother of James, King of Great Britain, oppressed by her own Subjects in the year 1568, with the Hope and Expectation of Aid promised by her Cousin Elizabeth, reigning in England, went thither, and there, contrary to the Law of Nations and the Faith of a Promise, being retained Captive after 19 years of Imprisonment on Account of Religion by the Perfidy of the same Elizabeth and the Cruelty of the English Parliament, the horrible Sentence of Decapitation being passed upon her, is delivered up to Death, and on the 12th of the Kalends of March—such an Example being unheard of—she is beheaded by a vile and abject Executioner in the 45th year of her Age and Reign.
2. In the Presence of the Commissioners and Ministers of Queen Elizabeth, the Executioner strikes with his Axe the most serene Queen, the Daughter, Wife, and Mother of Kings, and after a first and second Blow, by which she was barbarously wounded, at the third cuts off her Head.
3. While she lived the chief Parent and Foundress of the Scotch College, thus the once most flourishing Queen of France and Scotland ascends the fatal Scaffold with unconquered but pious mind, upbraids Tyranny and Perfidy, professes the Catholic Faith, and publicly and plainly

professes that she always was and is a Daughter of the Roman Church.

The [reliquary](#) containing a portrait of Queen Mary, of which Lady Milford kindly allows me to publish the photograph for the first time, is very interesting, and the date can be fixed as being *not later* than 1622, but unfortunately the history of the medallion is little known.<sup>[2]</sup> It was originally in the possession of the Darrell family, and as a Darrell was appointed to be Queen Mary's steward during her captivity, and a Marmaduke Darrell (presumably the same person) attended the funeral at Peterborough, I would fain see a connection between him and the miniature, but so far I have found no proof of this.

The two contemporary drawings of Queen Mary's [trial](#) and [execution](#) from the Calthorpe MSS. are now also published for the first time. The lists of spectators written by Beale are of particular interest, and it is curious to compare the drawings of the trial with Bourgoing's description of the scene (see p. [xiii.](#)) and with that given in [Appendix](#), p. [270](#).

In conclusion, I earnestly desire to express my grateful thanks for the constant and valuable help and encouragement given to me by the Rev. Joseph Stevenson, S.J., LL.D., to whose kindness I owe so much; to Mr. Leonard Lindsay, F.S.A., and to other kind friends.

M.M. MAXWELL SCOTT.

*8th February 1895.*<sup>[3]</sup>

---

# CONTENTS

| CHAP.                                     | PAGE                |
|-------------------------------------------|---------------------|
| <a href="#">I. CHARTLEY</a>               | <a href="#">1</a>   |
| <a href="#">II. FOTHERINGAY</a>           | <a href="#">16</a>  |
| <a href="#">III. THE TRIAL—FIRST DAY</a>  | <a href="#">44</a>  |
| <a href="#">IV. THE TRIAL—SECOND DAY</a>  | <a href="#">69</a>  |
| <a href="#">V. SUSPENSE</a>               | <a href="#">83</a>  |
| <a href="#">VI. AFTER THE SENTENCE</a>    | <a href="#">107</a> |
| <a href="#">VII. WAITING FOR DEATH</a>    | <a href="#">125</a> |
| <a href="#">VIII. FURTHER INDIGNITIES</a> | <a href="#">145</a> |
| <a href="#">IX. THE DEATH WARRANT</a>     | <a href="#">163</a> |
| <a href="#">X. THE LAST DAY ON EARTH</a>  | <a href="#">179</a> |
| <a href="#">XI. THE END</a>               | <a href="#">200</a> |
| <a href="#">XII. PETERBOROUGH</a>         | <a href="#">225</a> |
| <a href="#">XIII. WESTMINSTER</a>         | <a href="#">244</a> |
| <a href="#">APPENDIX</a>                  | <a href="#">249</a> |

---



# LIST OF ILLUSTRATIONS

|                                                                                                                                      |             |                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------|-------------|-----------------------------------------------------|
| <a href="#">MARY QUEEN OF SCOTS</a> , REPRODUCED<br>FROM THE<br>PORTRAIT AT BLAIRS COLLEGE,<br>ABERDEEN                              |             | <a href="#">Frontispiece</a>                        |
| <a href="#">CONTEMPORARY DRAWING</a> OF THE TRIAL,<br>REPRODUCED FROM THE CALTHORPE MS.<br>[4]                                       | }<br>}<br>} | Facing each<br>other at<br><a href="#">page 44</a>  |
| <a href="#">FACSIMILE KEY</a> TO ABOVE                                                                                               |             |                                                     |
| <a href="#">CONTEMPORARY DRAWING</a> OF THE<br>EXECUTION,<br>FROM THE CALTHORPE MS.                                                  | }<br>}<br>} | Facing each<br>other at<br><a href="#">page 200</a> |
| <a href="#">FACSIMILE KEY</a> TO ABOVE                                                                                               |             |                                                     |
| <a href="#">ENLARGEMENT</a> OF THE EXECUTION<br>SCENE, AS GIVEN<br>IN THE BACKGROUND OF THE ABOVE                                    |             | To face <a href="#">page 220</a>                    |
| <a href="#">RELIQUARY</a> CONTAINING MINIATURE OF<br>MARY<br>QUEEN OF SCOTS, AND RELICS, NOW IN<br>THE<br>POSSESSION OF LADY MILFORD |             | To face <a href="#">page 244</a>                    |

---

## THE TRAGEDY OF FOTHERINGAY

---

# CHAPTER I

## CHARTLEY

"Ceux qui voudront jamais escrire de cette illustre Reine d'Ecosse en ont deux tres-amplés sujets. L'un celui de sa vie y l'autre de sa mort, l'un y l'autre tres mal accompagnés de la bonne fortune."

BRANTÔME.

THREE hundred years have passed since Brantôme wrote these lines, and his prevision has been fully verified. Writers of every opinion—friends and foes—have taken as their theme the life and death of Mary Stuart, and it would now seem as if nothing further could be written on the subject, fascinating though it has proved. Fresh historical matter bringing new evidence, however, comes to light now and then, and the publication in France, some years ago, of such testimony is our excuse for adding a short chapter to the history of Queen Mary. That this evidence relates to her last days and death, is very welcome, for we hold that in Queen Mary's case we may specially apply her own motto, "In my end is my beginning." Her death was the crown and meaning of her long trial, and the beginning of an interest which has continued to the present day.

The journal of Queen Mary's last physician, Dominique Bourgoing, published by M. Chantelauze in 1876, which recounts the events of the last seven months of Mary's life, informs us of many details hitherto unknown, while the report of the trial of which Bourgoing was an eye-witness is most valuable and interesting. Taken together with the Letters of Sir Amyas Paulet, which, although written in a very different spirit, agree in the main with Bourgoing's narrative, the journal presents us with a complete picture of the daily life of the captive Queen and the inmates of Fotheringay. In the preface to his valuable book M. Chantelauze tells us of his happy acquisition of the manuscript copy of Bourgoing's journal at Cluny,

discusses the proofs of its authenticity, and refers us to the passage in Queen Mary's last letter to Pope Sixtus V., which we must consider as Bourgoing's "credentials."

"Vous aurez," writes Mary, "le vrai récit de la fasson de ma dernière prise, et toutes les procédures contre moy et par moy, affin qu'entendant la vérité, les calumnies que les ennemys de l'Eglise me vouedront imposer puissent estre par vous réfutées et la vérité connue: et à cet effet ai-je vers vous envoyé ce porteur, requérant pour la fin votre sainte bénédiction."<sup>[5]</sup>

Bourgoing's Journal in effect begins from the moment specified by the Queen, at her "last taking," and contains, as she says, the full account of the proceedings taken against her. Although the interest of the narrative centres in Fotheringay, Bourgoing also gives new and interesting particulars of the way in which the Queen was removed from Chartley, the imprisonment at Tixall, and the return to Chartley before the journey to her last prison of Fotheringay.

Bourgoing begins his journal on Thursday, the 11th of August 1586, at Chartley, where the Queen had now been since the previous Christmas, and at a moment of the gravest importance for her safety. The fatal conspiracy known as the Babington Plot had been arrested, and the unhappy agents in it were awaiting their cruel doom. It was determined that Mary should be removed from Chartley, her secretaries sent to London, and her papers seized, while she was still ignorant of the fate of Babington and his companions. For this purpose William Wade, a sworn enemy to Mary, was sent down to Staffordshire to take the necessary measures, and in order that this might be done secretly, he and Sir Amyas Paulet, Mary's keeper, met at some distance from the castle, and there arranged their plan of action.

The Queen's health had improved at Chartley, and she was now able to take exercise on horseback. Paulet therefore proposed to her to ride to Tixall, the house of Sir Walter Aston, which was situated a few miles off, to see a Buck hunt. This proposal Mary accepted with pleasure, and probably with some surprise at the unusual courtesy of Sir Amyas.

On 16th August the party set out. "Her Majesty," says Bourgoing, "arrayed herself suitably, hoping to meet some pleasant company, and was attended by M. Nau, who had not forgotten to adorn himself; Mr. Curle, Mr. Melvim,

and Bourgoing, her physician; Bastien Pages, mantle-bearer; and Annibal, who carried the crossbows and arrows of Her Majesty. All were mounted and in good apparel, to do her and the expected company honour, and indeed every one was joyous at the idea of this fine hunt."[\[6\]](#)

The Queen, who was very cheerful, rode on for about a mile, till Nau observed to her that Sir Amyas was some way behind. She stopped till he came up and spoke very kindly, saying she feared that, as he was in bad health, he could not go so fast; to which he replied courteously. The party proceeded a short way "without thinking more about it," says Bourgoing, "when Sir Amyas, approaching the Queen, said: 'Madame, here is one of the gentlemen pensioners of the Queen, my mistress, who has a message to deliver to you from her,' and suddenly M. George,[\[7\]](#) habited in green serge, embroidered more than necessary for such a dress, and, as it appeared to me, a man of about fifty years, dismounted from his horse, and coming to the Queen, who remained mounted, spoke to her as follows: 'Madame, the Queen, my mistress, finds it very strange that you, contrary to the pact and engagement made between you, should have conspired against her and her state, a thing which she could not have believed had she not seen proofs of it with her own eyes and known it for certain. And because she knows that some of your servants are guilty, and charged with this, you will not take it ill if they are separated from you. Sir Amyas will tell you the rest.'

"To which Her Majesty could only reply that, as for her, she had never even thought of such things, much less wished to undertake them, and that from whatever quarter she (Elizabeth) had received her information, she had been misled, as she (Mary) had always shown herself her good sister and friend." A melancholy scene now took place. Nau and Curle, who wished to approach their mistress, were forced back, and taken off to a neighbouring village. They never saw Mary again. Melville was also removed.

The Queen's party now turned back and proceeded a mile or two, when Bourgoing, who, as he tells us, had placed himself as near as he could to his mistress, saw that they were following a new route; to this he drew the Queen's attention, and she called to Sir Amyas, who was ambling slowly in front, to know where they were going. On hearing that they were not to return to Chartley, Mary, "feeling very indisposed, and unable to proceed," dismounted from her horse and seated herself on the ground. She now



implored Sir Amyas to tell her where she was to be taken; he replied that she would be in a good place, one finer than his, that she could not return to her former residence, and that it was mere loss of time to resist or remain where she was. She saying she would prefer to die there, he threatened to send for her coach and place her in it. The Queen remained inconsolable; and here it is very touching to observe Bourgoing's efforts to comfort and encourage his mistress, his entreaties to Paulet, his affectionate remonstrances with the Queen herself, and even the very improbable ideas that he propounds to console her, such as that perhaps Elizabeth was dead and Mary's friends were taking these strange measures to place her person in safety. At last the Queen was persuaded to proceed, but first, aided by Bourgoing, she withdrew a few yards, and there under a tree she "made her prayer to God, begging Him to have pity on her people and on those who worked for her, asking pardon for her faults, which she acknowledged to be great and to merit chastisement. She begged Him to deign to remember His servant David, to whom He had extended His mercy, and whom He had delivered from his enemies, imploring Him to extend also His pity to her, though she was of use to no one, and to do with her according to His will, declaring that she desired nothing in this world, neither goods, honours, power, nor worldly sovereignty, but only the honour of His holy name and His glory, and the liberty of His Church and of the Christian people; ending by offering Him her heart, saying that He knew well what were her desires and intention."[\[8\]](#)

On the way to Tixall, where Mary was to be lodged, two more of her attendants were separated from her; one, Lawrence, who held her bridle rein, and was observed to talk with her, and Elizabeth Pierpoint, one of her women.

Hitherto nothing has been known of the Queen's imprisonment at Tixall. Bourgoing, however, tells us a few facts. We learn that Paulet allowed Mary's apothecary, two of her women, and Martin, an equerry, to join her, and Bourgoing remained for one night before being sent back to Chartley. In the evening of her arrival at Tixall, Mary sent to ask for pen and paper to write to Queen Elizabeth; but this Paulet refused, saying he should allow no letter to be sent till he had authority from the Court.

"On the morrow, the 17th August," writes Bourgoing,<sup>[9]</sup> "Her Majesty being still in bed, I was sent for by Sir Amyas to speak with him. Before descending I asked Her Majesty if she had anything to acquaint him with, but she said I should first learn what he wanted of me; and afterwards I was not permitted to return to the Queen, but was taken to Chartley, where I remained a prisoner with the rest, awaiting the return of the Queen."

Bourgoing describes the search made at Chartley, and mentions the three coffers of papers of all sorts that were carried off by Wade and his companions. On 26th August the Queen was brought back to Chartley. On leaving Tixall a crowd of beggars, attracted no doubt by her well-known charity, assembled at the park gate, but she was as poor as they. "I have nothing to give you," she said; "I am a beggar as well as you—all is taken from me."<sup>[10]</sup>

Bourgoing's Journal thus records this day: "Thursday the 26th Her Majesty was brought back to Chartley with a great company, after being strictly detained at the place of Tiqueshal; she was welcomed by each one of us, anxious to show our devotion, not without tears on both sides, and the same day she visited us, one after the other, as one who returns home." Then he adds briefly: "After that the tears were over (Her Majesty) found nothing to say except about the papers which had been taken away, as has been related above."<sup>[11]</sup> But here Paulet's correspondence with Walsingham gives us further details, in which he describes the Queen's very just indignation at the manner in which her drawers and cabinets had been ransacked and every paper carried off. Then, turning to Paulet, she said that there were two things which he could not take from her—her royal blood and her religion, "which both she would keep until her death."

Early in September Paulet received orders to take possession of all the Queen's money. Bourgoing gives a long account of the way in which the commission was executed. Mary was ill in bed, but Paulet insisted on seeing her. He and Mr. Baquet<sup>[12]</sup> entered her apartment, leaving his son and a good number of other gentlemen and servants, all armed, in the anteroom. Paulet sent all the ladies and servants out of her room, "which made us all anxious," says Bourgoing, "not knowing what to expect from such an unusual proceeding and being unaccustomed to such words. The best I could do was to keep myself by the door, under the pretext that Her

Majesty was alone, and two men with her, (where I remained) very sad and thoughtful." In the end Gervais, the surgeon, was also permitted to remain along with Bourgoing. When Paulet informed Mary that he must have her money, she at first absolutely refused to give it up. When at last Elspeth Curle had, at the Queen's bidding, opened the door of her cabinet, the Queen, "all alone in her room, which no one (of us) dared approach, and guarded by Sir Amyas's people, rose from her bed, crippled as she was, and without slipper or shoe followed them, dragging herself as well as she could to her cabinet, and told them that this money which they were taking was money which she had long put aside as a last resource for the time when she should die, both for her funeral expenses and to enable her attendants to return each to his own country after her death." Mary pleaded for some time, but Sir Amyas, while assuring her she should want for nothing, refused to leave her any of the money.

Some days later Sir Amyas again visited the Queen, and interrogated her at length regarding her knowledge of Babington and the conspiracy, concluding by saying "that she would be spoken to more fully about it, as it was necessary that the whole thing should be cleared up. From this Her Majesty took occasion to think she would be examined, but no one imagined this would be in the manner we shall hereafter see."[\[13\]](#)

About 15th September Paulet began to speak to Mary of the intended move to Fotheringay; he did not tell her the name of the place, but said that it would be very beneficial for her health to move from Chartley, and that she should be taken to one of the Queen's castles situated thirty miles from London. He also informed Mary that he now understood why her money had been taken from her. He perceived, he said, that it was for fear she should give it away or use it for some dangerous purpose on the road, and he had been assured she would receive it back when she should reach her journey's end. The Queen was quite willing to leave Chartley, and was anxious to take the journey before her indisposition should increase. Bourgoing thus continues:—

"From now they commenced to prepare the luggage and everything for the departure which was fixed for the Tuesday following, the 20th of the said month, but was deferred till the next day on account of the change in the appointed lodging, which was supposed to be Worcester or else Chazfort

(?); but both were changed and Fotheringay was chosen, a castle of the (English) Queen's in Northamptonshire.... Of all these things we were only told secretly, and Her Majesty never knew for certain where they were taking her, not even on the day she reached her new dwelling, but used to think sometimes they were taking her one way, sometimes another. Before starting in the morning they would tell her whether she had a long or a short journey to make, sometimes the number of miles, but they would never tell her the place where she was to sleep that night."

On the Monday before the party left Chartley, Sir Thomas Gorges and Stallenge (Usher of Parliament) arrived "with their pistols in their belts." This arrival caused anxiety among Mary's followers, who were only reassured when they observed that Gorges and Stallenge addressed her more courteously than they expected.

"The following Wednesday, which was St. Matthew's Day (21st September), Her Majesty being ready to start, the doors of all the rooms were locked where her servants were, who were to remain behind, and the windows were guarded for fear that they should speak to her, or even see her." Mary was carried to her coach, as she was still unable to walk. As the Queen started, Sir Thomas Gorges, who, together with Stallenge, accompanied the party, accosted her, and informed her that he had something to say to her from his mistress. "I pray God," replied Mary, "that the message is better and more agreeable than the one you recently brought me." To which Gorges answered, "I am but a servant." "With this Her Majesty was content, telling him that she could not consider him to blame." [\[14\]](#) It was not till the next day that the message was delivered.

The Queen and her escort spent the first night at Burton,[\[15\]](#) and the next morning before starting, Mary, who had been in great anxiety to know what he had to say, sent for Sir Thomas. The message, in part similar to the previous one, was to the effect that Elizabeth was utterly surprised that Mary should have planned such enterprises, and even to have hands laid on her who was an anointed Queen. Gorges swore that his mistress had never been so astonished or distressed by anything that had ever happened. "My mistress knows well," he said, "that if your Majesty were sent to Scotland, you would not be in safety; your subjects there would do you an ill turn;



and she would have been esteemed a fool had she sent you to France without any reason."

To this Mary replied very fully, declaring that she had never planned anything against the Queen of England or the State. "I am not so base," said she, "as to wish to cause the death or to lay hands on an anointed Queen like myself, and I have comported myself towards her as was my duty." Mary remarked that she had several times warned Elizabeth of things to her advantage, and then reverted to her own long imprisonment, and her many sufferings. "If all the Christian prelates, my relations, friends, and allies," continued she, "moved by pity, and having compassion for my fate, have made it their duty to comfort and aid me in my misery and captivity, I, seeing myself destitute of all help, could not do less than throw myself into their arms and trust to their mercy, but, however, I do not know what were their designs, nor what they would have undertaken, nor what were their intentions. I have no part with this, and have not been the least in the world mixed up in it. If they have planned anything, let her (Elizabeth) look to them; they must answer for it, not I. The Queen of England," concluded Mary, "knows well that I have warned her to look to herself and her Council, and that perchance foreign kings and princes might undertake something against her, upon which she replied that she was well assured of both foreigners and her own subjects, and that she did not require my advice."[\[16\]](#)

Gorges' only reply was that he prayed God this was true, but he showed Mary every courtesy by the way, "as well for her lodgings as for requisite commodities for the journey." Nothing of any importance occurred during the remainder of the journey, and on 25th September the party reached Fotheringay.

---

## CHAPTER II

### FOTHERINGAY

"In darkest night for ever veil the scene  
When thy cold walls received the captive Queen."  
*Antona's Banks MSS., 17—.*

ON Sunday 25th September 1586 Mary Stuart reached the last stage of her weary pilgrimage. As she passed through the gloomy gateway of Fotheringay Castle the captive Queen bade farewell to hope and to life. Well read as she was in the history of England, Mary must have keenly realised the ominous nature of her prison. The name of Fotheringay had been connected through a long course of years with many sorrows and much crime, and during the last three reigns the castle had been used as a state prison. Catherine of Arragon, more fortunate than her great-niece, had flatly refused to be imprisoned within its fatal walls, declaring that "to Fotheringay she would not go, unless bound with cart ropes and dragged thither." Tradition, often kinder than history, asserts that James VI., after his accession to the English throne, destroyed the castle;[\[17\]](#) and though it is no longer possible to credit him with this act of filial love or remorse, time has obliterated almost every trace of the once grim fortress. A green mound, an isolated mass of masonry, and a few thistles,[\[18\]](#) are all that now remain to mark the scene of Mary's last sufferings. Very different was the aspect of Fotheringay at the time of which we write. Then, protected by its double moat, it frowned on the surrounding country in almost impregnable strength. The front of the castle and the great gateway faced to the north, while to the north-west rose the keep. A large courtyard occupied the interior of the building, in which were situated the chief apartments, including the chapel and the great hall destined to be the scene of the Queen's death.

Mary, as we know, reached Fotheringay under the care of Sir Amyas Paulet and Sir Thomas Gorges.<sup>[19]</sup> Sir William Fitzwilliam, castellan of the castle, whose constant courtesy and kindness obtained the Queen's ready gratitude, had also accompanied her. As soon as Mary was safely consigned to her prison Sir Thomas Gorges was despatched to inform Queen Elizabeth of the fact. His report of the journey which he had made in company with the royal prisoner and the arrival at Fotheringay (which must have afforded him many opportunities of ascertaining Mary's sentiments regarding the position in which she was now placed) would be full of the deepest interest for us, but although, no doubt, Elizabeth eagerly inquired into every detail regarding her cousin, no record of this report has been discovered.

Very little is known of Mary's first days at Fotheringay. No letters of the Queen's relating to this time have been preserved, but from Bourgoing's Journal we gather a few facts. His mistress, he tells us, complained, and with justice, of the scanty and insufficient accommodation provided for her, especially as she had observed "many fine rooms unoccupied." As Paulet paid little attention to her demands, and it was rumoured that the vacant apartments were reserved for some noblemen, Mary at once suspected that she was about to be brought to trial. She had long foreseen this issue, and had spoken of it to her attendants. The prospect did not alarm her; to use Bourgoing's words, "she was not in the least moved; on the contrary, her courage rose, and she was more cheerful and in better health than before."

On October 1st Paulet sent a courteous message to the Queen requesting an interview with her. He had received intelligence which he would "willingly" communicate to her. Experience had taught Mary and her followers to connect evil tidings with any unusual display of civility on Paulet's part, nor were they deceived. When he found himself in Mary's presence he brusquely informed her that Queen Elizabeth, having now received Sir Thomas Gorges' report, had expressed much surprise, and marvelled that her cousin dared to deny the charges brought against her, when she herself possessed proof of the facts. His mistress must now send some of her lords and counsellors to interrogate Mary, and of this he wished to warn her, so that she might not think she was to be taken by surprise. Then lowering his voice, Paulet added significantly that "the Queen would do better to beg pardon of Her Majesty, and confess her offence and fault, than to let herself be declared guilty (by law); and that if she would follow his advice, and

agree to this, he would communicate her decision to Queen Elizabeth, being ready to write her reply, whatever it might be." Mary smiled at this proposal, saying that it reminded her of the way in which children are bribed to make them confess, and in reply said, "As a sinner I am truly conscious of having often offended my Creator, and I beg Him to forgive me, but as Queen and Sovereign I am aware of no fault or offence for which I have to render account to any one here below, as I recognise no authority but God and His Church. As therefore I could not offend, I do not wish for pardon; I do not seek, nor would I accept it from any one living." Then assuming a lighter tone, the Queen further remarked that she thought Sir Amyas took much pains for but small result, and that he seemed to make little progress in this affair. Paulet here interrupted her, exclaiming that his mistress could show proof of what she asserted, and that the thing was notorious. Mary therefore would do well to confess, but he would report her answer. He then begged the Queen to listen while he repeated her answer word by word, and having written it down, he despatched it on the same day to the Court.

We may ask ourselves whether Elizabeth was sincere in her overtures to her cousin. If Mary had sued for mercy, would Elizabeth have granted it? It is more probable that any words which could have been extorted from Mary would have been used by the English Queen as a safeguard for her own honour. Armed with a confession of any sort, Elizabeth would have had no difficulty in ridding herself quietly of her cousin, and her own reputation would have suffered less. As we have seen, Mary at once perceived the trap prepared for her, and with her usual promptitude and courage she easily avoided it.

About this time a little ray of comfort came to cheer the Queen's imprisonment. Her faithful steward, Melville, who had of late been separated from her, was permitted to return, and he brought with him his daughter and the daughter of Bastien Pages, who was a goddaughter of the Queen's. The consolation which Mary received from their arrival was, however, soon allayed by the summary dismissal of her coachmen and some other servants, a proceeding which she rightly took to be a fresh sign of the gravity of her position.[\[20\]](#)

In London meanwhile events were proceeding rapidly. On October 8th the Commissioners appointed to judge the Scottish Queen assembled at Westminster. The Chancellor, Sir Thomas Bromley, having briefly related the history of the late conspiracy, read aloud copies of the letters addressed by Babington to Mary, her reputed answers, and the evidence said to have been extracted from Nau and Curle. At the conclusion nearly all present were of opinion that Mary should be brought to trial. The Commissioners were therefore summoned to meet at Fotheringay, and all the peers of the kingdom were invited to be there present, save those employed in offices of state. To the great displeasure of Elizabeth and Burleigh, Lord Shrewsbury evaded this summons on the plea of illness. The Queen herself intimated the approaching trial to her faithful Paulet.<sup>[21]</sup> The crisis, therefore, had now come. No one familiar with the character of Elizabeth or the policy of her advisers could doubt the issue of the trial. It would have seemed only natural to suppose that France or Spain would effectively resent the outrage offered to a sister Queen; but the days of chivalry were past, and Philip of Spain could forsake an ally and Henry of France abandon a sister-in-law in her dire need. To the honour of France be it said, however, that Mary found an ardent defender in the French Ambassador, De Chateauneuf, who exerted himself to the utmost on her behalf; Elizabeth, however, treated his efforts with supreme contempt.

When Chateauneuf implored that the Queen of Scotland might at least have counsel to defend her, Elizabeth sent him word that she knew what she was doing, and did not require advice from strangers. She was aware that she need fear no active interference from Chateauneuf's master. Still less did she dread opposition on the part of the young King of Scotland. The disregard for his mother, in which Elizabeth had herself encouraged James, was her present safeguard, and she had determined that should he prove obstinate she would threaten him with exclusion from the succession to the English throne.

On Saturday, 11th October, the Commissioners reached Fotheringay. Some were lodged in the castle, though the greater number found rooms in the village and neighbouring farmhouses and cottages. A duplicate copy of the Commission was at once transmitted to Mary. The act bore the names of forty-eight members, but of these nine or ten had refused to attend.



The Primate of England headed the list, and among the most important names occurred those of Cecil, Lord Burleigh, Walsingham, Sir Christopher Hatton, the Earls of Leicester and Warwick, Davison, Elizabeth's Secretary, Beale, and others.[\[22\]](#)

On the following day, Sunday, the lords attended service in the castle chapel. They afterwards sent a deputation to Mary, composed of Sir Walter Mildmay, Sir Amyas Paulet, Barker (Elizabeth's notary), and Stallenge, Usher of Parliament. They were the bearers of a letter from their mistress, couched in brief and imperious terms. This epistle, which was addressed simply to "The Scottish," without any other title or expression of courtesy, stated that Elizabeth having heard that Mary had denied participation in the plot against her person, notwithstanding that she herself possessed proofs of the fact, she now considered it well to send some of her peers and legal counsellors to examine Mary and judge the case, adding that as the Queen of Scotland was in England, and under her protection, she was subject to the laws of the country.[\[23\]](#)

In reply to this document, which, as she observed, read as a command addressed to a subject, Queen Mary replied with dignity. "I am myself a queen," said she, "daughter of a king, a stranger, and the true kinswoman of the Queen of England. I came into England on my cousin's promise of assistance against my enemies and rebel subjects, and was at once imprisoned. I have thus remained for eighteen years, always ill-treated and suffering constant trials at the hands of Queen Elizabeth. I have several times offered to treat with the Queen with good and honest intentions, and have often wished to speak with her. I have always been willing to do her service and give her pleasure, but I have always been prevented by my enemies. As a queen I cannot submit to orders, nor can I submit to the laws of the land without injury to myself, the King my son, and all other sovereign princes. As I belong to their estate, majesty, and dignity, I would rather die than betray myself, my people, or my kingdom, as a certain person has done. I decline my judges," continued Mary, "as being of a contrary faith to my own. For myself, I do not recognise the laws of England, nor do I know or understand them, as I have already often asserted. I am alone, without counsel, or any one to speak on my behalf. My papers and notes have been taken from me, so that I am destitute of all aid, taken at a disadvantage, commanded to obey, and to reply to those who are

well prepared and are my enemies, who only seek my ruin. I have made several offers to the Queen of England which have not been accepted, and now I hear that she has again entered into a league with my son, thus separating mother from child. I am a Catholic, and have placed myself under the protection of those Catholic kings and princes who have offered me their services. If they have planned any attempt against Queen Elizabeth, I have not been cognisant of it, and therefore it is wrong to treat me as if I were guilty." Mary concluded by demanding that reference should be made to her former protestation.[\[24\]](#)

Mildmay and Paulet carried Mary's reply to the Commissioners, who were assembled in the large apartment which had been prepared for them, near the Queen's rooms. After a consultation had been held, Sir Amyas, Barker, and Stallenge returned to the Queen's presence, in order to obtain her sanction to the copy of her answer to Elizabeth, which had been committed to writing.

Barker knelt before Mary and read aloud the letter, which, Bourgoing tells us, was reported in "good style," and with no omission save the passage in which Mary expressed her desire to see Elizabeth. Mary signified her approval of the letter, and observed that she wished now to reply to those points of her cousin's letter which in her trouble and agitation had before escaped her. She repeated that she did not consider herself under the protection of the Queen; that she had not come into England for refuge, but to obtain assistance; and that, notwithstanding the promise of help from Elizabeth, she had been made prisoner and detained by force. She was not, she said, subject to the laws of England, which are made for the English and such as come to reside in England, whereas she had always been dealt with as a captive and had had no advantage from the laws, nor had she been in subjection to them. She had always kept her own religion, which was not that of England, and she had lived according to her own usages, to all of which no objection had been made.

Here Sir Amyas, "appearing to show himself more considerate," bade the Queen remember that he had no orders either to listen to her or to report her words; but Barker, "whispering in his ear," assured him that he could let her speak, and add her words and anything else he wished to the report. Paulet

did not, however, avail himself of this piece of advice, and thus the interview ended.

On the following morning, about ten o'clock, just as the Queen was seated at table for her early dinner, Sir Amyas, Barker, and Stallenge came to inquire whether she would be pleased to see the Commissioners, as they desired to speak with her. Mary expressed her willingness to receive them, and accordingly several members, chosen from the different orders of peers, privy-councillors, and lawyers, entered her presence, one by one, with great ceremony, preceded by an usher bearing the great seal of England.

The Lord Chancellor, Sir Thomas Bromley, speaking in the name of all, announced that they had come by command of the Queen of England their mistress, who, being informed that the Queen of Scotland was charged with complicity in a conspiracy against her person and state, had commissioned them to examine her on several points concerning this matter. He further reminded Mary that the Commission was authorised by letters patent thus to interrogate her; and concluded by remarking that as neither her rank as sovereign nor her condition as prisoner could exempt her from obedience to the laws of England, he recommended Her Majesty to listen in person to the accusations about to be brought against her, as, should she refuse, the Commissioners would be obliged in law to proceed against her in her absence.

Mary, who was much moved by this arrogant speech, replied with tears that she had received Elizabeth's letter, and that she would rather die than acknowledge herself her subject. "By such an avowal," continued she, "I should betray the dignity and majesty of kings, and it would be tantamount to a confession that I am bound to submit to the laws of England, even in matters touching religion. I am willing to reply to all questions, provided I am interrogated before a free Parliament, and not before these Commissioners, who doubtless have been carefully selected, and who have probably already condemned me unheard." In conclusion Mary bade them consider well what they were doing. "Look to your consciences," said she, "and remember that the theatre of the world is wider than the realm of England." Noble and pathetic words, to the truth of which the history of three hundred years bears ample testimony.

Burleigh (whom Bourgoing designates as "Homme plus véhément")<sup>[25]</sup> here interrupted the Queen, and informed her that the council, after receiving her former reply, had taken the advice of several learned doctors of canon and civil law; and that the latter, after mature deliberation, had decided that the Court could, despite her protest, proceed in the execution of their Commission. "Will you therefore," continued Burleigh rudely, "hear us or not? If you refuse, the assembled council will continue to act according to the Commission."

The Queen reminded Burleigh that she was a queen, and not a subject, and could not be treated as one. He retorted that Queen Elizabeth recognised no other queen but herself in her kingdom. He and his colleagues, he said, had no wish to treat Mary as a subject; they were well aware of her rank, and were prepared to treat her accordingly; but they were bound to fulfil the line of duty laid down for them by the Commission, and to ascertain whether she was subject to the laws of England. He ended by declaring that she was assuredly subject to the civil and canon law as it was observed abroad. The Queen remaining unconvinced by these arguments, the Commissioners were forced to retire for a time.

Before leaving her Burleigh made a curious speech, bidding Mary recall to her memory the benefits which had been heaped upon her by her cousin! insisting in especial upon some remarkable instances of her clemency. "The Queen, my mistress," said he, "has punished those who contested your pretensions to the English crown. In her goodness she saved you from being judged guilty of high treason at the time of your projected marriage with the Duke of Norfolk, and she has protected you from the fury of your own subjects."

Mary replied to this extraordinary speech with a sad smile.

As soon as she had dined, the Queen, who, as Bourgoing tells us, had not been able to write for a long time, owing to rheumatic pains in her arm, set to work to make notes, to assist her when the Commissioners should return; fearing, as she said, that her memory might fail her. As was usual with her, however, the very danger of her position inspired her with fresh vigour and courage, and when the moment came she defended herself as "valiantly as

she was rudely assailed, importuned, and pursued by the Commissioners; and she ended by saying far more than she had prepared in writing."

In the course of the afternoon Sir Amyas and three others were deputed to wait on Mary with a duplicate copy of the Commission, which she had requested to see. They proceeded to explain this document, which was chiefly founded on two Acts of Parliament passed two years previously. By the former of these it was declared high treason for any one to speak of Mary's succession to the crown of England during the lifetime of Elizabeth. The second decreed that should any one, of whatsoever rank, in the kingdom or abroad, conspire against the life of Elizabeth, or connive at such conspiracy, it should be lawful for an extraordinary jury comprised of twenty-four persons to adjudge that case. These laws (which the Queen justly felt to have been framed specially for her destruction) were now to be applied. She was accused of "consenting" to the "horrible fact of the destruction of Elizabeth's person and the invasion of the kingdom," and she was now called upon to submit to the interrogations of the appointed judges. To the energetic protests offered by Mary the deputies made no reply, but withdrew to consult with the other Commissioners; and later in the day the attack was renewed.

On this occasion Bourgoing says that the lords came in fewer numbers than in the morning, but with the same ostentatious ceremony.

The Queen began by referring to a passage in Elizabeth's letter, and demanded to know what the word "protection" there signified. "I came into England," said she, "to seek assistance, and I was immediately imprisoned. Is that 'protection'?" Burleigh, always the spokesman, and who invariably seemed animated with a wish to attack Mary, was puzzled to reply to this simple question, and endeavoured to evade it. He had "read the letter in question," he said, "but neither he nor his colleagues were so presumptuous as to dare to interpret their mistress's letter. She, no doubt, knew well what she wrote; but it was not for subjects to interpret the words of their sovereign."

"You are too much in the confidence of your mistress," returned Mary, "not to be aware of her wishes and intentions, and if you are armed with such authority by your Commission as you describe, you have surely the power



to interpret a letter from the Queen." Burleigh denied that he and his companions had known anything of the letter; adding, however, that he was aware that his mistress considered that every person living in her kingdom was subject to its laws. "This letter," continued Mary, "was written by Walsingham; he confessed to me that he was my enemy, and I well know what he has done against me and my son." At this point the Commissioners "discussed among themselves as to whether Walsingham had been in London at the time when the letter was written or not, but could not decide the question." Mary then again protested against the injustice of being tried by the laws of a country in which she had lived only as a prisoner.

"If your Majesty," retorted one of the lords, "was reigning peacefully in your own kingdom, and some one were to conspire against you, would you not proceed against him, were he the greatest king in the world?"

"Never," replied Mary, "never would I act in such a manner; however, I see well that you have already condemned me—all you do now is merely for form's sake. I do not value my life, but I strive for the preservation of my own honour, and the honour of my relatives and of the Church. You frame laws according to your own wishes," continued the Queen; "and as in former days the English refused to recognise the *salique* law in France, so I do not feel bound to submit to your laws. If you wish to proceed according to the common law of England, you must produce examples and precedents. If you follow the canon law, those only who framed it can interpret it. Roman Catholics alone have the right to explain and apply it." To this Burleigh replied that the canon law was used ordinarily in England, especially regarding marriages and kindred matters, but not in what touched the authority of the Pope, which they neither desired nor approved. "In consequence then," continued Mary, "you cannot avail yourselves of the privilege of him whose authority you deny. The Pope and his delegates alone can interpret the canon law, and I know of no one in England who has received this authority from the sovereign pontiff. As for the civil laws, they were made by the Catholic Emperors of old, or in any case, sanctioned by them; and these laws can only be applied by such as approve their authors, and would wish to imitate them. As these laws were often obscure and difficult, and people wished to interpret them, each according to his own idea, universities were established in Italy, France, and Spain. Here in England, where none such exist, you do not possess the knowledge of the

true spirit and interpretation of these laws, but you interpret them according to your own wishes, and in such a way as to serve the law, and the police law of your country. If you wish to try me by the true civil law, I demand that some members of the universities be allowed to judge my case, so that I may not be left to the judgment of such lawyers as are subservient to the laws of England alone. But I see that you wish to prevent me from benefiting either by the canon or the civil law. You wish to reduce me to subject myself to the law of this country; but," continued the Queen earnestly, "I have no knowledge of this law. It is not my profession, and you have taken from me all power of studying it. Kings and princes usually have around them such persons as are versed in these matters, but I have no one. I therefore beg you to give me information in order that I may know how those in my position have been treated in the time past, and what has been admitted by law or precedent, either favourable to my case or not."

Mary's hearers eagerly seized the opportunity afforded them, and suggested that she should see the judges and lawyers then present at Fotheringay, who would explain the matter to her. At first the Queen seemed as if she were inclined to favour this proposal. "Her Majesty, very well pleased, at first agreed, till she perceived by some words of the Treasurer (Burleigh) that by this suggestion they had no intention but to make her aware by them (the judges) that her cause was bad, that she was subject to the laws of England, and that there was a just case against her, so that consequently she might in the end be judged by them. So Her Majesty, perceiving that she could not communicate with the judges about her business without humbling herself, refused to hear them."[\[26\]](#)

The envoys now proposed to the Queen to hear the new Commission. After listening to it attentively, Mary observed that she saw it referred to laws which she must refuse to recognise, as she suspected that they had been framed expressly for her ruin by those persons who were her enemies, and who aimed at dispossessing her of her right to the kingdom. Elizabeth's emissaries replied that even though the laws were new, they were as just and equitable as those of other countries. Her Majesty, they added, knew well that it was necessary on occasion to abrogate certain laws and frame new ones.

"These new laws," returned Mary, "cannot be used to my prejudice. I am a stranger, and consequently not subject to them, and the more especially as I belong to a different religion. I confess to being a Catholic, and for this religion I would wish to die, and shed my blood to the last drop. In this matter do not spare me; I am ready and willing, and shall esteem myself very happy if God grants me the grace to die in this quarrel." The Queen's hearers, amazed at her courage, refrained from pressing her further, and reserved—as Bourgoing tells us—their reply for a future occasion.

Mary now demanded to see the former protestation which she had made at Sheffield. "I have not changed since then," she remarked, "being the same person still, my rank and quality remaining undiminished, and my sentiments unaltered, while the circumstances were then almost identical with those of the present crisis." Being thus pressed, Sir Thomas Bromley and Lord Burleigh read aloud the protestation, refusing at the same time either to approve or accept it. Bromley acknowledged, however, that he had on the previous occasion received it from Mary and presented it to his mistress. "Her Majesty," continued he, "neither approved nor accepted it, and we are not at liberty to receive it, nor you to make use of it. The Queen of England has power in her own kingdom over all persons who conspire against her without respect to quality or degree. As your rank is, however, well known, the Queen is treating you very honourably, having selected so worthy a company of the great men of her kingdom as her Commissioners in this matter. We have taken no step against you; we are not judges, but have only come to examine you."

The day passed thus in mutual discussion until dusk, when Sir Christopher Hatton, seeing that no progress was being made, interposed, and adopting a conciliatory tone, observed that to his mind many unnecessary matters were being discussed. He and his colleagues were there simply to ascertain whether the Queen of Scots was, or was not, guilty of having participated in the plot against their mistress. He was of opinion, he said, that the Queen should not refuse to be examined, as in that case people would take her to be guilty, whereas were she to consent to be interrogated she could prove her innocence, which would bring honour to herself and rejoice Queen Elizabeth. Hatton added that in his parting interview with his mistress she had protested to him with tears that nothing had ever so wounded her as the

thought that her cousin should have sought to injure her,—a thing which she could not have believed of her.

"What favour can I look for when I shall have established my innocence?" demanded Mary; "and what reparation will be made to me for being brought here by force, treated as a criminal and a subject, and convoked before an assembly of judges in an apartment specially prepared for my trial?"

"Your honour will suffer no injury," returned Hatton persuasively, "and my mistress will be satisfied. As for the place of your trial, that is of no consequence; any place would do equally well. This castle was chosen as being the Queen's property and suitable for the occasion. If any of your people have alarmed you, be reassured, there is no danger for you. We have chosen the large hall close to your own apartment, as being more commodious for you in your weak health, and as it is Her Majesty's presence-chamber, we have there erected her dais. To us, who are sent here as her Commissioners, this attribute of state represents our Queen, as if she were here in person." Burleigh here impatiently interrupted Hatton by exclaiming that it was time to retire, and demanded once more of Mary whether she would be examined or not. "The Commissioners are determined to proceed in any case," said he, "and the council will assemble to-morrow."

"I am not obliged to answer you," replied Mary. "May God inspire you, and may you be directed to do right according to God and to reason. I beseech you, think well of what you are about."

The Commissioners then withdrew.

Elizabeth had been at once informed of the previous day's interview, of Mary's refusal to be interrogated, and of the resolution of the Commissioners to proceed with the trial and sentence, even in the absence of the prisoner. Alarmed at this decision, the Queen sent a courier post-haste to urge Burleigh and his companions not to pronounce sentence until they should return, and give her a complete report of the proceedings. The same messenger was the bearer of a letter to Mary, the reception of which must have added bitterness to this day of trial.<sup>[27]</sup> The letter ran as follows:—

You have planned in divers ways and manners to take my life and to ruin my kingdom by the shedding of blood. I never proceeded so harshly against you; on the contrary, I have maintained you and preserved your life with the same care which I use for myself. Your treacherous doings will be proved to you, and made manifest in the very place where you are. And it is my pleasure that you shall reply to my Nobles and to the Peers of my kingdom as you would to myself were I there present. I have heard of your arrogance, and therefore I demand, charge, and command you to reply to them. But answer fully, and you may receive greater favour from us.

ELIZABETH.[\[28\]](#)

In this epistle Elizabeth, as we see, once more held out hopes of clemency to her cousin, but it seems probable that Mary paid little heed to promises which she had so often found to be delusive. Bourgoing makes no allusion to this letter, but he says that his mistress, seeing the determination of the Commissioners to proceed in any case, "remained all the night in perplexity." On one side she dreaded being obliged to appear "in a public place against her duty, her state, and her quality," while on the other she foresaw that should she persist in her refusal to answer their interrogations, the Commissioners would assert her silence to be proof of her guilt, and would pronounce sentence against her, and declare "as an assured fact that in her conscience she knew herself to be guilty." Towards morning the Queen determined to send word to the lords that she desired to say a few words to them before they assembled.

On the morning of the 14th, accordingly, the Commissioners delegated some of their number to wait upon the Queen. Among these was Walsingham, whom Mary now saw for the first time. We subjoin the dignified address made by the Queen on this occasion. It seems evident that Bourgoing wrote down this speech either from Mary's dictation, or from notes supplied by herself, as, unlike the other speeches recorded by him, it is given throughout in the first person:—

"When I remember that I am a queen by birth," said Mary, "a stranger and a near relation of the Queen, my good sister, I cannot but be offended at the manner in which I have been treated, and could do nothing other than refuse to attend your assembly and object to your mode of procedure. I am not subject either to your laws or your Queen, and to them I cannot answer without prejudice to myself and other kings and princes of the same quality. Now, as always heretofore, I will not spare my life in defence of my honour; and rather than do injury to other princes and my son, I am prepared to die, should the Queen, my good sister, have such an evil opinion of me as to believe that I have attempted aught against her person. In order to prove my goodwill towards her, and to show that I do not refuse to answer to the charges of which I am accused, I am prepared to answer to that accusation only, which touches on the life of Queen Elizabeth, of which I swear and protest that I am innocent. I say nothing upon any other matter whatsoever as to any friendship or treaty with any other foreign princes. And making this protestation, I demand an act in writing."[\[29\]](#)

The Commissioners, "very happy to have brought the Queen to this point," [\[30\]](#) assured her that their only desire was to ascertain whether she was guilty or not, and thus to satisfy their mistress, who would be well content to see her innocence proved. Mary then once more inquired if it was necessary for her to appear in the hall of council. They replied that it must be so; repeating that the apartment had been prepared expressly for the purpose, and that they would there hear her as if she were in the presence of Elizabeth herself, in order that they might address their report to their sovereign in due form. The delegates then withdrew to consult together over Mary's last protestation. Shortly afterwards they sent word that they had committed it to writing, and once again summoned her to appear before them. This the Queen consented to do "as soon as she had broken her fast by taking a little wine, as she felt weak and ill."[\[31\]](#)

---

The die was now cast. To us the Queen's decision seems a fatal error. Had she persisted in claiming her royal prerogative of inviolability, the trial would have lost that semblance of legal justice which her present assent—though made under protest—lent to it; and her accusers would have been



unable to extricate themselves from the difficulty. It is, however, very questionable whether Mary's life would have been saved in any case. Had she refused to be tried, other means would have been found. Private assassination was the one and only form of death which was dreaded by the Queen. She knew that were she to die without witnesses, every effort would be made to blacken her fame and, if possible, to throw doubt on her fidelity to her faith. It is to this fear that we may probably attribute Mary's final decision to face her judges.

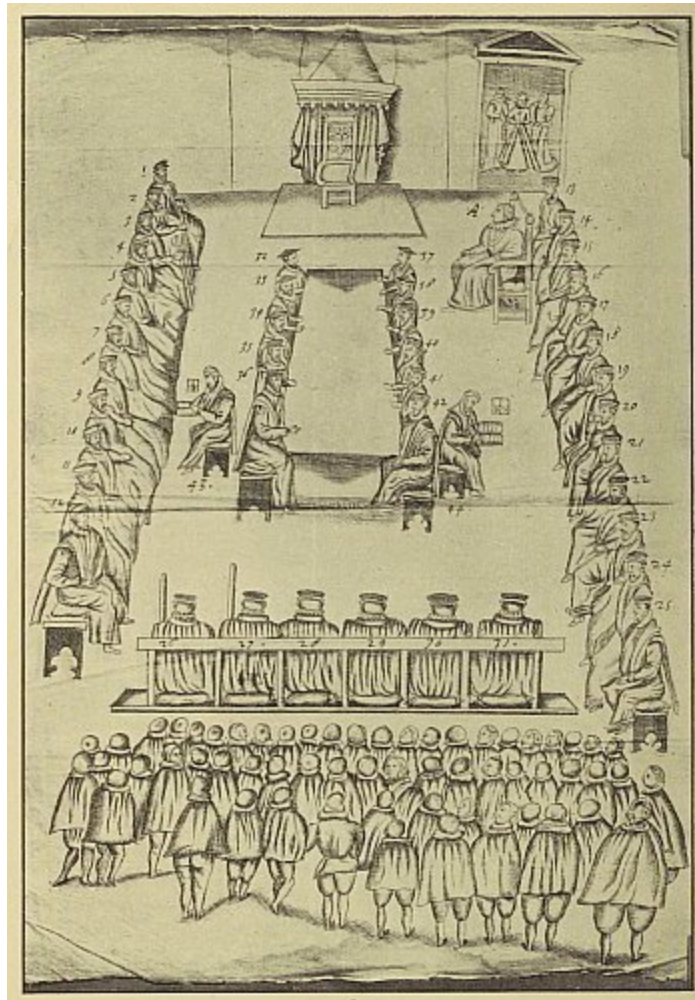
---

## CHAPTER III

### THE TRIAL

#### *The First Day*

THE large room destined for the trial was situated, as we have said, in close proximity to Mary's apartments, and immediately over the great hall of the castle. According to Bourgoing it was "very spacious and convenient." At the upper end stood the dais of estate, emblazoned with the arms of England, and surmounting a throne the emblem of sovereignty. In front of the dais, and at the side of the throne, a seat had been prepared for Queen Mary, "one of her crimson velvet chairs, with a cushion of the same" for her feet.



**Contemporary Drawing of the Trial of Mary Queen of Scots at Fotheringay.  
From the Calthorpe MS.**

[Enlarge](#)



also two clerks, whose duty it was to draw up the official report of the proceedings. The documentary evidence, such as it was, was arranged on the table. A movable barrier with a door divided the room into two parts, and at the lower end were assembled as spectators the gentlemen attendants and the servants of the Lords of Commission.

At nine o'clock the Queen made her entrance, escorted by a guard of halberdiers. She wore a dress and mantle of black velvet, and over her pointed widow's cap fell a long white gauze veil. Her train was borne by one of her maids of honour, Renée Beauregard. Mary was supported on each side by Melville and Bourgoing; and although, owing to the want of exercise and the severe rheumatism from which she suffered, she walked with great difficulty, it was with undiminished dignity of mien. She was followed by her surgeon, Jacques Gervais; her apothecary, Pierre Gorion; and three waiting-women, Gillis Mowbray, Jane Kennedy, and Alice Curle.

As the Queen advanced the Commissioners uncovered before her, and she saluted them with a majestic air; then, perceiving that the seat prepared for her was placed outside the dais and in a lower position, she exclaimed—

"I am a queen by right of birth, and my place should be there, under the dais;" but quickly recovering her serenity, she took her seat, and looking round at the assembled dignitaries, whose faces bore no sign of sympathy for their victim, she said mournfully to Melville—

"Alas! here are many counsellors, but not one for me."[\[32\]](#)

Her desolate position, without counsel to defend her, without secretary to take notes for her, despoiled even of her papers, must have seemed strange to Mary's generous nature. In Scotland the poorest of her subjects would have enjoyed the privileges now denied to herself.

Among the noblemen assembled to judge the Queen were some of her former partisans, such as my Lords Rutland, Cumberland, and others, who had taken a share in the late undertaking, and whose letters had been seized at Chartley, yet who now, to save their estates if not their lives, were forced to appear among her enemies. Very few of the English nobles were known to Mary by sight, and it was noticed that she often questioned Paulet, who was stationed behind her, regarding them. They on their side were doubtless

eager to see this princess, whose beauty was renowned, and who with courage equal to her sorrows now faced her judges with all the dignity of her happier days.

The Lord Chancellor opened the proceedings by a speech, in which he declared that the Queen of England, having been surely informed, to her great grief, that the destruction of her person and the downfall of her kingdom had been lately planned by the Queen of Scots, and that in spite of her long tolerance and patience, this same Queen continued her bad practices and had made herself the disturber of religion and the public peace, Her Majesty felt impelled to convoke this present assembly to examine into these accusations. In thus acting Her Majesty was actuated by no unkind feeling, or desire of vengeance, but solely by a sense of the duty imposed upon her by her position as sovereign and her duty to her subjects. Bromley stated that the Queen of Scots should be heard in declaring fully all that should seem good to her for her defence and to establish her innocence. Then turning to Mary, he concluded with these words: "Madame, you have heard why we have come here; you will please listen to the reading of our Commission, and I promise you that you shall say all that you wish."[\[33\]](#)

Mary replied in the following terms: "I came into this kingdom under promise of assistance, and aid, against my enemies, and not as a subject, as I could prove to you had I my papers; instead of which I have been detained and imprisoned. I protest publicly that I am an independent sovereign and princess, and I recognise no superior but God alone. I therefore require that before I proceed further, it be recorded that whatever I may say in replying here to the Commissioners of my good sister, the Queen of England (who, I consider, has been wrongly and falsely prejudiced against me), shall not be to my prejudice, nor that of the princes my allies, nor the King my son, or any of those who may succeed me. I make this protestation not out of regard to my life, or in order to conceal the truth, but purely for the preservation of the honour and dignity of my royal prerogative, and to show that in consenting to appear before this Commission I do so, not as a subject to Queen Elizabeth, but only from my desire to clear myself, and to show by my replies to all the world that I am not guilty of this crime against the person of the Queen, with which it seems I am charged. I wish to reply to this point alone, I desire this protest to be publicly recorded, and I appeal to



all the lords and nobles present to bear me testimony, should it one day be necessary."[\[34\]](#)

Bromley, in reply, utterly denied that Mary had come into the kingdom of England under promise of assistance from his mistress. He declared that he and his colleagues were willing to record the protest of the Queen of Scots, but without accepting or approving it. He affirmed that it was void and null in the eyes of the law, and should in no way be to the prejudice of the dignity and supreme power of the English sovereign, or to the prerogative or jurisdiction of the Crown. To this he called all present to bear witness.[\[35\]](#)

The Commission, which was drawn up in Latin, was now read aloud. At the end Mary protested energetically against the Commission and the laws upon which it was based,—laws which, she observed, had been framed expressly to destroy her just claims to the English throne and to bring about her death.

Gawdy, the Queen's sergeant, now rose, "having a blue robe, a red hood on the shoulder, and a round cap *à l'antique*," and with head uncovered, made a discourse explaining the Commission and the occasion which had caused it to be summoned. He discussed several points, namely, the seizure of Babington, the suspected correspondence between him and the Queen of Scots, and further details of the plot, mentioning the names of the six men who (as he declared) had conspired to murder Queen Elizabeth.

As soon as Mary had replied that she had never spoken to Babington, that, although she had heard him spoken of, she did not know him and had never "trafficked" with him, and that she knew nothing of the six men whom they had alluded to, another lawyer, in the same dress as Gawdy, rose and read "certain letters which they said Babington had dictated of his own free will before his death, from memory." These, and other *copies* of letters said to have passed between the Queen and Babington, were also shown, together with the confessions of the conspirators, and the depositions of Curle and Nau, which were declared to be signed by them.

The Queen protested against this second-hand evidence brought against her, and demanded to see the originals of the letters. "If my enemies possess them," said she, "why do they not produce them? I have the right to demand to see the originals and the copies side by side. It is quite possible that my ciphers have been tampered with by my enemies. I cannot reply to this

accusation without full knowledge. Till then I must content myself with affirming solemnly that I am guiltless of the crimes imputed to me. I do not deny," continued the Queen, "that I have earnestly wished for liberty and done my utmost to procure it for myself. In this I acted from a very natural wish; but I take God to witness that I have never either conspired against the life of your Queen, nor approved a plot of that design against her. I have written to my friends, I confess; I appealed to them to assist me to escape from these miserable prisons in which I have languished for nearly nineteen years. I have also, I confess, often pleaded the cause of the Catholics with the Kings of Europe, and for their deliverance from the oppression under which they lie, I would willingly have shed my blood. But I declare formally that I never wrote the letters that are produced against me. Can I be responsible for the criminal projects of a few desperate men, which they planned without my knowledge or participation?"

The whole morning from about ten o'clock was occupied in reading the depositions and letters of Babington, the accusers doing their utmost to make Mary appear guilty, "without any one saying a single word for her."

[\[36\]](#)

During the reading of the confession attributed to Babington, Mary was much moved by the allusion made therein to the Earl of Arundel and his brothers, as also to the young Earl of Northumberland; and she exclaimed with tears, "Alas! why should this noble house of Howard have suffered so much for me? Is it likely," continued she, "that I should appeal for assistance to Lord Arundel, whom I knew to be in prison? or to Lord Northumberland, who is so young, and whom I do not know? If Babington really confessed such things, why was he put to death without being confronted with me? It is because such a meeting would have brought to light the truth, that he was executed so hastily."

About one o'clock the Queen retired to take her dinner, after which she returned to the hall and the proceedings were resumed. Bourgoing describes so graphically the position of the Queen and her judges, that we give his own words:—

"Her Majesty having dined and returned to the same place, they continued to read aloud letters tending to the same end, the deposition and confession

of M. Nau and M. Curle written on the back of a certain letter and signed by them, and also some others touching her intelligence with them. Her Majesty replied first to one and then to another without any order, but on hearing any point read, would, without being interrogated by them, say whether it were true or not. For their manner of proceeding was always to read or speak to persuade the lords that the Queen was guilty. They always addressed the lords, accusing the Queen in her presence, with confusion and without any order, and without any one answering them a word, in suchwise that when we returned to her room the poor Princess told us that it reminded her of the Passion of Jesus Christ, and that it seemed to her that, without wishing to make a comparison, they treated her as the Jews treated Jesus Christ when they cried, '*Tolle, Tolle, Crucifige*'; and that she felt assured that there were those in the company who pitied her, and did not say what they thought."

In spite, however, of the vehemence of those "Messieurs les Chicaneux," as Bourgoing terms them, Mary preserved her calmness; and the hotter they grew, the more courageous and constant was she in her replies. She now recapitulated much of what she had before said to the Commissioners in her own room, in order that the assembly might know her sentiments; and after pointing out the injustice of her long imprisonment, she thus continues: "I have, as you see, lost my health and the use of my limbs. I cannot walk without assistance, nor use my arms, and I spend most of my time confined to bed by sickness. Not only this, but through my trials I have lost the small intellectual gifts bestowed on me by God, such as my memory, which would have aided me to recall those things which I have seen and read, and which might be useful to me in the cruel position in which I now find myself. Also the knowledge of matters of business which I formerly had acquired for the discharge of those duties in the state to which God called me, and of which I have been treacherously despoiled. Not content with this, my enemies now endeavour to complete my ruin, using against me means which are unheard of towards persons of my rank, and unknown in this kingdom before the reign of the present Queen, and even now not approved by rightful judges, but only by unlawful authority. Against these I appeal to Almighty God, to all Christian princes, and to the estates of this kingdom duly and lawfully assembled. Being innocent and falsely suspected, I am ready to maintain and defend my honour, provided that my

defence be publicly recorded, and that I make it in the presence of some princes or foreign judges, or even before my natural judges; and this without prejudice to my mother the Church, to kings, sovereign princes, and to my son. With regard to the pretensions long put forward by the English (as their Chronicles testify) to suzerainty over my predecessors the Kings of Scotland, I utterly deny and protest against them, and I will not, like a *femme de peu de cœur*, admit them, nor by any present act, to which I may be constrained, will I fortify such a claim, whereby I should dishonour those princes my ancestors as well as myself, and acknowledge them to have been traitors or rebels. Rather than do this, I am ready to die for God and my rights in this quarrel, in which, as in all others, I am innocent.

"By this you can see that I am not ambitious, nor would I have undertaken anything against the Queen of England through a desire to reign. I have done with all that; and as regards myself, I wish for nothing but to pass the remainder of my life in peace and tranquillity of mind. My advancing age and my bodily weakness both prevent me from wishing to resume the reins of government. I have perhaps only two or three years to live in this world, and I do not aspire to any public position, especially when I consider the pain and *désespérance* which meet those who wish to do right, and act with justice and dignity in the midst of so perverse a generation, and when the whole world is full of crimes and troubles." [\[37\]](#)

Burleigh, "no longer able to contain himself," here interrupted the Queen, reproaching her with having assumed the name and arms of England, and of having aspired to the Crown. "What I did at that time," replied Mary, "was in obedience to the commands of Henry the Second, my father-in-law, and you well know the reason."

"But," retorted Burleigh, "you did not give up these practices even after we signed the peace with King Henry."

"You made the arrangement to your own interest and advantage," replied Mary; "I was not thereby bound to renounce my rights, or to abandon them to my own great prejudice and that of my successors, receiving nothing in return. I owed you nothing. I was not dependent on your Queen, nor am I now, and I was not obliged to cede to her rights so important. If I had

shown such weakness I should have been always reproached with it as having acted to my own blame and dishonour."

"You have also," insisted Burleigh, "continued to assert your pretension to the English Crown."

"I have never," answered the Queen, "given up my rights; I do not now, and never will. I beg of you, before this assembly, not to press me to say more upon this matter, for I do not wish to offend any one. I pray you to be content. You and many here present know well the reasons which led me to act in this matter, and of which it is unnecessary to speak at present. I am not called upon to render you an account of my actions. You know well that I have been reasonable and have made generous offers. I have indeed offered more than I should have done. God and you know whether I have a right or not to the Crown of England. I have offered myself to maintain the rights of my sister Queen Elizabeth as being the eldest, but I have no scruple of conscience in desiring the second rank, as being the legitimate and nearest heir. I am the daughter of James V., King of Scotland, and granddaughter of Henry VII. This cannot be taken from me by any law, or council, assembly, or judgment, nor consequently can my rights. I know well that my enemies and those who wish to deprive me of those rights have done up till now all that they can to injure me, and have essayed all illegitimate means, even to attempting my life, as is well known, and has been discovered in certain places and by certain persons whom I could name, were it necessary; but God, who is the just Judge, and who never forgets His own, has until now, in His infinite mercy and goodness, preserved me from all danger, and I hope that He will continue to do so and will not abandon me, knowing that He is all truth, and that He has promised not to abandon His servants in their need: He has extended His hand over me to afflict me, but He has given me this grace of patience to bear the adversities which it has pleased Him to send me. I do not desire vengeance. I leave it to Him who is the just Avenger of the innocent and of those who suffer for His name, under whose power and will I take shelter. I prefer the conduct of Esther to that of Judith, although both are approved by the Church. I pray God to do with me according to His good pleasure, to His praise and honour, and to the greater glory of His Church, in which I wish to live and die, in which I have been brought up and educated, and for which (as I have already protested several times) I would shed my blood to

the last drop, being resolved to suffer all that God wishes. I do not fear the menaces of men. I will never deny Jesus Christ, knowing well that those who deny Him in this world, He will deny before His Father. I demand another hearing," continued Mary, "and that I be allowed an advocate to plead my cause, or that I be believed on the word of a queen.... I came to England relying upon the friendship and promises of your Queen. Look here, my lords," she exclaimed, drawing a ring from her finger; "see this pledge of love and protection which I received from your mistress—regard it well. Trusting to this pledge, I came amongst you. You all know how it has been kept."

After having recorded this noble speech of his mistress, Bourgoing thus continues his narrative: "As they read aloud at intervals letters from Babington to Her Majesty and from her to Babington, she utterly denied *tout à plat* having ever seen and received any such letters, much less of having replied to them."

Mary's judges of course laid much stress on this charge, the capital point in the accusation, and produced ciphers and other letters, and the depositions of those who were examined (as well as those of Curle and Nau), to prove that the Queen had received and answered Babington's letter, and that she was consequently accessory to the proposed assassination of Queen Elizabeth.

Mary was now closely questioned regarding the passage in her reputed letter to Babington which referred to "the four horsemen who were appointed in London to inform her when the blow fell," but replied that she did not know what it meant.

Turning to Walsingham (who had made some remarks), the Queen continued: "It is easy to imitate ciphers and handwriting, as has been lately done in France by a young man who boasts that he is my son's brother. I fear that all this is the work of Monsieur de Walsingham for my destruction: of him who I am certain has tried to deprive me of my life, and my son of his. As to Ballard, I have heard him spoken of. Information reached me from France that he was a very firm Catholic, and that he wished to serve me; but I was also told that he had 'great intelligence' with Monsieur de Walsingham, and that I must be on my guard. I know nothing more about



him. I protest that I never even thought of the ruin of the Queen of England, and that I would a hundred times rather have lost my life than see so many Catholics suffer for my sake and be condemned to a cruel death through hatred to my person." In saying these words Mary burst into tears.

"No faithful subject," exclaimed Burleigh, "has ever been put to death on account of religion. Some have been for treason, because they maintained the Bull and the authority of the Pope against that of our Queen."

"Yet I have heard just the contrary," said Mary, "and read so in printed books."

"The authors of such books," retorted Burleigh, "also declare that the Queen has forfeited the royal prerogative." When Burleigh ceased speaking, Walsingham, who keenly felt the Queen's accusation, rose, and bowing his head addressed her, assuring her that she had been misinformed as to his sentiments.

"I protest," said he, "that my soul is free from all malice. God is my witness that, as a private person, I have done nothing unworthy of an honest man, and as Secretary of State, nothing unbefitting my duty. You have been told that I wish you ill, that I have often said things to your disadvantage, that I have confessed myself to be your enemy, nay, even that I planned that the death of yourself and your son should happen on the same day; but I assure you that I bear ill-will to no one, I have attempted no one's death. I protest that I am a man of conscience and a faithful servant to my mistress. I confess," continued Walsingham, "that I am ever vigilant regarding all concerning the safety of my Queen and country; I have closely watched all conspiracies against either. As for Ballard, if he had offered me his assistance I could not have refused it, and should probably have rewarded him. If I had any secret dealings with him, why did he not declare them in order to save his life?"

The Queen, impressed by his denial, assured Walsingham that she paid no attention to what she had heard against him, and had not believed it, adding that she implored him to give no more credit to those who calumniated her, than she gave to those who accused himself. "If you were not received in Scotland as you merited," continued Mary, "it was no fault of mine; I do not think that you wish to revenge yourself upon me, who knew nothing of it."

She then declared that some of the ciphers were hers. "There had been others older and some more recent," she said, "but this is nothing, for people can use the same cipher on occasions, according to the correspondence they have in different places, and for this reason it is possible that Morgan, who formerly served me, may have used my ciphers, in consequence of the connections which he has with the other princes."

At the name of Morgan, Burleigh, with his usual vehemence, reproached the Queen. "You know well, madame," said he, "that Morgan professes to be your servant, and you have pensioned him, although you are well aware that he plotted the death of the Queen along with Parry, for which crime he is still a prisoner in France, having been pursued and accused by Lord Derby, in the name of Her Majesty."

"You know well," replied Mary, turning towards the audience, "that I have not joined in this undertaking, nor suborned any one." At this appeal several gentlemen present declared loudly that she was entirely innocent of such a crime. "You see by this," continued Mary, "the evil will of some of your Queen's councillors towards me. If any one has undertaken anything against the person of the Queen, it is not I. For long people have conspired against her, of which you have had many proofs. I am grieved that Morgan should have mixed himself up with such matters, but I cannot answer for his actions. I cannot do less than aid him in his necessities in recognition of his services, which I shall never forget, in the same way that I aid others who have assisted me."

As Burleigh still insisted that Morgan was Mary's pensioner, she again denied it, adding that she had desired money to be given to him from time to time for his use; "but," continued she, "has not England pensioned Patrick Gray and other Scotsmen, my enemies, and even my son himself?" "It is true," replied Burleigh, "that, through the negligence of its Regent, the revenues of Scotland are so diminished that the Queen in her goodness has made some gifts to your son, the King of Scotland, who is her own relation." After this avowal Burleigh let the matter drop, and fresh discussions regarding the confessions of Nau and Curle now arose.

Mary's judges maintained that the Queen's secretaries had confessed that their mistress had received "certain letters," and that she had replied to

them, that they had done everything by her command, that they had written nothing without communicating it to her, as was her custom, as she allowed nothing to be produced without her knowledge. Thus Mary's "direction" of the conspiracy was proved, they declared, and it was "by her command that the secretaries wrote in her cabinet, where the despatches were made up, and that this was done generally in her presence; that after writing them they read them to her, that the despatches were closed and sealed in her cabinet, and that they had often tried to deter her from such enterprises."

Keenly aware of the injustice of this second-hand manner of producing evidence, the Queen protested. "Why," said she, "are not Nau and Curle examined in my presence? they at any rate are still alive. If my enemies were assured that they would confirm their pretended avowals, they would be here without doubt. If they have written, be it what it may, concerning the enterprise, they have done it of themselves, and did not communicate it to me, and on this point I disavow them. Nau, as a servant of the King of France, may have undertaken things not according to my wishes; he had undertakings that I did not know of. He confessed publicly that he belonged to the King of France, that he did not depend on me, and would only do for me what he thought good. He often complained of me because I could not consent to many of his projects, and would not authorise them. I know well that Nau had many peculiarities, likings, and intentions, that I cannot mention in public, but which I much regret, for he does me great injustice. For my part, I do not wish to accuse my secretaries, but I see plainly that what they have said is from fear of torture and death. Under promise of their lives, and in order to save themselves, they have excused themselves at my expense, fancying that I could thereby more easily save myself; at the same time, not knowing where I was, and not suspecting the manner in which I am treated. For more than twelve months Nau has not written in his own cabinet; he has hid himself from every one, and has written his despatches in his own private room, for his own convenience and to be more at his ease, as he said, as Sir Amyas and all the household can attest.

"As to Curle, if he has done anything suspicious, he has been compelled to do it by Nau, whom he feared much to displease, and to avoid whom he fled. And yet," added the Queen, "I do not think either the one or the other would have forgotten himself so far. As I was ill during most of the time, I

could not attend to business, and generally I did not know what they were doing, but trusted to Nau."

"It is true," replied Burleigh, "that Nau avows himself a subject of the King of France; but he has been Secretary to the Cardinal of Lorraine, and he is the sworn servant of your Grace. He obeys your commands. It is of his own free will, and without being in any way constrained, that he has made his depositions, to which he has sworn, and written them and signed them with his own hand."

"No doubt he was Secretary of the King," returned Mary, "and received wages from him, terming himself his banker in this country, and under this pretext he was very disobedient to me. I commanded him, it is true, and in a general way supported his doings, as all princes are accustomed to do, but it is for him to answer for his private doings; I cannot but think he has been acting under constraint in this matter. Feeling himself to be feeble and weak by nature, and fearing torture, he thought to escape by throwing all the blame on me. A criminal is not allowed to be sworn, and his assertions are not believed; his oath is worthless. The first oath which he has taken to his master renders all others null and void; and Nau can make none that can prejudice me. And I see well," continued Mary, examining one of the written depositions attributed to Nau, "that he has even not written or signed as he is accustomed to do, supposing that, as you all affirm, he has written it with his own hand; may it not be that while translating and putting my letters into cipher, my secretaries may have inserted things which I did not dictate to them? May it not be also that letters similar to those now produced, may have come to their hands without, however, my seeing them? The majesty and safety of princes would be reduced to nought, if their reputation depended upon the writing and witnesses of their secretaries. I dictated nothing to them but what nature herself inspired me, for the recovery at last of my liberty. I can only be convicted by my words or by my own writings. If, without my consent, they have written something to the prejudice of the Queen, your mistress, let them suffer the punishment of their rashness. But of this I am very sure, if they were now in my presence, they would clear me on the spot of all blame, and would put me out of case. Show me, at least, the minutes of my correspondence written by myself; they will bear witness to what I now assert."

The Queen's defence, so clear and unanswerable, silenced for a time the accusers, and they took refuge in insult. "Then," says Bourgoing, "the Chicaneurs made a great noise, calling out and striving to prove and exaggerate the facts, with fury repeating all that had been said or written,—all the circumstances, suspicions, and conjectures. In short, all the reasons they could imagine were brought to the front to make their cause good, and to accuse the Queen without allowing her to reply distinctly to what they said. Like 'madmen' they attacked her, sometimes one by one, sometimes all together, declaring her to be guilty, which gave occasion to Her Majesty to make a very noble speech on the next morning."[\[38\]](#)

Thus ended the first day of the trial. No notice was taken of the Queen's demands. Her secretaries were never examined in her presence, and her own notes, so earnestly begged by her, were never produced. It was declared later on, indeed, in the star-chamber, that these notes had been destroyed by Mary's own order, but no one dared assert this before herself. Our readers will probably agree with M. Hosack, who thus admirably sums up the result of this day's work:—

"It cannot be denied that, even according to their own account, she had maintained throughout a decisive superiority over her opponents. Without counsel, or witnesses, or papers, and armed with nothing but her own clear intellect and heroic spirit, she had answered, point by point, all their allegations. Knowing the weakness of their proofs, they had artfully mixed up the charge of conspiracy with the scheme of invasion; and Burleigh, taking upon himself the functions of Crown prosecutor, had sought to draw her attention from the main question in dispute, by dwelling on a variety of topics, which were only intended to bewilder and confuse her. But apparently perceiving his design, she brought him back again and again to the real point at issue between them."[\[39\]](#)

---

## CHAPTER IV

### THE TRIAL

#### *The Second Day*

THE Queen passed an anxious and sleepless night in preparation for the morrow's attack. She commenced the day in prayer, in her oratory, imploring strength to defend her honour and her life.

As on the previous day, Mary entered the hall attended by Bourgoing, and accompanied by Melville and others of her attendants. She was very pale, but her countenance expressed unabated firmness and resolution. It is to be noted that on this occasion neither the Attorney-General nor the Queen's Sergeant took part in the proceedings. Either Burleigh was dissatisfied as to the way in which things were going, or he desired to show his own legal skill, and had determined to take upon himself the entire management of the trial,—a departure from the established usage, unheard of in any other state trial of the period.

It was known that the Queen wished to address the assembly, and as soon as she was seated all approached in silence, and with bare heads, "in great curiosity to hear her."

"I beg permission, gentlemen," said she, "to speak freely and to say all that I think necessary, and without being interrupted, according to the promise made to me yesterday by the Chancellor in the name of all this assembly. The manner in which I am treated appears to me very strange; not only am I brought to this place to be tried, contrary to the rights of persons of my quality, but my case is discussed by those who are not usually employed in the affairs of kings and princes. I thought only of having to reply to gentlemen who have virtue for their guide, and who hold the reputation of princes in honour; to those who devote themselves to the protection of their



princes, to the preservation of their rights, and to the defence of their country, of which they are the guardians and protectors.

"Instead of this, I find myself overwhelmed under the importunity of a crowd of advocates and lawyers, who appear to be more versed in the formalities of petty courts of justice, in little towns, than in the investigation of questions such as the present. And although I was promised that I should be simply questioned and examined on the one point,—that, namely, concerning the attempt on the person of the Queen,—they have presumed to accuse me, each striving who should surpass the other in stating and exaggerating facts, and attempting to force me to reply to questions which I do not understand, and which have nothing to do with the Commission. Is it not an unworthy act to submit to such conduct of such people, the title of a princess, one little accustomed to such procedures and formalities? and is it not against all right, justice, and reason to deliver her over to them, weak and ill as she is, and deprived of counsel, without papers, or notes, or secretary? It is very easy for many together, and, as it appears to me, conspiring for the same object, to vanquish by force of words a solitary and defenceless woman. There is not one, I think, among you, let him be the cleverest man you will, who would be capable of resisting or defending himself, were he in my place. I am alone, taken by surprise, and forced to reply to so many people who are unfriendly to me, and who have long been preparing for this occasion; and who appear to be more influenced by vehement prejudice and anger than by a desire of discovering the truth and fulfilling the duties laid down for them by the Commission.

"If, however, I must submit to this treatment, I ask, at least, that I may be permitted to reply to each person and to each point of the accusation separately, and one after the other, without confusion; as, on account of my sickness and weakness, it is impossible for me to refer back in detail, as I should wish, to such a mass of subjects all advanced confusedly together. In any case I demand that, as this assembly appears to have been convened for my accusation, another shall be summoned in which I may enter freely and frankly, defending my rights and my honour, to satisfy the desire I have of proving my innocence."

"It is quite right," replied Burleigh, "that your Grace should say all that you wish, and you shall do so. As for those who interrogated you yesterday, they

acted according to their duty. To discover the truth of facts it is necessary to discuss all questions which relate to the case in hand; as regards your demand that a fresh assembly should be convoked, it shall be seen to, but we ourselves have not the power to grant it."

This moderate speech is in character with what Bourgoing specially notices, namely, the temporary change in the demeanour of the accusers. "All this morning," he tells us, "the pettifogging lawyers showed themselves more modest, and not only this, but the Treasurer gave them hints by signs how to act, making them speak or be silent according as he wished. From this," continues Bourgoing, "we took occasion to hope that the proceedings would soon come to an end, especially as we observed that most of the noblemen had come to the assembly booted, and some even in riding dress."

The forenoon passed in discussions very similar to those of the previous day, "concerning rather the overthrow of the Queen by strangers, the correspondence of Her Majesty with the Christian princes, and her deliverance from prison," than bearing upon the real question at issue, the attempt on Elizabeth's life. The same wearisome questions were met by the same dignified answers, and Bourgoing gives many interesting details which are not recorded in the English reports of the trial.

Burleigh took pains to persuade Mary once more of the great favours which had been shown to her, assuring her again that the Commission could have examined the proofs in her absence; and protesting that although they desired to examine her only regarding the one point of accusation, it was necessary, for the full knowledge of the truth, to read the whole correspondence brought in evidence against her.

"The circumstances may be proved," returned Mary, "but never the fact itself. My innocence does not depend on the reputation, or on the memory, of my secretaries, although I hold them to be honest and sincere. It is possible for letters to be sent to other persons than those to whom they were written, and several things have been inserted in those letters which I did not dictate. If my papers had not been taken from me, and if I had a secretary, I could better refute the accusations brought against me."

"You will be accused of nothing previous to 19th June," continued Burleigh, "and your papers would be of no use to you. Your secretaries and the chief

of the conspiracy himself (who were never put to the torture) have affirmed that you sent certain letters to Babington; and although you deny this, it is for the Commissioners to judge whether they should place more faith in an affirmation or in a denial.

"But to return to the present question. You have formed many plans for your deliverance. If they have not succeeded, that is your own fault and not the fault of my mistress, for the Scotch lords have refused to place their King under guardians again. At the very moment that the last treaty for your freedom was concluded, Parry, one of your own servants, was secretly sent by Morgan to assassinate the Queen."

Mary exclaimed, "You are indeed my enemy."

"Yes," replied Burleigh, "I am the enemy of the enemies of Queen Elizabeth."

Letters from Mary to Charles Paget referring to the projected invasion were now read, and one from Cardinal Allen to the Queen, in which he addressed her as his sovereign, and informed her that the matter was recommended to the Duke of Parma.

While this was going on Mary examined the faces of her judges, and questioned Paulet (who was seated behind her) regarding the names of those she did not know, carefully noting "who spoke much and who spoke little or kept silence."

As soon as the reading was finished Burleigh accused the Queen of having proposed to send her son to Spain, and of transmitting to Philip the Second her "pretended rights" to the Crown of England.

"I have no kingdom to confer," replied she, "but I have a legal right in giving what belongs to me, and on this point I have to answer to no one, be it who it may."[\[40\]](#)

Later on Mary was again reproached by the lawyers with having relations with the King of Spain.

"It is not your affair," replied she, in a tone of authority. "It is not your affair to speak of matters concerning princes, and to inquire whether they have

secret intelligences with each other."

"I do not blame you for this," said Burleigh; "but if the Spanish army had entered the country, could you have answered for the life of the Queen? Would not the country have been in danger of falling into the hands of strangers?"

"I do not know what were their intentions," returned the Queen, "nor am I bound to answer for them; but I am very sure that they would have done something for me, and if you had wished to employ my services I should have been able to bring about a good understanding between you and them, as I have often offered to do. You should not have refused my offers. If you destroy me you will place yourselves in danger, and will receive more harm than good. Of all that has been done by strangers I know nothing and am not responsible. I desired nothing save my own deliverance."

Unmoved by Mary's words, the lawyers redoubled their accusations. They declared again that the murder of the Queen, of her councillors and principal noblemen, had been determined upon; that the intention had been to burn down Chartley and kill the guards; that all the Catholics were to rise and place the Queen of Scots on the throne; that in Rome Mary was prayed for publicly, as legitimate Queen of England, together with other things of the same nature. To this Mary replied as follows:—

"I know nothing of any murder or attempt against any one, nor of any plot or invasion of the kingdom. As I have already said, I gave you sufficient warning to beware of some such enterprise, for I was sure that something was in preparation, though I knew not what. It was always hidden from me, as it was well known I should not consent to it, and also because they feared that it would injure me. These conspirators may have used my name to authorise their proceedings and strengthen their cause, but there is no letter written or signed by me; there is no one who has seen such a thing or received it, or who has communicated or spoken with me, and such a thing has been far from my intentions.

"You know very well," continued Mary, "that in my own kingdom I never interfered with any of the Protestants, but, on the contrary, tried to win them always by gentleness and clemency, which I carried too far, and for which I have been blamed. It has been the cause of my ruin, for my subjects became

proud and haughty, and abused my clemency; indeed, they now complain that they were never so well off as under my government.

"As to Chartley, I never heard of the proposal to burn it, but my deliverance was promised. If the foreign princes were in league, it was to free me from my prison, from which I could not escape; and for the same reason they prepared armed men to receive and defend me. If the Catholics offered their aid in this matter, which I know not, it was in their own interest, as they are so wickedly treated, oppressed, and afflicted in this country that they have fallen into despair, and would as soon die as live longer under the persecution which they suffer. You gain nothing by afflicting them or me; I am but a single person. When I die the Catholics and foreign princes will continue to act, unless you cease to persecute them.

"As regards my wishing to take the place of the Queen, the very letters you have read aloud sufficiently prove the contrary. In them I expressly declare that I desire no honours or kingdom, that I do not care for them, and that I beg no enterprise of the kind may be undertaken for me; but for the Catholic cause and for God's quarrel I desire the deliverance of the first and the defence of the second. In short, you will find that I have no other desire than the overthrow of Protestantism and the deliverance of myself and the afflicted Catholics, for whom (as I have often said) I am ready to shed my blood. I shall esteem myself very happy if God gives me the grace to suffer and to endure death for His holy name and in the defence of His quarrel. If the Pope gives me the title of Queen, it is not for me to correct him. He knows what he does much better than I do.

"I thank him, all Christian people, and all Catholic nations for the prayers they daily offer for me, and I pray them to continue to do so, and to remember me in their masses. As I belong to the number of the faithful, I hope that though now deprived of the power of assisting myself, I participate in all the prayers and good works offered in the Church for all Catholics. As regards the Bull, I myself offered to prevent its execution."

Burleigh here asked her whether she had the power to do this. "But we do not care," said he, "about it in England. We make no account of the Pope, or of such like."

"If you will cease to persecute the Catholics," replied Mary, "I promise you to do much to lessen the many troubles into which you are in danger of falling."

To this Burleigh replied that "*no Catholic had been punished for religion.*"

At this assertion the Queen protested in earnest terms against the many cruelties shown to Catholics. They were driven into exile, she said, and driven hither and thither. The prisons in England were full of them. They were charged with being guilty of treason; some because they would not obey certain of the Queen's injunctions which were contrary to their conscience, others because they would not recognise her as the head of the Church. Queen Mary also complained in general terms of the unjust way in which the present examination had been conducted, and asked that she might not be further disturbed by the unnecessary reading of letters and other documents, especially such as related to her transactions with other Christian princes, to which she declined to reply.

"If it pleases your Grace," interrupted Burleigh, "you can now withdraw; we will remain and conclude without you."

The Queen paid no attention to this remark, and the discussions proceeded. At last Egerton, the Solicitor-General, speaking for the first time, asked the Queen if she had anything more to add to her defence.

"I again demand," replied she, "to be heard in full Parliament, and to confer personally with Queen Elizabeth, who would show more regard to any other queen." Then rising from her seat[\[41\]](#) to depart, Mary added:—

"I am ready and willing to give pleasure and do service to the Queen, my good sister, and to employ myself for her and for the good of the kingdom in all that I can, as I love both. I protest that after all that has taken place I desire no evil to any one in this assembly, that I pardon all that you have said or done against me, and that there is not one here to whom I do not desire good, and would willingly give pleasure."

Turning then to a little group of lords, of whom Walsingham was one, the Queen discussed the conduct of her two secretaries, and the motives which could have inspired their depositions. Taking Walsingham apart, Mary said a few words to him in private, which seemed far from pleasing to him, then

turning once more to the assembly, she exclaimed with dignity, "My lords and gentlemen, my cause is in the hands of God."

As Mary passed the table at which were seated the lawyers, she also addressed them: "Gentlemen," said she, with a smile, "you have shown little mercy in the exercise of your charge, and have treated me somewhat rudely, the more so as I am one who has little knowledge of the laws of quibbling; but may God pardon you for it, and keep me from having to do with you all again."

"The lawyers turned and smiled to each other, and Her Majesty did likewise."[\[42\]](#)

After their prisoner had withdrawn, the Commissioners were prepared to give sentence, but at the last moment Burleigh communicated to them Elizabeth's latest instructions, contained in a letter sent from Windsor on the 14th at midnight. In it Elizabeth desired the assembly, even in the event of the prisoner being found guilty, to suspend sentence until she herself should hear and consider their report.

The assembly therefore was prorogued for the space of ten days, and appointed to meet in the star-chamber at Westminster. The Commissioners (many of whom regretted this delay in passing sentence) lost no time in departing, the greater part of them returning to their houses in the neighbourhood until the 29th instant, when, as Bourgoing informs us, "it is said they returned to London to assist at Parliament, then assembling."

Thus terminated a trial which in legal history has probably no counterpart, and regarding which the following points especially strike us: the incompetence of the English tribunals, as then constituted, to judge an independent sovereign; the refusal of counsel to the prisoner, in violation of the laws of England, and in especial of the statutes of Mary Tudor, and Elizabeth; the absence of the witnesses, whose presence in face of the accused was essential to all just procedure; the forced position of Mary, not before independent and trustworthy judges, but before Commissioners carefully chosen beforehand, and who, combining the offices of judge and jury, united in endeavouring to nullify the defence.



At Fotheringay we find the prisoner standing alone before her judges. At Westminster the witnesses appear in the absence of the accused, while at neither is a single original document produced; copies, not of written letters, but pretended copies from ciphers were admitted and believed on the faith of men whose confessions were drawn from them by fear of torture or documents forged by Philipps. Such was the evidence by which Mary was tried and condemned.

---

## CHAPTER V

### SUSPENSE

**A**LTHOUGH Bourgoing's Journal furnishes us, for the first time, with some details of the Queen's life during the days following the conclusion of the trial, it is provokingly silent as to the manner in which she passed the remainder of the day itself. All he notes is, that "after supper Sir Amyas sent the copy of her protest to Her Majesty."

Sir Amyas, we may suppose, spent his evening in congenial company, for at least one guest of importance remained in the castle. Burleigh writes to Secretary Davison from Fotheringay on the same evening, and the following extracts from his letter show the spirit in which he had carried out his Commission.

"The Queen of the castle," he writes, "was pleased to appear before us in public, so as to be heard in her own defence; but she only replied negatively upon the points in the letters regarding the plots against Her Majesty. She maintained that they had not been written by her, and that she had never had the smallest knowledge of them. In the other things with which she was reproached, as her escape from prison, even by force, and as to the invasion of the kingdom, she said that she neither denied nor avowed them. But her intention was, by long and artificial speeches, to excite the pity of the judges, to throw all the blame upon the person of Her Majesty the Queen, or rather upon the council, from whom she said all the past troubles emanated; maintaining that her offers were reasonable, and that the refusal came from our side. And on this point I fought, and refuted her arguments in such a manner, by my knowledge and experience, that she did not have the advantage she had promised herself. I am also certain that the audience did not think her position worthy of much pity, her allegations being proved to be untrue."[\[43\]](#)

Knowing Paulet's sympathies to be entirely with Mary's accusers, it is astonishing to find that his conduct to her at this moment shows signs of unwonted kindness and consideration. He, says Bourgoing, "now treated the Queen courteously, furnished her with the necessary things for her comfort in her lodgings, to which he added the same hall which had served for the examination, and his conversation with her was of good manners, and was rather amiable and courteous than the contrary." Then this faithful servant goes on to tell us how his mistress comforted herself during the weeks of suspense that followed. "Her Majesty, during the whole of this time, was far from being troubled or moved by all that had passed; in fact, I had not seen her so joyous, nor so constantly at her ease, for the last seven years. She spoke only on pleasant subjects, and often, in particular, gave her opinion on some points of the history of England, in the study of which she passed a good portion of the day; afterwards discoursing on the subject of her reading with her household, quite familiarly and joyously, showing no sign of sadness, but with even a more cheerful countenance than previous to her troubles."[\[44\]](#)

Mary had always had a taste for history, and now in the long days of captivity she seems to have given much of her time to this favourite study. The history of her own house, as well as that of the English royal family, must have had a deep and painful interest for her at a moment when she herself was threatened with a fate as tragic as any recorded in its darkest pages. In talking over the subject of her reading Mary would often advert to her own affairs, calmly discussing the probabilities, and showing that she expected the worst, of her own life or death, without showing any emotion,—indeed, "her resolution was that she did not fear to die for her good quarrel," adds Bourgoing; and if her people tried to assure her that her death could never be contemplated, she would say that she knew very well what would happen. Mary, in fact, perceived plainly the intentions of her accusers, and not content with her own courageous dispositions, she took pains to acquire all the bodily strength possible before the day of trial. In her physician's quaint language, "Her Majesty took remedies for five or six days to ward off the illness which generally attacked her at the commencement of winter, and this with as much willingness and cheerfulness as she ever did before."

Thus the days passed until the Feast of All Saints. As the Queen was still deprived of her chaplain, she was unable to keep the feast with the solemnity she would have wished. She passed it, however, in prayer and in reading the lives of the saints and martyrs. After dinner, while she was in her oratory, Sir Amyas wished to visit her, and unwilling to disturb her, "waited till Her Majesty had finished her prayers;" then, still with unwonted courtesy, he conversed for a considerable time with her, "as if he had nothing really to say to her, and hardly knew with what to entertain her." Sir Amyas, however, had his instructions from Queen Elizabeth, and under semblance of an ordinary conversation, his object was, if possible, to discover some sign of weakness or relenting in his prisoner's sentiments. In this he was disappointed. Mary spoke cheerfully on general subjects,—about her health, which she said was improved; and about her reading, which provided her with her chief amusement. Speaking of the history of England, she observed that in that country blood had never ceased to flow; to which Paulet replied that it had been the same in other countries, and that nothing was more necessary when a state was threatened with serious perils.

Mary, paying no attention to the significance of these words, alluded to the trial, and said that she had remarked visible signs of sympathy and compassion on the countenances of several of the Commissioners, and that she would like to know their names, that she might always bear them in grateful remembrance.

"Those who accused you and those who kept silence were all actuated by the same sentiments," retorted Paulet. "Not one of them was favourable to your cause. I marvel," continued Paulet, "and every one else is astonished, to see you so calm, under the circumstances in which you find yourself. No living person has ever been accused of crimes so frightful and odious as you are."

"I have no occasion to feel troubled or disturbed," rejoined the Queen; "my conscience is at rest and I have already answered my accusers. God and I know that I have never attempted nor connived at the death or murder of any one. My conscience is perfectly free and clear on this point, and being innocent, I have rather occasion to rejoice than to be sad, having my confidence in God, the protector of the innocent."

"It is a great happiness," replied Sir Amyas, "to have a clear conscience. God is your witness, but a false and dissimulating conscience is a bad thing; it would be better to confess and repent before God, and the world, if you are guilty, which is indeed too evident, the matter having been so well elucidated in your very presence, as you cannot deny."

"No one can say that he is free from sin," answered the Queen. "I am a woman and human, and have offended God, and I repent of my sins, and pray God to forgive me, doing penance for the same; but at present I do not know to whom I could or should confess—God forbid that I should ask you to be my confessor. In the present matter I am not guilty, as you well know, and I cannot therefore confess it. You will accuse me of what you like, having long had this in view; as I am a Catholic, you wish to treat me as you do the others. I am quite prepared and resolved to die for my religion, and ask for nothing better. I am ready to suffer and endure for the name of God, all unworthy as I am, as have done many holy saints and martyrs, of whom I have read to-day, and whose feast we celebrate."

Sir Amyas protested that there was no question of religion, but of invasion and murder, and that neither Mary nor all the others who might be implicated in the matter could be excused, but were well worthy of punishment.

"It is nothing else," returned the Queen, "but it was necessary to find some other disguise for the measures which had led to this position; but I shall not fare the worse for that. Do not spare me."

In reply Sir Amyas insisted that it was not for religion, and that no one had yet been punished for religion. Further he declared that he knew nothing of what the lords had done, but that they had found the facts so clear and evident that it was reported that they had given sentence, but he did not know of it. Nothing was certain. And he again urged the Queen to confess.

To this Mary rejoined as before, and added that she knew well that she had been already condemned by her judges before the trial. All that they did here," continued she, "was merely for form's sake, to give a colouring of truth to the proceedings, and to gain their ends, in which I am not bound to acquiesce, and I care nothing for what they have done; it is very easy for brigands and robbers, when they are the strongest, to overcome by force

those who pass their way. My enemies keep me in prison, and it is very easy for them to dispose of me as they will. They have strength on their side, while I am weak and alone. I would that every one knew how I am treated and how my affairs are managed."

"You would be very sorry if every one knew," retorted Sir Amyas, "but a matter of this kind cannot be kept quiet or concealed. No sentence or judgment had been delivered before the coming of the lords here."

The Queen remarked that she wished all Christian princes and foreigners could witness how she had been treated, not for her own sake, but for the confusion of her enemies, and for the sake of those of the Catholic Church; for her enemies had not ceased to persecute the poor Catholics, under the pretext that they were traitors because they would not recognise the Queen of England as supreme head of the Church. "For myself," continued she, "as I have already declared before many, I recognise no other head of the Church than the Pope, to whose rule it was confided by the consent of the whole Church duly assembled."

Sir Amyas said that the Queen did not take the title of supreme head of the Church. "God forbid," added he, "that there should be any other supreme head than Jesus Christ. I recognise no other."

"It is on this point alone that the exclusion of Catholics is founded," replied Mary, "and it is a well-known fact that, following the example of Henry the Eighth, this title was given to your mistress. As you may believe, the Calvinists, who are the most reformed, do not approve of this, but those who follow the Queen's religion, who are Lutherans and the inventors of that sect, consider guilty of high treason all those who deny her prerogatives. Not only have those been judged to be guilty who do not recognise the Queen's title, or who deny it by words or by acts, but they have been forced to declare their opinion on their conscience, and on their reply have been condemned to death. If the Queen of England may not wish to accept the title, she at least knows well that it is given to her, and the person who does not give it is looked upon as guilty."

Sir Amyas, shaking his head ironically, once more protested that his mistress did not accept such a title, nor was it given to her. He allowed, however, that the Puritans and others acknowledged her as "head and

governor under God of things ecclesiastical and temporal in England, as it was reasonable she should be, but not as supreme head of the Church."

"It all comes to the same thing," returned the Queen, "whatever colour you may give it, and for the rest, I care nothing for your sentences; go, proceed as you like. I know at your age you would not assert such things unless you were backed by others."[\[45\]](#)

"Sir Amyas pretended that this was not so, and reassured the Queen as well as he was able," says Bourgoing, "and on his departure we formed the opinion from certain conjectures, that he was going to write Her Majesty's replies to the Court." We find him accordingly writing to Walsingham as follows:—

"I took occasion yesterday, after one, accompanied by Mr. Stallenge, to visit the Queen.... I see no change in her, from her former quietness and serenity, certified in my last letters.... I tarried with her one hour and a half at the least; which I did on purpose to feel her disposition, and moving no new matter myself, suffered her to go from matter to matter at her pleasure.... This only thing I thought good to signify unto you that, falling in talk of the late assembly here, and having glanced at the Lord Zouch for his speech in the star-chamber, and also at the Lord Morley for some things delivered by him to the lords sitting next unto him, which she said she overheard and told him of it in the open assembly, she was curious to be informed of the names of one such sitting in such a place, and of others sitting in other places, saying that one had said little, another somewhat more, and others very much. I told her that I might easily perceive, by her hard conceit of the lords which she had named already, she was much inclined to think ill of all those that spake, and therefore I would forbear to name any man unto her; praying her to conceive honourably of the whole assembly, and to think that those which spake, and the rest which were silent, were of one consent and mind to hear her cause with all indifference."[\[46\]](#)

That Paulet dreaded his interviews with Mary, and tried to evade them as far as possible, we have his own evidence. "I pray you," he writes to Walsingham on the same day, "let me hear from you whether it is expected that I should see my charge often, which, as I do not desire to do, so I do



not see that any good can come of it, so long as I stand assured that she is forthcoming."

That his prisoner might be the more securely "forthcoming," extra precautions had been taken, and that in a manner which appears to have deceived even Bourgoing himself, for he notes, quite gratefully, that Sir Amyas had closed and restored the Queen's large room for the "safety of Her Majesty and her convenience."

On 13th November Sir Drue Drury arrived to take the place of Stallenge in assisting Paulet in his charge; and some days later Lord Buckhurst, the bearer of fatal tidings, reached the castle. To understand his mission we must consider what had taken place meanwhile in London.

On 25th October the Commissioners had met in the star-chamber at Westminster. At this time the two important witnesses, Nau and Curle, were produced.

The reports of the meeting are very scanty, but apparently the witnesses were asked no questions; they are merely said to have affirmed on oath certain confessions and declarations, of which neither the originals nor copies are preserved. Curle is also supposed to have affirmed "that as well the letter which Babington did write to the Scots queen, as the draughts of her answer to the same were both burned at her command."

This declaration, which, if true, was of the utmost importance, was made on this occasion only, and in the absence of the accused. The Commissioners found Mary guilty, not of certain matters with which Lord Burleigh had charged her, but for having "compassed and imagined since the 1st of June aforesaid divers matters tending to the hurt, death, and destruction of the Queen of England." One man alone had the courage to assert his belief in Mary's innocence. Lord Zouch declared that he was not satisfied that "she had compassed, practised, or imagined the death of the Queen of England."

The Commissioners added a clause to the effect that the King of Scots should not be held responsible for his mother's crimes. "The said sentence," added they, "did derogate nothing from James, King of Scots, in title or honour, but that he was the same in place, degree, and right as if the same sentence had never been pronounced."

A few days later both Houses of Parliament presented an address to Elizabeth, praying for execution of the sentence against the Queen of Scots. [47] "We cannot find," said they, "that there is any possible means of providing for your Majesty's safety but by the just and speedy execution of the said Queen; the neglecting whereof may procure the heavy displeasure and punishment of Almighty God, as by sundry severe examples of His great justice in that behalf left us in the sacred Scriptures does appear," etc.

To this appeal Elizabeth made a very clever reply, beginning thus:—

"Though my life hath been dangerously shot at, yet I protest there is nothing hath more grieved me than that one not differing from me in sex, of like rank, and degree, of the same stock, and most nearly allied to me in blood, hath fallen into so great a crime." She goes on to say that if her cousin would even now truly repent, and if her own life alone, and not the good of England, were at stake, she would most willingly pardon Mary. She concludes by saying that in a matter of so great importance a speedy decision cannot be looked for, as it is her custom to deliberate long, even in matters which are unimportant as compared with this.

At the end of twelve days Elizabeth sent a message to both Houses of Parliament, begging them to reconsider the matter, and "to devise some better remedy, whereby both the Queen of Scots' life might be spared and her own security provided for." [48]

After fresh and earnest consultation, both Houses declared that Mary's death was essential to the safety of the kingdom, and the declaration thus concludes:—

"Therefore we pray your Majesty, for the cause of God, of His Church, this realm, ourselves, and yourself, that you will no longer be careless of your life and of our safety, nor longer suffer religion to be threatened, the realm to stand in danger, nor us to dwell in fear."

Elizabeth again made an ambiguous reply. From her subsequent conduct, however, we may judge that she had probably already determined to take Mary's life, although as to the time and place she was still undecided.

In the meantime Lord Buckhurst, together with Beale, Clerk of the Council, proceeded to Fotheringay to announce to the Queen of Scots that sentence

of death had been pronounced against her in the star-chamber.

Lord Buckhurst had been carefully chosen for this mission. To much talent of a high order he united a moderation of views and a charm of manners calculated to inspire confidence. Nor was he a stranger to Mary; he had already been sent to treat with her on several occasions, and from the fact of his absence at the trial, we may suspect that his dispositions in her regard were friendly. If so, the undertaking now before him was doubly painful, for the announcement of the sentence of death was to be but a part of his duty.

Elizabeth still cherished the hope of extracting some confession or revelation from Mary; accordingly Lord Buckhurst was charged to be on the watch for any such revelation, to listen attentively to whatever the Queen of Scots might divulge, and to report such immediately to his mistress. Special instructions were sent at the same time to Paulet to lend his assistance to Lord Buckhurst, particularly should his prisoner consent to reveal any secret matter.

Lord Buckhurst reached the castle on the evening of the 29th of November, and after a conference with Paulet he returned to the village for the night.

On the following day, "after dinner," he, together with Paulet, Sir Drue Drury, and Beale, had an interview with Mary.

Lord Buckhurst announced himself as an envoy from his sovereign, and begged permission to deliver his message.

He then proceeded to recapitulate the events of the trial and its issue, proceeding to enlarge upon Elizabeth's sorrow at discovering that Mary had been proved to be "not only consenting to the horrible fact of rebellion in the country against her person and state, but also the author and inventor of it." For this reason, after much deliberation, Parliament had pronounced sentence of death against her. Buckhurst remarked that his mistress had not yet given her consent to this measure, but added that, urged as she was by Parliament, it was impossible she should not yield. "The person of the Queen, the state and religion are no longer safe," he continued; "it is impossible for you both to live, and therefore one must die. For this end then, in order that you should not be taken by surprise, Mr. Beale and I have been sent to warn you to prepare for death, and we will send you the Bishop

of Peterborough or the Dean of ——[49] for your consolation; they both are men of learning and understanding. Take thought of your conscience and acknowledge your fault, repent and make satisfaction before God and man. If you know anything concerning this conspiracy further than what has already come to light, you are bound in Christian charity to unburden your conscience; being, as you yourself say, nearly related to the Queen, to whom also you are indebted for many favours. And if you know of any other persons who have taken part in this undertaking, it is your duty to declare it before your death."

"I expected nothing else," replied Mary calmly. "This is the manner in which you generally proceed with regard to persons of my quality, and who are nearly related to the Crown, so that none may live who aspire to it. For long I have known that you would bring me to this in the end. I have loved the Queen and the country, and have done all that I could for the preservation of both. The offers which I have made are the proof of this, as Beale can bear me witness. I do not fear death, and shall suffer it with a good heart. I have never been the author of any conspiracy to injure the Queen. I have several times been offered my freedom, and have been blamed for refusing my consent. My partisans have abandoned me and troubled themselves no further with my affairs. To prevent this I have attempted to obtain my deliverance by gentle means, to my great disadvantage, till at last, being repulsed on one side and pressed on the other, I placed myself in the hands of my friends, and have taken part with Christian and Catholic princes, not, as I have before declared, and as the English themselves can bear witness by the papers which they have in their possession, through ambition nor the desire of a greater position; but I have done it for the honour of God and His Church, and for my deliverance from the state of captivity and misery in which I was placed. I am a Catholic,—of a different religion from yourselves; and for this reason you will take care not to let me live. I am grieved that my death cannot be of as much benefit to the kingdom as I fear it will do it harm; and this I say not from any ill-feeling or from any desire to live. For my part, I am weary of being in this world; nor do I, or any one else, profit by my being here. But I look forward to a better life, and I thank God for giving me this grace of dying in His quarrel. No greater good can come to me in this world; it is what I have most begged of God and most wished for, as being the thing most

honourable for myself and most profitable for the salvation of my soul. I have never had the intention of changing my religion for any earthly kingdom, or grandeur, or good, whatever, nor of denying Jesus Christ or His name, nor will I now. You may feel well assured that I shall die in this entire faith and with my goodwill, and as happy in doing so as I was ever for anything that has come to me in my life. I pray God to have mercy on the poor Catholics of this kingdom, who are persecuted and oppressed for their religion. The only thing I regret is, that it has not pleased God to give me before I die the grace to see them able to live in full liberty of conscience in the faith of their parents, in the Catholic Church, and serving God as they desire to do. I am not ignorant that for long certain persons have been plotting against me; and to speak plainly, I know well it has been done at the instance of one who professes to be my enemy. But I have spoken sufficiently of this before the Commissioners."

To this Lord Buckhurst replied that the person here alluded to had not mixed himself up in the matter more specially than the rest had done, and that he was esteemed a very good and faithful servant. He did not think that this person, nor even the greatest in the kingdom, had any special power to do anything either for her or against her, unless they were assembled in council.

Here Mr. Beale began to speak, and said that on his part he had somewhat to say to the Queen of Scots regarding the treaties and other matters which had occurred since she came into England, in which proceedings she had given trouble. On these points he could speak as having knowledge of what had occurred, having been employed in some of them as envoy between his mistress and Queen Mary. He then spoke of her taking refuge in England, asserting that his mistress had taken care of her and had caused her to be well received and treated, and had appeased her Scottish subjects who had sought to pursue her. Seeing Queen Mary's danger, his mistress had even arranged for her to retire to Carlisle, to be in greater safety.

"I was taken there by force and against my will," exclaimed Mary.

"It was for your good," retorted Beale.[\[50\]](#)

Lord Buckhurst and Beale now retired, nor does the former appear to have seen Mary again.

The Queen herself describes this interview in her correspondence, and we here give the passages that occur in her letter to the Archbishop of Glasgow, dated the 24th November:—[\[51\]](#)

"You would find this language strange were you not informed that it has been signified to me by the mouth of Lord Buckhurst, Amyas Paulet, my great promoter, one Drew Drury, Knight, and Mr. Beale, that the assembly of the states of this country have condemned me to death. This they have announced to me on the part of their Queen, exhorting me to confess and acknowledge to her my offences. For this end and to incite me to die well and patiently, and to discharge my conscience, she proposed to send me a bishop and a dean. She also says that the occasion of this my death is the instant request made to her by her people, who, considering that I am still alive, and being her rival, as it appears by my having some time ago taken the name and arms belonging to this Crown (and not being prepared to renounce them, unless with the condition of being declared to be next in the succession to the throne), she cannot live in safety in her kingdom. Seeing even that all the Catholics call me their sovereign, and that her life has been so often attempted to this end, and that, so long as I live, her religion cannot safely exist in this kingdom.

I thanked God and them for the honour they did me in considering me to be such a necessary instrument for the re-establishment of religion in this island, of which, although unworthy, I desired to take it upon myself to be a very pressing and zealous defender. In confirmation of all this, as I had before protested, I offered willingly to shed my blood in the quarrel of the Catholic Church; and moreover, even, if the people thought that my life could serve for the good and public peace of this island, I would not refuse to give it to them (freely) in reward for the twenty years they have detained me in prison.

As to their bishops, I praise God that without their aid I know well enough my offences against God and His Church, and that I do not approve their errors, nor wish to communicate with them in any way. But if it pleased them to



permit me to have a Catholic priest, I said I would accept that very willingly, and even demanded it in the name of Jesus Christ, in order to dispose my conscience, and to participate in the Holy Sacraments, on leaving this world.

They answered me that, do what I would, I should not be either saint or martyr, as I was to die for the murder of their Queen and for wishing to dispossess her. I replied that I was not so presumptuous as to aspire to these two honours; but that although they had power over my body by divine permission, not by justice, as I am a sovereign queen, as I have always protested, still they had not power over my soul, nor could they prevent me from hoping that through the mercy of God, who died for me, He will accept from me my blood and my life, which I offer to Him for the maintenance of His Church, outside of which I should never desire to rule any worldly kingdom, thereby risking the eternal kingdom either here or elsewhere; and I shall beg of Him that the sorrow and other persecutions of body and mind which I suffer, may weigh against my sins. But to have contrived, counselled, or commanded Elizabeth's death, that I have never done, nor would I suffer, for my own account, that one single *blow* should be given to her.

Elizabeth's emissaries rejoined, 'You have counselled and allowed that the English should name you their Sovereign, as appears by the letters of Allen, Lewis, and several others; and this you have not contradicted.'

To this I replied that I had taken nothing upon myself in my letters, but that it was not my province to prevent the Doctor and persons of the Church from naming me as they pleased. This was not my province, since I was under the obedience of the Church to approve what she decrees, and not to correct her; and I said the same in regard to His Holiness, if (as they declared) he caused me to be prayed for everywhere under a title of which I was ignorant. In any case I wished to die and to obey the Church, but not to murder any one in

order to possess his rights; but in all this I saw clearly portrayed Saul's persecutions of David, yet I cannot escape as he did, by the window, but it may be that from the shedding of my blood protectors may arise for the sufferers in this universal quarrel."

After reading these words, which bear the vivid impress of Mary's steadfast faith, we are not surprised to hear that during her talk with Lord Buckhurst her face was illumined with an extraordinary joy at the thought that God had done her the honour to choose her as the instrument for the defence of the Catholic faith;[\[52\]](#) and we may imagine that Lord Buckhurst was capable of admiring, although he may not have sympathised with, her sentiments. Paulet took different views, and in a letter to Walsingham, in which he refers to the Queen's "superfluous and idle speeches on other occasions," he adds, "I am deceived if my Lord of Buckhurst will not give the same testimony of her tediousness."[\[53\]](#)

---

## CHAPTER VI

### AFTER THE SENTENCE

L ORD BUCKHURST left Fotheringay on the 21st November, and the same day brought a fresh trial to the Queen,—one which his presence would probably have averted. Paulet, accompanied by Sir Drew Drury, who, although, according to the Queen, "far more modest and gracious," did not oppose his colleague's proceedings, waited on Mary, and Paulet told her that as she had shown no signs of repentance for her faults, their Queen had commanded that her dais with the royal arms, the emblem of her sovereignty, should be taken down, "because," continued he, "you are now only a dead woman, without the dignity or honours of a queen."

"God of His grace called me to this dignity," replied Mary; "I have been anointed and consecrated such. From Him alone I hold this rank, and to Him alone I shall return it, with my soul. I do not recognise your Queen as my superior, nor her heretical council and assembly as my judges, and I shall die a queen in spite of them. They have no more power over me than robbers at the corner of a wood might have over the most just prince or judge in the world; but I hope that God will manifest His justice in this kingdom after my death. The kings of this country have often been murdered, and it will not seem strange to me to be among them and those of their blood. It was in this way that King Richard was treated to dispossess him of his rights."[\[54\]](#)

At these words Paulet ordered the Queen's attendants to remove the dais, but they utterly refused to have any hand in the outrage offered to their mistress, calling aloud for vengeance on him and Drury. Paulet was obliged therefore to send for his soldiers, and caused the dais to be thrown on the floor. He now sat down in the Queen's presence with his head covered, and ordered the billiard-table to be removed, saying to the Queen, "This is no time for you to indulge in exercise or amusement."[\[55\]](#)

"Thanks be to God, I have never made use of it since it was put up," replied Mary, "for you have kept me sufficiently employed in other ways."

Paulet's account of this scene differs in some important particulars from that of the Queen. In fact, he seems to have gone beyond his instructions; and to explain and vindicate his conduct, he writes at length to Secretary Davison to the following effect. "He had been given to understand," he says, "by a late letter from some friend about the court, of Her Majesty's mislike that this lady (Queen Mary) did enjoy her cloth of estate." He adds that in ordering this removal he used "all possible moderation," and declares, in contradiction to Mary, that she sent for the yeoman of her wardrobe and asked him to take down the dais. He maintains a discreet silence regarding his own personal rudeness in covering himself and sitting down in Mary's presence; nor does he allude to the removal of the billiard-table.<sup>[56]</sup>

On the following day Mary received a fresh visit from Paulet and Drury. Paulet, fearing, no doubt, the effects of his violence, came to assure her that he had not taken down her dais by order of Elizabeth, but by that of some members of the council; and he offered to write to his mistress for leave to re-erect it. In reply Mary contented herself with showing him a crucifix, which she had placed in the spot formerly occupied by the dais and her arms. Paulet then told her that the request which she had made through Lord Buckhurst had been submitted to the Queen, and that she would receive the answer in a day or two.

"My requests were not so numerous," rejoined the Queen, "and can be speedily answered, and I presented them only in order that (after settling the fate of my attendants) I might have more time to give to God."

"Your object was praiseworthy, and you will have a prompt reply," said Paulet; "if you had been as well disposed to reveal certain things to Her Majesty as you were to make requests, Lord Buckhurst would have presented them much more willingly."

"This gentleman was a relative of your mistress, and sent by her on that account," returned Mary, "and I confided to him what I thought desirable."

Paulet remarked that he only spoke of this to remind her that she might have sent a letter through Lord Buckhurst.

"Before things were so advanced," said Mary, "I should have wished to write, but now being condemned, I have other subjects of greater moment to think of; I have to prepare myself for a better life in another world."[\[57\]](#)

"And hereupon," records the pitiless jailer, "she fell into a large discourse on the mercies of God towards her, and of her preparation for death, and into many other impertinent speeches not worthy to be recited. I omit some other talk which passed between her and me, upon this ground tending only to the benefit of her soul and the discharge of my conscience. And thus I departed from her, having endeavoured myself, according to your direction, to solve the two faults mentioned in your letters in as clear a manner as I could, without giving her cause to think that I came to her to that purpose."[\[58\]](#)

The "second fault" alluded to by Paulet, and which had brought down upon him Elizabeth's displeasure, lay in the fact that he had not sufficiently "entertained" Mary "in the desire she had to write unto Her Majesty." Paulet considered that he could not press the matter without a special order to that effect; he was, we know by his own words, "always very curious and precise to be warranted in all his proceedings."

After Lord Buckhurst's departure Mary naturally concluded that her hours were numbered, little thinking that two months of suspense lay before her. On the day on which the foregoing interview took place the noise of workmen in her dining-room led the Queen to think that the scaffold for her execution was even then in process of erection. Under this impression she called her attendants round her and made a declaration that she died a faithful Catholic, and that she was entirely innocent of the crimes of which she was accused. She made them swear to bear witness for her to all the persons she mentioned to them, and to each she assigned the mission he should fulfil after her death.

Although her right hand was much crippled by rheumatism, Mary now passed two days in writing farewell letters to her most faithful friends, which she confided to her chaplain and servants, to be delivered after her death.[\[59\]](#)

There are in all four of these letters, including that to the Archbishop of Glasgow already quoted, and we give the remaining three in their integrity,

in the certainty that no description of the Queen's sentiments at this time can be as true or touching as her own words.

## LETTER TO POPE SIXTUS V.[\[60\]](#)

### *Jesus Maria*

HOLY FATHER—As it has pleased God by His divine providence so to ordain, that in His Church under His Son Jesus Christ crucified, all those who should believe in Him and be baptized in the name of the Holy Trinity, should recognise one universal and Catholic Church as Mother, whose commandments together with the ten of the Law we should keep under pain of damnation, it is requisite that each one who aspires to eternal life should fix his eyes upon her. I, therefore, who am born of kings and relatives all baptized in her, as I myself also was, and what is more, from my infancy, unworthy as I am, have been called to the royal dignity—anoointed and consecrated by the authority and by the ministers of the Church, under whose wing and in whose bosom I have been nourished and brought up—and by her instructed in the obedience due by all Christians to him whom she, guided by the Holy Spirit, has elected according to the ancient order and decrees of the primitive Church, to the holy Apostolic See as our head upon earth, to whom Jesus Christ in His last will has given power (speaking to St. Peter of her foundation on a living rock) of binding and loosing poor sinners from the chains of Satan, absolving us by himself or by his ministers for this purpose appointed, of all crimes and sins committed or perpetrated by us, we being repentant, and as far as in us lies, making satisfaction for them after having confessed them according to the ordinance of the Church. I call my Saviour Jesus Christ to be my witness, the blessed Trinity, the glorious Virgin Mary, all the angels and archangels, St. Peter, the pastor, my special intercessor and advocate, St. Paul, Apostle of the Gentiles,

St. Andrew and all the holy apostles, St. George, and in general all the saints of Paradise,—that I have always lived in this faith, which is that of the universal Church Catholic, Apostolic, and Roman, in which being regenerated, I have always had the intention of doing my duty to the holy Apostolic See. Of this, to my great regret, I have not been able to render due testimony to your Holiness, on account both of my detention in this captivity and my long illness, but now that it has pleased God, my Holy Father, to permit for my sins and those of this unfortunate island, that I (the only one remaining of the blood of England and Scotland who makes profession of this faith) should, after twenty years of captivity, shut up in a narrow prison and at last condemned to die by the heretical States and Assembly of this country, as it has been to-day signified to me by the mouth of Lord Buckhurst, Amias Paulet my keeper, one Drew Drury, knight, and a secretary named Beale, in the name of their Queen, commanding me to prepare to receive death, offering me one of their bishops and a dean for my consolation (a priest that I had having been taken from me long before by them, and held by them I know not where); I have thought it to be my first duty to turn me to God, and then to relate the whole to your Holiness in writing, to the end that although I cannot let you hear it before my death, at least afterwards, the cause of it should be made manifest to you, which is, all things well considered and examined, their dread of the subversion of their religion in this island, which they say I plan, and which is attempted for my sake, as well by those of their own subjects who obey your laws and are their declared enemies [and who cause me to be prayed for as their sovereign in their churches, whose priests profess duty and subjection to me], as by strangers, and specially by the Catholic princes and my relations, who all (so they say) maintain my right to the crown of England. I leave it to your Holiness to consider the consequence of such a sentence, imploring you to have prayers made for my poor soul—and for all those who have died, or will die, in the same cause

and the like sentence, and even in honour of God. I beg you to give your alms and incite the kings to do likewise to those who shall survive this shipwreck. And my intention being, according to the constitutions of the Church, to confess, do penance as far as in me lies, and receive my Viaticum, if I can obtain my chaplain, or some other legitimate minister, to administer to me my said Sacraments; in default of this, with contrite and repentant heart I prostrate myself at your Holiness' feet, confessing myself to God and to His saints, and to the same Your Paternity, as a very unworthy sinner and one meriting eternal damnation, unless it pleases the good God who died for sinners to receive me in His infinite mercy among the number of poor penitent sinners trusting in His mercy—imploing you to take this my general confession in testimony of my intention to accomplish the remainder in the form ordained and commanded in the Church, if it is permitted me, and to give me your general absolution according as you know and think to be requisite for the glory of God, the honour of His Church, and the salvation of my poor soul, between which and the justice of God I interpose the blood of Jesus Christ, crucified for me and all sinners, one of the most execrable among whom I confess myself to be, seeing the infinite graces I have received through Him, and which I have so little recognised and employed; the which would render me unworthy of forgiveness, if His promise made to all those who burdened with sins and spiritual woes (coming to Him) to be assisted by Him, and His mercy did not encourage me, following His commandment to come to Him, bearing my burden in order to be relieved by Him of it like the prodigal son, and, what is more, offering my blood willingly at the foot of His cross for the unwearied and faithful zeal which I bear to His Church; without the restoration of which I desire never to live in this unhappy world.

And further, Holy Father, having left myself no goods in this world, I supplicate your Holiness to obtain from the very



Christian King that my dowry should be charged with the payment of my debts, and the wages of my poor desolate servants, and with an annual obit for my soul and those of all our brothers departed in this just quarrel, having had no other private intention, as my poor servants, present at this my affliction, will testify to you; as likewise, how I have willingly offered my life in their heretical Assembly to maintain my Catholic, Apostolic, and Roman religion, and to bring back those of this island who have ignorantly gone astray (to wit, themselves); protesting that in this case I would willingly deprive myself of all the title and dignity of a queen, and do all honour and service to theirs, if she would cease to persecute the Catholics; as I protest that that is the end at which I have aimed since I have been in this country, and I have no ambition nor desire to reign, nor to dispossess any other for my own personal advantage, as by illness and by long afflictions I am so weakened that I have no longer any desire to trouble myself in this world except with the service of His Church, and to gain the souls of this island to God; in testimony of which, at my end, I do not wish to falter in preferring the public salvation to the personal interests of flesh and blood, which cause me to pray you,—with a mortal regret for the perdition of my poor child, after having tried by all means to regain him,—to be a true father to him, as St. John the Evangelist was to the youth whom he withdrew from the company of robbers; to take, in short, all the authority over him that I can give you to constrain him, and if it please you to call upon the Catholic King to assist you in what touches temporal matters, and especially that you two may together try to ally him in marriage. And if God, for my sins, permit that he should remain obstinate, I knowing no Christian prince in these times who works so much for the faith, or who has so many means to aid him in the bringing back of this island, as the Catholic King, to whom I am much indebted and obliged, being the only one who aided me with his money and advice in my needs, I, subject to your good pleasure, leave him all that I can have

of power or interest in the government of this kingdom if my son obstinately remains outside the Church. But if he finds he can bring him back, I desire he shall be aided, supported, and advised by him (the King of Spain) and my relations of Guise, enjoining him by my last will to hold them, after you, as his fathers, and to ally himself by their advice and consent, or in one of their two houses. And if it pleased God, I would he were worthy to be a son of the Catholic King. This is the secret of my heart and the end of my desires in this world, tending as I mean them, to the good of His Church and to the discharge of my conscience, which I present at the feet of your Holiness, which I may humbly kiss.

You shall have the true account of the manner of my last taking, and all the proceedings against me, and by me, to the end that, hearing the truth, the calumnies which the enemies of the Church wish to lay upon me may be refuted by you and the truth known, and to this effect I have sent to you this bearer, requesting your holy blessing for the end, and saying to you for the last time *à Dieu*.<sup>[61]</sup> Whom I pray in His grace to preserve your person for long, for the good of His Church and your sorrowful flock, especially that of this island, which I leave very much astray, without the mercy of God and without your paternal care.

FOTHERINGAY, 23rd November 1586.

*From FOTHERINGAY this 24th of November 1586.*

Excuse my writing, caused by the weakness of my arm. I hear, to my great regret, bad rumours of some persons near to your Holiness who they say receive wages from this state to betray the cause of God, and there are cardinals mixed up in it. I leave it to your Holiness to make examination and to have your eye on a certain Lord de Saint-Jean, much suspected of being a spy of the High Treasurer.<sup>[62]</sup> These are

false brethren, and I will answer for it, that those who have been recommended to you by me are quite otherwise.

Of your Holiness the very humble and devoted daughter,

MARIE,  
QUEEN OF SCOTLAND, DOWAGER OF FRANCE.

**TO DON BERNARD DE MENDOÇA.**[\[63\]](#)

MY VERY DEAR FRIEND—As I have always known you to be zealous in God's cause, and interested in my welfare and my deliverance from captivity, I have likewise also always made you a sharer in all my intentions for the same cause, begging you to signify them to the King, Monsieur my good brother, for which at present, according to the little leisure I have, I have wished to send you this last Adieu, being resolved to receive the death-stroke which was announced to me last Saturday.

I know not when, nor in what manner, but at least you can feel assured and praise God for me that, by His grace, I had the *courage* to receive this very unjust sentence of the heretics with contentment for the honour which I esteem it to be to me to shed my blood at the demand of the enemies of His Church; whilst they honour me so much as to say that theirs cannot exist if I live; and the other point (they affirm to be) that their Queen cannot reign in security—for the same reason. In both these "conditions" I, without contradicting them, accepted the honour they were so anxious to confer upon me, as very zealous in the Catholic religion, for which I had publicly offered my life; and as to the other matter, although I had made no attempt nor taken any action to remove her who was in the place, still as they reproached me with what is my right, and is so considered by all Catholics, as they say, I did not wish to contradict them, leaving it to them to judge. But they, becoming angry in consequence of this, told me that, do what I would, I

should not die for religion, but for having wished to have their Queen murdered, which I denied to them as being very false, as I never attempted anything of the kind—but left it to God and the Church to settle everything for this island regarding religion and what depends upon it.

This bearer<sup>[64]</sup> has promised me to relate to you how rigorously I have been treated by this people, and ill served by others, who I could wish had not so much shewn their fear of death in so just a quarrel—or their inordinate passions. Whereas from me they only obtained the avowal that I was a free queen, Catholic, obedient to the Church, and that for my deliverance I was obliged,—having tried for it by good means, without being able to obtain it—to procure it by the means which were offered to me, without approving (to all the means employed).

Nau has confessed all, Curle following his example; and all is thrown upon me. They threaten me if I do not ask for pardon, but I say, that as they have already destined me to death, they may proceed in their injustice, hoping that God will recompense me in the other world. And through spite, because I will not thus confess, they came the day before yesterday, Monday, to remove my dais, saying that I was no longer anything but a dead woman without any dignity.

They are working in my hall; I think they are making a scaffold to make me play the last scene of the Tragedy. I die in a good quarrel, and happy at having given up my rights to the King your Master. I have said that if my son does not return to the bosom of the Church, I confess I know no prince more worthy, or more suitable for the protection of this island. I have written as much to His Holiness, and I beg you to certify to him that I die in this same wish, that I have written to you, and to him (you) know who is his near relative and old friend, and to a fourth, who above all others I leave under the protection of the King, and require him, in the name of God, not to abandon them; and I beg them to

serve him in my place. I cannot write to them. Salute them from me, and all of you pray God for my soul.

I have asked for a priest, but do not know if I shall have one; they offered me one of their bishops. I utterly refused him. Believe what this bearer tells you, and these two poor women who have been the nearest to me. They will tell you the truth.<sup>[65]</sup> I beg of you to publish it, as I fear others will make it sound quite differently. Give orders that payment should be made where you know of, for the discharge of my conscience; and may the churches of Spain keep me in remembrance in their prayers. Keep this bearer's secret; he has been a faithful valet to me.

May God give you a long and happy life. You will receive a token from me, of a diamond, which I valued as being that with which the late Duke of Norfolk pledged me his faith, and which I have nearly always worn. Keep it for love of me. I do not know if I shall be allowed to make a will. I have asked for leave, but they have all my money. God be with you. Forgive me if I write with pain and trouble, having not even one solitary person to aid me to make my rough copies and to write from my dictation. If you cannot read my handwriting this bearer will read it to you, or my Ambassador, who is familiar with it. Among other accusations Criton's is one about which I know nothing. I fear much that Nau and Pasquier have much hastened my death, for they had kept some papers, and also they are people who wish to live in both worlds, if they can have their commodities. I would to God that Fontenay had been here; he is a young man of strong resolution and knowledge. Adieu.

Once more I recommend to you my poor destitute servants, and beg you to pray for my soul.

*From FOTHERINGAY this Wednesday the 23rd of November.*

I recommend to you the poor Bishop of Ross, who will be quite destitute.—Your much obliged and perfect friend,

MARIE R.

## TO THE DUKE OF GUISE

*From FOTHERINGAY the 24th of November.*[\[66\]](#)

MY GOOD COUSIN—You whom I hold as dearest to me in the world, I bid you adieu, being ready, through unjust judgment, to be put to a death, such as no one of our race, (thanks) be to God, has ever suffered, still less one of my quality; but, my good cousin, praise God for it, as I was useless in the world for the cause of God and His Church being in the state I was, and I hope my death will testify to my constancy in the faith, and my readiness to die for the upholding and restoration of the Catholic Church in this unhappy island. And although no executioner has ever before dipped his hand in our blood, be not ashamed of it, my dear friend, for the condemnation of heretics and enemies of the Church (and who have no jurisdiction over me, a free queen) is profitable before God for the children of His Church. If I would belong to them I should not receive this blow. All those of our house have been persecuted by this sect; for example, your good father, with whom I hope to be received by the mercy of the just Judge. I recommend to you then, my poor servants, the discharge of my debts, and I beg you to have some annual obit founded for my soul, not at your expense, but please make the necessary solicitations and give the orders which shall be required. And you shall understand my intention by these, my poor desolate servants, eye-witnesses of this my last tragedy.

May God prosper you, your wife, children, brothers, and cousins, and above all our chief, my good brother and cousin,[\[67\]](#) and all his. May the blessing of God and that which I would give to children of my own, be on yours,

whom I recommend no less to God, than my own unfortunate and ill-advised child.

You will receive some tokens from me, to remind you to pray for the soul of your poor cousin, destitute of all aid and advice but that of God, which gives me strength and courage to resist alone so many wolves howling after me.—To God be the glory.

Believe, in particular, all that shall be said to you by a person who will give you a ruby ring from me, for I take it upon my conscience that the truth shall be told you of what I have charged her with, especially of what touches my poor servants, and regarding one of them in particular. I recommend you this person on account of her straightforward sincerity and goodness, and so that she may be placed in some good situation. I have chosen her as being most impartial and the one who will the most simply convey my orders. I beg of you not to make it known that she has said anything to you in private, as envy might harm her.

I have suffered much for two years and more, and could not let you know it for important reasons. God be praised for all, and may He give you the grace to persevere in the service of His Church as long as you live, and may this honour never leave our race; so that we, men as well as women, may be ready to shed our blood to maintain the quarrel of the faith, putting aside all worldly interests. And as for me, I esteem myself born, both on the paternal and maternal side, to offer my blood for it, and I have no intention of degenerating. May Jesus—for us crucified—and may all the holy martyrs, by their intercession, render us worthy of willingly offering our bodies to His glory.

*From FOTHERINGAY this Thursday 24th November.*

Thinking to degrade me, they had my dais taken down, and afterwards my guardian came to offer to write to their

Queen, saying he had not done this by her order, but by the advice of some of the council. I showed them the cross of my Saviour, in the place where my arms had been on the said dais. You shall hear all our conversation. They have been more gentle since.—Your affectionate cousin and perfect friend,

MARIE,  
QUEEN OF SCOTLAND, DOWAGER OF FRANCE.

---



## CHAPTER VII

### WAITING FOR DEATH

WHILE her cousin was thus bidding farewell to her best friends, and calmly preparing for death, Elizabeth was a prey to indecision, and, in spite of the entreaties of her ministers, dared not sign the warrant of execution. About the 29th of November Burleigh thus writes to Davison: "The sentence is already more than a month and four days old, and it is time it should speak." Paulet on his side was equally anxious for the end, and writes as follows to Walsingham: "I should fear lest Fotheringay were forgotten, if I did not know that this lady under my charge has given great cause to be remembered by all true and faithful subjects." And again in the same letter, "I thank God I have conceived a most steadfast hope of a happy resolution, and yet the experience of former times doth teach us that opportunities neglected are very often accompanied with very dangerous effects."[\[68\]](#)

To mitigate some of these "dangerous effects" probably, and fearing that Mary's partisans would make an attempt upon Fotheringay, Paulet had asked for an addition to his garrison of forty soldiers, and his demand was at once complied with. With the newcomers the garrison now mustered seventy foot soldiers and fifty bowmen.

Moved by the imminence of the danger, France and Scotland were now both making fresh efforts on behalf of Mary. James, roused for a moment, had written an energetic and even menacing letter to his Ambassador Keith, charging him to show it to Elizabeth, and Henry of France had remonstrated "temperately" through De Courcelles. In writing to Walsingham on 7th December, Paulet expresses himself significantly regarding these futile attempts. "I should be condemned for a busybody if I should write unto you all that I think touching the copy of the King of Scots' letter to Keith, not doubting but that Her Majesty and her most honourable council will

consider of it in all respect of honour to Her Highness touching the manner, and in all public and Christian judgment touching the matter. Only I will say that, as I would be glad to hear that Her Majesty had not vouchsafed to read the said letters at second-hand, so I assure myself that having answered the French Ambassador (coming from the mightiest prince in Europe and bringing a message of great temperance) in such round, princely, and magisterial sort, as moved admiration in all the hearers; Her Highness being now justly provoked in many ways (if I do not mistake the copy), will not give place to the pride of so poor a neighbour, but repress the same in his first budding, a principle, or rather the only remedy in such forward, (I will not say) presumptuous attempts. I pray God the unthankfulness in the mother work not like effects in the son."[\[69\]](#)

Elizabeth now, though still shrinking from the final step of signing the warrant, caused the sentence to be publicly proclaimed by sound of trumpet throughout the kingdom,—a measure welcomed with fanatic joy by the people, and regarded by Walsingham as an encouraging sign of the final realisation of his wishes.

When this news reached Mary she remarked that she would never have thought her good sister would proceed in so inhuman a manner towards her. The publicity now given to the sentence was, however, a consolation to Mary. Fear of death in itself seemed to have been unknown to her brave spirit, but as we know, she dreaded above all things private assassination, and the false rumours that she suspected would be spread regarding her if she should die without witnesses to attest her fidelity to her faith and royal dignity.

In the previous September she wrote to the Duke of Guise, "I expect poison or some other secret death"; and it is certain that her fears were well founded.

Paulet at length received the reply to the requests which Mary had begged Lord Buckhurst to present to Elizabeth. On 15th December he thus relates his interview with Mary touching this matter:—

"Having signified to the Queen that I had received the order to give back her money, and that I begged her to authorise one of her attendants to receive it, she sent me word that as I had taken it from her myself, she

thought it only right that I should return it to her with my own hand; upon which I went to her, accompanied by Sir Drew Drury and Mr. Darrell.<sup>[70]</sup> I found her ill in bed, suffering from one of her legs. I gave her a memorandum of the money I had received from her and of that which I had spent for her.... She asked me what reply had been made to her other requests; I told her her papers would soon be returned, and that her attendants would be free to return to Scotland or to France according to their own choice.

"'Yes,' returned she, 'but I cannot say if they will have leave to retire with what I shall give them.' I answered her that she could not doubt of this. 'I refer to my furniture,' continued the Queen; 'as I have the intention of sending a bed to my son, it is for this that I requested leave to make my will.' She questioned me as to whether I had had an answer. I said no, but that it was unnecessary, as it depended on her own wish. She asked me what reply had been sent about her chaplain. I told her that they had the intention of soon sending him to her. Such was the interview. After remitting to her the money, Sir Drue Drury and I took our leave of her." Farther on in the letter Paulet adds: "I have sent two of my servants to go and fetch the priest, who is detained at Mr. Thomas Gresley's, and I expect them both this evening, or at latest, to-morrow morning. This lady continues to show her perverse and obstinate character. She shows no sign of repentance, and no submission. She does not acknowledge her fault, does not ask for forgiveness, and shows no sign of wishing to live. It is to be feared that she will die as she has lived, and I pray God that this ignorant papist priest be not admitted to her presence for her further punishment, and also because he will strengthen her in her opposition to Her Majesty, and in all her errors in matters of religion, instead of bringing her to a better mind."<sup>[71]</sup>

On the 18th December Paulet wrote on the same subject to Burleigh:<sup>[72]</sup> "Mr. Secretary Walsingham had authorised me to send for this Queen's priest, and to let him visit her. He arrived here on the 17th,<sup>[73]</sup> so that if the execution of this Queen is deferred it may be repented of, as much from the political point of view as from that of religion, if he shall have stayed with her so long."

We must now return to the 15th December, as upon that day began the curious series of facts connected with Queen Mary's letter to her cousin.

After her interview with Lord Buckhurst and Beale, Mary had discussed this question of correspondence. I here use Bourgoing's words:—

"Her Majesty said that in former times she could write when she would, and then when it would have been profitable for both the Queen and herself, it had not been permitted; that since her enemies had procured and given the sentence against her, she had not thought it could be profitable, or of any use for her to write to the Queen; added to which, having been so humbled and deprived of all dignity or title, she did not see in what quality she could write for the present."

Mary, however, now desired to write to Elizabeth, and on the 15th she sent Melville to Paulet with a message to this effect, adding that in so doing she was not impelled by any desire to save her life, to receive pardon, or to escape, but only "for the peace of her soul and as a last farewell." Sir Amyas declared that this was not a request to which he could give a reply on the spot, but that if Her Majesty liked to prepare her letter, he would forward it as soon as he should receive permission from court to do so. On hearing this Mary begged Paulet to come to her, but he objected that his colleague, Sir Drue Drury, was ill, and "they did nothing one without the other"; he would therefore defer visiting Her Majesty till the next day, when he hoped Drury would be better.

The following day—16th December—accordingly, after dinner Paulet and Drury visited the Queen, and the latter, to remove all suspicion of a danger too much in keeping with the spirit of the age to be unusual, offered to take it upon herself to *test her letter* before it should be sent to Elizabeth, in order that Paulet might be assured that no subtle poison was conveyed in it. This offer did not satisfy Paulet, and he said he wished "to read the letter and handle it himself before it was sealed, lest anything should be put inside the letter, as sometimes happened."

"This led to some discussion, as the Queen found it strange that he should ask of her what she had herself proposed to do, both by M. Melville and by Sir Drue Drury, and also by her own words at their entrance. She added that she thanked them for the good opinion they had of her, to suspect her wrongfully of putting anything in her letter which could harm the Queen (of England)." In reply Paulet excused himself "as well as he could," adds

Bourgoing. Two days later the gentlemen returned to fetch the letter: this time Sir Amyas made excuses for having asked to see the letter before it was closed, and to test it, saying that as there might be danger within a letter as well as in its cover, it was best to make the request.

"Her Majesty showed him her open letter, and tested it by striking it against her face, then closed it with white silk and sealed it with Spanish wax. The address was 'To the Queen, our sister and cousigne'; the superscription, 'Your sister and cousin wrongfully imprisoned, Marye R.' The letter was written in French."[\[74\]](#)

Paulet wrote a long letter to Mr. Secretary Davison about this time describing his interview with Mary. The facts relating to the letter tally with those given by Bourgoing, and though Paulet's tone is bitter as usual, he adds the following postscript: "I had forgotten to signify unto you that this Queen, taking her letter in both her hands, and holding the leaves open, did wipe her face with every part of both the leaves; which no doubt she did in despite that I had told her there might be as great danger within the letter as without."[\[75\]](#) Queen Mary's letter, which had caused so much discussion, is a very interesting one, and we subjoin it. As we shall see, Paulet feared its effect on his mistress, and delayed sending it:—

### MARY STUART TO QUEEN ELIZABETH.[\[76\]](#)

*From FOTHERINGAY, December 19, 1586.*

MADAME—Having been unable to obtain leave from those to whom I have been, as it were, given by you, to make known to you what I have at heart, as well to acquit myself of any feeling of ill-will, or desire to commit any cruelty or enimical act against those to whom I am related by blood, as also to communicate to you in charity what I deemed might serve for your welfare and preservation as well as for the continuance of the peace and prosperity of this island (things which could harm no one, as it was in your power to take or reject my advice, or to believe or disbelieve my words, as it seemed best to you), I resolved henceforward to strengthen

myself in Jesus Christ alone, who is never wanting in justice and consolation to those who invoke Him with all their heart, and in especial, when denuded of all human help, they are left in His holy protection. To Him be the glory; He has not disappointed me in my expectations, having given me the courage, *in spe contra spem*, to endure the anguish, calomny, accusations, and contumelies of those who have no jurisdiction over me, together with a constant resolution to suffer death for the maintenance, obedience, and authority of the Catholic Church, Apostolic and Roman.

Lately, on hearing the sentence, given by your last assemblage of some of the state, and receiving the admonition made to me by Lord Buckhurst and Beale, that I should prepare myself for the end of my long and wearisome trying pilgrimage, I begged them to thank you from me for such agreeable tidings, and to implore you to permit me certain things for the discharge of my conscience, the which Sir Paulet has since let me know you have accorded, having already allowed my chaplain to return, and together with the money which had been taken from me, and he assures me that the rest will follow. For all this I have much wished to return you thanks, and to supplicate you for one more last favour, which I have thought best to communicate to you alone, as being a last grace which I desire to owe to you alone, having no hope of anything but cruelty from the Puritans, who are now the strongest in power and the most animated against me,—God knows for what reason. I wish to accuse no one, but, on the contrary, to forgive every one from my heart, as I desire to be forgiven by all and in the first place by God. And then I know that all concerning the honour or dishonour of your blood and that of a queen, daughter of a king, touches you more nearly than any one else. Therefore, Madame, in honour of Jesus (whose name all powers obey), I require you to promise that when my enemies shall have satisfied their dark desire for my innocent blood, you will permit that my poor sorrowful

servants may all together bear my body to be buried in holy ground and near those of my predecessors who are in France, especially the late Queen my mother; and this because in Scotland the bodies of the kings my ancestors have been insulted, and the churches pulled down and profaned, and because, suffering death in this country, I cannot have a place beside your predecessors, who are also mine; and what is more important—because in our religion we much prize being buried in holy ground. And as I am told you wish in nothing to force my conscience or my religion, and have even conceded me a priest, I hope that you will not refuse this my last request, but will at least allow free sepulture to the body from which the soul will be separated, as being united, they never knew how to obtain liberty to live in peace, or to procure the same for you, for which before God I do not in any way blame you—but may God show you the entire truth after my death.

And because I fear the secret tyranny of some of those into whose power you have abandoned me, I beg you not to permit me to be executed without your knowledge—not from fear of the pain, which I am ready to suffer, but on account of the rumours which would be spread concerning my death if it were not seen by reliable witnesses; how it was done, I am persuaded, in the case of others of different rank. It is for this reason that in another place I require that my attendants remain to be spectators and witnesses of my end in the faith of my Saviour, and in the obedience of His Church, and that afterwards they shall all together withdraw quickly, taking my body with them as secretly as you wish, and so that the furniture and other things which I may be able to leave them in dying, be not taken from them, which will be, indeed, a very small reward for their good services. Would you wish me to return a jewel which you gave me to you with my last words, or would it please you to receive it sooner? I implore of you anew to permit me to send a jewel and a last adieu to my son, together with my blessing, of

which he has been deprived, owing to what you informed me of his refusal to enter into a treaty in which I was included,—by the unhappy advice of whom? This last point I leave to your conscience and favourable consideration. For the others, I demand of you, in the name of Jesus Christ, and in consideration of our relationship, in remembrance of King Henry VII., your [great]grandfather and mine, and in honour of the dignity we have both held, and of our common sex, that my request be granted.

For the rest, I think you will have certainly heard that they pulled down my dais, by your order, as they said, and that afterwards they told me that it was not done by your command, but by that of some of the council. I praise God that such cruelty, which could only show malice and afflict me after I had made up my mind to die, came not from you. I fear it has been like this in many other things, and that this is the reason why they would not permit me to write to you until they had, as far as they could, taken from me all external mark of dignity and power, telling me I was simply a dead woman, stripped of all dignity.

God be praised for all. I wish that all my papers, without any exception, had been shown to you, so that it might have been seen that it was not only the care of your safety which animated all those who are so prompt in persuing me. If you grant me this my last request, give orders that I shall see what you write regarding it, as otherwise they will make me believe what they like; and I desire to know your final reply to my final request.

In conclusion, I pray the God of mercy, the just Judge, that He will deign to enlighten you by His Holy Spirit, and that He will give me the grace to die in perfect charity, as I am preparing myself to do, pardoning all those who are the cause of my death, or who have co-operated in it; and this shall be my prayer till the end. I consider it happy for me that it should come before the persecution which I foresee



threatens this island—if God is not more truly feared and revered, and vanity and worldly policy not more wisely curbed. Do not accuse me of presumption if, on the eve of leaving this world, and preparing myself for a better, I remind you that one day you will have to answer for your charge as well as those who are sent before, and that, making no account of my blood or my country, I desire to think of the time when, from the earliest dawn of reason, we were taught to place our soul's welfare before all temporal matters, which should cede to those of eternity.—Your sister and cousin wrongfully imprisoned,

MARIE, QUEEN.

*From FOTHERINGAY this xix December 1586.*

Paulet, after receiving this letter from Queen Mary, entered into a long conversation with her, in which he disturbed her by "rather violent discourses, warning her to thank the Queen (Elizabeth) and acknowledge the favours she had done her, not only at her first coming into England, but ever since, and especially in this last affair, in which, he said, she had much to be thankful for."

"For my part," replied Mary, "if I have received any favours, I thank her, but I do not see in what they consist. I came into this country under her promise (of assistance). She has kept me a prisoner for eighteen years, and now makes me die, which is the worst that can be done to me."

"But," retorted Paulet, "you owe it to the Queen that she kept you from your enemies and saved your life. You were escaping to another country when the stress of weather at sea caused you to take refuge here."

"There is no one in this country but you who holds this opinion," replied the Queen, "or who does not know that I came to this country in a simple fishing-boat, which was to take me no farther than I wished. I came against the judgment of the nobles who were with me, of whom some are still alive. They dissuaded me from coming, saying I was putting myself in the hands of the enemies of my country and my own, from whom I should never

escape, as they would put me to death; and they would not accompany me until I gave them an attestation and certificate in my handwriting that it was against their wish, and in spite of them, that I came to England. You show yourself very ignorant of my affairs, as you have shown in other conversations. When I was at Lochleven Queen Elizabeth said, and wrote, that she would employ all her friends to deliver me from prison and subdue my enemies. If she did not wish to keep her promise to me, who came to her trusting in it, she should have sent me away, and not have detained me (against) her promise."

Sir Amyas, nothing daunted, continued to boast of the kindness shown by his mistress in her treatment of Mary, and then he and Sir Drue Drury, addressing themselves this time to Melville, who was also present, united in praising Morton, after which they proceeded to declare that the King of Scotland had great cause to respect the Queen of England, and that she had been a good mother to him; that it was not the English who had withdrawn him from his mother's friendship, but he himself who would not enter into any league in which she took part. The English dealt with him as King of Scotland, they said, who was recognised as such in England and in all foreign countries, and had been publicly acknowledged in full Parliament in England and Scotland.

"You have no feelings of honour," said the Queen, "if you praise so wicked a man as the Earl of Morton, who is held to be a tyrant and an usurper, who pillages and destroys all the possessions of the poor Scottish subjects, holds my son a prisoner, is a false traitor, and given up to a life of debauchery and public wickedness." To this Melville added other facts of the kind, having known Morton.

"I marvel within myself," continued Mary, "how the Queen of England can consider herself a good mother to my son, having always kept him apart from me, and prevented his having friendship with me. You do wrong in following young Gray's advice, to treat with the son rather than with the mother, to whom the kingdom belongs, and not to him. Far from being King, I protested in Scotland that my resignation was forced from me; I permitted him to take the title of King on the condition that he should consult me on affairs of importance to the kingdom, that he should do nothing without me, otherwise I should not support him in anything.

Foreign kings only recognised him on these conditions, which not being observed, I cannot acknowledge him as King, and I doubt me the Queen of England has said by her own mouth to her people, and even to the Ambassadors of France, and to Nau, that she had never acknowledged him as King, nor had yet given him the title."

All these matters had already been discussed at the trial. "The Queen," said Bourgoing, "took occasion to say that they repeated these things on purpose to displease her more, and to attempt to extract something from her, as it may be supposed from the fact that Sir Amyas could not bear what Her Majesty had said concerning certain members of the council who were hostile to her, she said, and did all they could against her, and this she would say of some of them she could name till death, whom she would nevertheless pardon with all her heart."

"You do ill in this," replied Paulet, "as you should die in charity; there is no one of the council who wishes to do you evil against his conscience. You go against God in retaining such an opinion of them."

"I do not feel my conscience charged by this," said Mary, "nor have I offended God, who does not forbid one to die in an opinion of which one is sure, nor to speak in dying of that of which one has a perfect knowledge; although most surely He commands us to forgive, which I do, as I have already said, but I do not at present feel drawn to flatter, and will flatter no one, not striving to escape from their hands by this means. Being resolved to die, and preparing for this, I do not intend to purchase my life, or purchase any grace, by flattery. I do not give any, and I do not ask for any, do with me what you wish. What I ask of the Queen has nothing to do with my deliverance, but only concerns my religion, and for the discharge of my conscience, being on the point of putting my affairs in order touching my will, my servants, and my funeral."[\[77\]](#)

On the day following this interview Paulet wrote the following confidential letter to Davison, in which he states very plainly his reasons for delaying to send Mary's letter to Queen Elizabeth:—

We were not a little perplexed with this motion of writing, and, indeed, did forbear to deliver our answer until we had

considered of the matter privately between ourselves, wherein, as we feared greatly to give any the least cause of delay of the due examination [execution] of the long-desired justice, so, having received lately Her Majesty's express commandment to make offer to this lady to convey her letters if she were disposed to write, although she did not accept thereof at that time, yet, doubting lest our refusal to yield unto it at this present might be offensive to Her Highness, and perchance breed some slander to the cause, we condescended to her desire, beseeching God so to direct the sequel thereof as the same may redound to His glory and Her Majesty's safety, whereof there were no doubt, if we were as willing to take the advantage of great and urgent occasions to further this expected sacrifice, acceptable to God and man, as we are easily diverted from it upon every similar suggestion. All good and faithful subjects will be always careful of Her Majesty's safety, but specially in the time of Christmas now at hand, which giveth occasion to many dangerous assemblies. We are content to be found faulty of this pardonable jealousy. Being not able to do any good in this service, we should be very sorry, and should think ourselves more than unhappy if anything should come from us that might do hurt. And, therefore, to be plain with you as with our very friend, we have used all convenient means to delay the receiving of this, to the end it might arrive at the court too late to stay any action touching this lady that might be intended before Christmas, being strongly persuaded that the delay of the execution until after Christmas will give great cause to suspect an everlasting delay, either through Her Majesty's too great inclination to mercy, or by reason of the danger of her person in the Christmas, a time subject to dangerous assemblies. And thus, etc.

---

*P.S.*—I am very sorry that your letters of the 14th, received the 20th at nine in the morning, came not to my hands in time convenient for the stay of the priest, who, arriving here the 17th, was immediately admitted to the presence of his mistress, according to the direction which I had before received in that behalf. The inconvenience whereof is not so great in matter of policy as in conscience, because, indeed, the priest is [of] weak and slender judgment, and can give neither counsel nor advice worthy of a young scholar. I feared lest he might have learned some bad news during his abode with Mr. Gresley, but having groped him the best I can, do find that he is a mere stranger almost to those things which are common to all men, which I impute to his want of language and to Mr. Gresley's absence from his house now many weeks by reason of his being at London, so that he hath had little other company than of his keeper. I might have doubted lest he had dissembled his knowledge in the occurrents of this time, but having searched his papers, do find two leaves of paper craftily (as he thought) inserted in the midst of his philosophical exercises, wherein he hath set down a daily note of all that he heard spoken unto him, and likewise his answers in all this time of his absence, the same being ridiculous or do bewray his great indiscretion. I would have been glad, for some Christian respects, that he should have had no access to this Queen until the night before her execution, and, indeed, having received direction to send for him, I took it for a strong argument that the time of her execution was near at hand.[\[78\]](#)

Paulet's fear that Mary's letter would touch Elizabeth was partly justified by the event. When it was at last forwarded, Leicester thus writes of this letter to Walsingham: "There is a letter from the Scottish Queen that hath wrought tears, but I trust shall do no further hurt therein; albeit the delay is too dangerous." Leicester apparently knew his royal mistress's character better than did Paulet, for the tears induced no change of policy.[\[79\]](#)

---



## CHAPTER VIII

### FURTHER INDIGNITIES

ON Thursday 22nd December Sir Amyas sent for both Melville and Bourgoing,—an unusual proceeding, especially as hitherto, since his return, Melville alone had taken and brought back the messages to the Queen. When they were in the presence of Sir Amyas, he said that as he had something to send to the Queen, he thought it expedient to give it to them, declaring he knew not what it contained, but delivered it as he had received it. He then gave them a letter from Curle to his sister concerning certain money which the Queen had promised him. That Curle should have had the "courage," as Bourgoing expresses it, to apply to Mary in this way, seems to point to the fact that he considered himself innocent in her regard, and throws fresh doubt on the confessions supposed to have been extorted from him and Nau. The bags for the Queen contained some of her accounts; the seals had been broken, as Melville and Bourgoing pointed out to Paulet, who replied that he had, according to his duty, broken them, that he might be aware of the contents. A letter from Nau was among the papers, and a short memorandum which he had made on the papers taken to him, but the chief accounts for the year were missing, nor did they ever reach Mary; in spite of much correspondence on the subject between Paulet, Walsingham, Waad, and others, and Elizabeth's own apparent wish that they should be restored.

At this time Paulet was laid up by a cold, and all communications between him and his prisoner had to be conveyed by her attendants. Day by day the Queen anxiously waited, hoping to see Paulet and inquire from him concerning the subjects which were to her of the deepest interest, but his own cold and gout occupied Paulet's attention far more than his prisoner's feelings. At last on the 8th of January, knowing that he had been out the day before, Mary sent to beg him to visit her, but Paulet still pleaded cold and inability to come. "We," continues Bourgoing, who was evidently one of

those sent, "according to our charge, said that Her Majesty, being unable to communicate with him, and having no reply to her letter written nearly three weeks past (to Queen Elizabeth), and hearing nothing about it, but being always kept in suspense, proposed writing, and that as he seemed to be better in health, Her Majesty would prepare her letters, so that when he was well he would find them all ready."

Paulet, appearing a little angry, replied that Mary could write and prepare what she liked. The Queen therefore wrote once more, and for the last time, to her cousin,—a letter which, as we shall see, Paulet this time refused to send at all, and of which the dignified and pathetic contents would have remained unknown had not Bourgoing preserved it. It runs as follows, with the exception of one paragraph, which is unintelligible:—

**THE LAST LETTER FROM QUEEN MARY TO QUEEN  
ELIZABETH.[\[80\]](#)**

MADAME—Having prepared myself for death, according to what it pleased you to signify to me, thus ridding my enemies of their charge, and that my life may be disposed of according to their designs, I have so willingly made up my mind to leave this false world, that I protest to God and to you, that since I have not aspired to, nor do I desire, any worldly satisfaction save those which, for the discharge of my conscience, I requested through my Lord Buckhurst and Beale, and those that I have asked of you in the last memorandum by my own hand, which depend entirely on your benevolence, and which can offend no one. As regards the petitions and requests I have been in part gratified, namely, the arrival of my chaplain and receiving a portion of my money—but of my papers I have only received certain extracts[\[81\]](#)—and as I do not think you intend that things belonging to me, or the affairs of my domain, should fall into other hands, as they cannot be of service to you, as they are necessary for the making of my will, I implore you that all my statements, books of accounts, and other papers,



which only relate to my private affairs, be returned to me and the rest of the money restored, so that I can put them in order, and leave the examination of them to those in my confidence and the executors of my will, to whom they may be of use after my death, as they will be to me now; that I may be sure of what I have to spend, what I can dispose of, or what I justly owe; not being able, without them, to make use of Nau's extracts alone, he being a prisoner, unless I had liberty to communicate with him, or, at the least, by writing to receive information from him concerning several special (points) on which I require to be enlightened. I let Messrs. Paulet and Drue Drury know regarding certain points; and as they promised me to write, I have been expecting an answer since the 22nd of December, on which day they sent me some papers, with a line from my secretary Nau. (They), perhaps, not thinking it reasonable to trouble you with my last requests, I fear either that my letter has never been given to you, or that you did not wish to take the trouble to (read) it. The way in which I have been treated has perhaps led (them) to imagine that I meant to beg from you some great grace, and it may even have made them fear that, in the goodness of your heart, this remonstrance would cause you some regrets at consigning one of your own blood, and quality united, to such straits. But, Madame, they need not fear such pusillanimity on the one side, and on the other you can remove from them all their dread of your too great sorrow, by telling them of my request; and as it is your intention only to gratify it at my death, the which has been granted them, they cannot blame you if, through a feeling of family duty, or at the least of Christian charity, you grant burial for my body.

By the same, I require of you with instance, Madame, in honour of the Passion of Jesus Christ, not to keep me longer in this miserable suspense, which is more cruel than any certainty, but to let me fully know your will, and if it be to grant my prayer, I promise to make one for you at my death

for your salvation, and for your prosperity in this world in the grace of God. And if you refuse me, I will endeavour to bear it patiently, thanking you still for leaving me no longer to languish in this miserable condition, of which I wish you knew the truth of the sufferings of my poor servants, who are losing their time and their health. For the rest, if at the hour of my death I should wish to divulge to you some secret, and of which it might be of importance to you that no one should have knowledge, being my last words, I desire to know in whom I may confide, as there are some who might, through habit, speak about it too freely, or refrain from telling it, from some reason of their own. Well, then, I pray God grant you as much happiness in this world as I expect in leaving it, through His mercy, which I beg for myself and for all those who persecute me, and this happiness, of being freed from so many miseries by an innocent death; and I desire to forgive any who otherwise calumniate me and mine, if there be any.... And I hope that by my death, which is so much wished for, you and several others will experience what may be of use, and serve to clear up many things in which God may be glorified. I implore His Divine Majesty that all shall conduce to His honour and to your edification and preservation, and that of this whole island, for the salvation of which I would willingly give my life, nor would refuse to desert it, even were I in a better condition. I am not able to speak willingly of him<sup>[82]</sup> in whose service, as of that of our country, I am useless, nor of the special good I wish you, being so near you in blood—seeing that, on the contrary, I serve for a pretext to others who discharge their malice against me and mine for certain reasons, which, as well as my own intentions, I leave to the judgment of the just Judge.—Your sister and imprisoned cousin,

MARYE.

*From my prison of FOTHERINGAY, the 12th of January 1587.*

When the letter was written, Sir Amyas continued to throw every possible hindrance in the way of its transmission. The Queen begged him to come to see her, offering to show him her letter and close it in his presence as before; but Paulet, "being in bed motionless and with one of his arms bandaged," replied that he could not possibly move, or walk to go to her, that he much regretted it, and would go to her as soon as he could; and so for the next two days the question continued to be discussed by means of messages between the Queen and Paulet, but in spite of conciliating speeches on the part of the latter, it ended in the letter never being despatched.

From the 20th of January the chronicle becomes more and more interesting, and we shall as far as possible give Bourgoing's own words:—

"On Friday 20th January Melville went to speak to Sir Amyas about our supplies and the usual pension, and about a servant and our wages. To which he received fairly courteous replies; (Sir Amyas) refusing him, however, a servant, but saying that he thought means might be found for sending us our wages. Upon this last point we founded our hopes that all was not at extremity.

"On Saturday 21st Sir Amyas sent to fetch Mr. Melville, Mr. Bourgoing, and Monsieur de Préau, at which we were quite astonished, not knowing what it could mean. And this last named (de Préau), not wishing to go to him, as he was not in a suitable dress, according to his rank, remained behind until the same Melville and Bourgoing went to speak to him (Paulet), to whom he refused to speak, saying he had nothing to say to them unless de Préau should come. From this, still more puzzled, we concluded that it was on account of him alone that we were summoned, fearing among other things that they wished to separate him (from the Queen).

"M. de Préau, therefore, dressed as he was, borrowed a cloak, and when we were all three come to Sir Amyas, he addressed himself to the said Bourgoing, saying he had sent for him specially, as he had something to say to him, as also to the said sirs, Melville and de Préau, which he wished me to report to Her Majesty, as he would have done himself could he have gone to her.

"Sir Amyas then continued that he had something to tell them which he knew would be pleasing neither to the Queen nor to Melville, whom he had always seen to be a faithful servant to his mistress, but that there was no remedy, and he must take it in good part. Both he and de Préau, said Paulet, were to be separated from their mistress for the present; they were not to go into her presence, but were to retire to their own rooms. As de Préau was lodged so near the Queen as to make it impossible to prevent his going to her, Paulet had arranged that he should lodge in one of Melville's rooms. They were not to be prisoners, and were to do as they pleased, with the exception of seeing the Queen. And when M. Melville, protesting the sorrow that this gave him, his only consolation being to be near his mistress, and begging to be permitted to see her and to bid her farewell, Sir Amyas replied that he could not give him leave, and that it was not necessary; he saw nothing yet which should prevent his returning to her as usual, and that he must be patient for the present. M. de Préau, protesting also his regret, said the same.

"The said Bourgoing then returned to Her Majesty, and surprised her very much, and also the others, with his tidings, which caused many thoughts and imaginings without any conclusion being arrived at, as there seemed no apparent reason for these proceedings.

"The next day the Queen sent Bourgoing to Paulet to say that after his report she would have sent him to inquire the previous day had it not been too late, and that she wished to think over what she had heard. I think (adds Bourgoing) that the chief reason was that she feared I would be kept away from her like the others." Bourgoing and Paulet had a long discussion; the former represented to Paulet how strange it appeared to his mistress that she had received no answer to her letter, and that she could not even feel assured that it had reached Queen Elizabeth, and not only that, but that in this doubt she had prepared another letter, and had not yet heard from Sir Amyas whether she might send it or not. To this Paulet replied that Mary's letter had certainly reached Queen Elizabeth, but that no answer had come. He was not the person to keep a letter back from the Queen of Scots, and that as regards the second letter which she had written to his mistress, his judgment told him that because he had permission to send one, this did not mean he could forward more.

Being pressed upon the latter point, Paulet repeated that he had not permission to forward letters. Bourgoing thus continues: "It was told him in the second place that she (Mary) was in great distress to know the cause of her attendants being taken from her, saying that the Queen of England had, at her request, sent her priest that she might have the consolation of his presence and his assistance in preparing for death, and that now when he was most necessary to her, he was taken away. There was no one so criminal, she said, but he was allowed a minister of his religion to conduct him to execution, to console and minister to him, and that the only consolations that she still had in her misery and captivity were those of her religion. She regretted infinitely (continued Bourgoing) not to be able to perform her devotions as she would wish, to assist at Mass, and do her duty as a good Christian. Queen Elizabeth had promised her not to interfere with her in her religion, and yet it was for her religion only that she was persecuted. Her priest was in no one's way; he interfered with nothing, devoting himself to his prayers. It would have been better not to have allowed him to return than now to remove him in her greatest need, and she now plainly perceived that they would not be content with afflicting the body but would proceed, were it possible, to destroy not only the body and life itself, but also the soul, which, however, could never be, as she had entire hope in God, that He would be with her in this last trial as He had ever been. She saw that their intention was to take her servants from her one by one, and to remove herself secretly from here to make her die when they wished, or to murder her secretly.

"To the first point Paulet replied that he did not doubt that the Queen (Mary) desired to have the priest near her, nor that she was vexed at his absence, but she might assure herself that he was not far off. He was neither in France nor in Scotland, nor indeed out of the house, and that he saw no cause for thinking that, when it should be necessary as the Queen thought, she should not have him. For the rest, continued he, she was peradventure not so near death as she imagined, and for the present she must be satisfied. When Paulet heard, however, of the fear entertained by Mary that she would be murdered, or secretly put to death, he fell into a rage, protesting that there was no greater danger of her being thus insulted than there was for Bourgoing himself, who had no reason to fear that anything should be attempted against *him*. The latter then pressing the question as to whether

there was really no plot of the kind against his mistress, Paulet said 'that there was no more danger for Her Majesty that such a thing should be done to her, than there was for his own wife, his children, or himself, and of this he would dare to swear. That as for him, he was not the man to do, or make others do, such a thing, feeling indeed hurt to be thus suspected; he was a man of honour and a gentleman, and he would not wish so to dishonour himself as to wish to exercise such cruelty or to conduct himself as a Turk! People must not think such things of him. When it was suggested to him that the Queen did not so much fear him as others who were her enemies, and who would not be unwilling to do her a bad turn if it were to their own advantage, Paulet replied that he alone would be responsible for all, and that she might assure herself that nothing of the kind would occur.' In this protest Paulet did himself no less than justice, as his after conduct proved; much as he hated his prisoner, she was safe in his hands from assassination.

"Bourgoing before leaving Paulet anxiously inquired for Mary, why Melville had likewise been separated from her and for what reason. To which Paulet's reply was that Mr. Melville was an honest gentleman, that he was separated from her for no offence against Queen Elizabeth or for anything in particular, but there were certain reasons which made it necessary.

"Bourgoing then told Paulet that in future his mistress would be afraid to send any one to speak to him, in the fear that he would detain them, one after the other. But Paulet assured him that she need have no such fear, and that all her servants were in the house."[\[83\]](#)

Paulet's real sentiments on this occasion may be gathered from a letter to Mr. Secretary Davison, written two days before.[\[84\]](#) Although written from a bed of sickness, he evinces no sympathy for the Queen's chronic ill-health, nor does it seem to occur to him that Chartley was as unwholesome for his delicate prisoner as for himself, the "naughty waters" there having contributed to aggravate the Queen's rheumatism and other ailments.

On the Monday (23rd January) Melville had an interview with Paulet—the first since he had been separated from the others—and spoke in the same sense as his mistress of his separation from her. Sir Amyas replied very courteously, but declined to give any reason for this decision. He likewise

declined to give M. de Préau and Melville a separate allowance of food, saying that as when they were with the others there was sufficient for all, nothing extra was now needed. All this created much surmise and anxiety among the Queen's people, but that same evening a clue was given to the mystery. About five o'clock the Fotheringay porter, Newrins, came to forbid Jehan Landet, the Queen's butler, to carry the rod before the dishes of meat served to his mistress. (This office had belonged to Melville, as master of the household, and had only been exercised by Landet since his absence.)

[85]

"At this," says Bourgoing, "Her Majesty was greatly astonished, and wished at once to send to Sir Amyas to learn the reason, but he would receive no one, saying that it was too late and that they could speak to him next day, and if it was about the rod being forbidden, it was no use, as if he had remembered when M. Melville was taken away, it would have been forbidden then. On the following day the Queen sent Bourgoing to Paulet with a message to say that although she had for a time felt relief from her fear of being secretly put to death, in consequence of the assurances she had received through Bourgoing of his good intentions in her regard, the same painful doubt now recurred to her mind. She saw in the new order he had given fresh cause to fear that the last vestiges of her royal dignity were taken from her only in order that such a crime might the more easily be committed. Her Majesty was surprised," continued Bourgoing, "that Paulet should take the trouble to forbid so small a thing, which could not possibly do good or harm. He could of course command his own servants, and if he wished, do nothing for her or to honour her, but Her Majesty was of opinion that he should not forbid her own attendants to do what was according to their duty and to their oath to her, their mistress.

"To this Sir Amyas replied by again protesting that Her Majesty did herself great wrong, did wrong to the Queen and state of England, to the council, and to himself, to think that they wished to undertake anything so unworthy or so insulting as to kill, to poignard, or murder her secretly, or of a sudden, whether by night or day; that he felt heart-broken to think he was supposed capable of committing such butchery, or of permitting such. 'The Queen is a woman of great talent and intelligence,' continued Paulet, 'and of experience in many things, and I am surprised that she should torment herself about this; she knows well that her priest, her steward, her dais, have all been

taken away, and now she is disturbed for a trifle, because a rod which was borne before her food is taken away; she does harm to herself, being an attainted, convicted, and a condemned woman."

Bourgoing replied that she thought she had reason to be displeased, precisely because they showed ill-will in so small a matter, and for a trifle; she remembered that the same was done to King Richard, who was degraded from all honour and state, or at least of all signs of either, and then he was suddenly put to death, murdered in a moment. She feared the same would be done to her. Once more Sir Amyas flew into a rage, saying such words were not good to hear, and that such messages ought not to be sent to him, and accusing Bourgoing of himself inventing the message. Bourgoing assured him that he only repeated the Queen's words, and after a little further discussion they separated.

On Friday 3rd February Melville begged for an interview with Paulet, but the latter would not see him, and to all his messages of inquiry to know why he was separated from his mistress, and what he had done to deserve this, the same answer was returned,—Melville had done nothing blameworthy, but things must be as they were, and he must have patience.

Mary was more suffering in health during this time, and on the Saturday Bourgoing was sent to ask Paulet to allow him to search for some herbal remedies in the gardens of the neighbouring village. "Her Majesty," says Bourgoing, "sent the said Bourgoing to inform Sir Amyas of the indisposition, and to pray that he might be allowed to go out to gather herbs in some of the gardens of the gentlemen of the village to make a special remedy. He made a great point of this, but Sir Amyas said he should have everything he liked to ask for, if he would write it down, and being still pressed by Bourgoing to let him go himself, Sir Amyas replied that he could not be responsible alone for this, he must consult with his comrade Sir Drue Drury, and in the course of Monday he should have an answer. I pressed Sir Amyas," continues the faithful physician, "not to delay so long, as Her Majesty was already indisposed and quite crippled, I feared she should become seriously ill, as had often been the case before, the more especially as she had so few attendants with her to nurse and care for her, and for these reasons it was necessary for her to begin to use the remedies next day."[\[86\]](#)



On hearing this Paulet changed his mind, and as soon as Bourgoing left him, sent word that he might go out, although it was against his judgment. It is to be feared that this act of clemency was not due to mere benevolence on Paulet's part. A contemporary author thus comments on the fact: "This wretched traitor was expecting the warrant of execution, and knew no remedy would be needed, but to cause less suspicion he permitted on that day what had of late been forbidden."[\[87\]](#)

The same thought, doubtless, occurred to the Queen; for we read that on the next day, Sunday, when she was asked if she would continue the remedies, she, having heard of the arrival of Beale, replied that peradventure no more would be required, and that it was useless for her to take medicines if she was to die. Everything, indeed, now betokened the near approach of the final tragedy; nor were other signs wanting, such as impress the popular imagination.[\[88\]](#) "On the 29th January, which was a Sunday," writes another contemporary, "between midnight and one o'clock there appeared in the heavens a great flame of fire, which of a sudden illumined the window of the Queen's room, and gave a great light; it returned three times to the same place, and was seen in no other part of the said castle. This light was so bright that one could easily have read or written by it,—a thing which greatly astonished and alarmed the guards who were appointed to watch under that window, as they have all deposed."[\[89\]](#)

We must now leave the prisoner, to consider the cruel and, to her own courtiers, the most perplexing conduct of Elizabeth, as the moment approached when she saw herself forced to come to a final decision.

---

## CHAPTER IX

### THE DEATH WARRANT

THE warrant for the execution of the Queen of Scots was still unsigned, and Elizabeth remained a prey to indecision. Throughout the country every kind of possible and impossible rumour was afloat. Philip of Spain, it was said, was preparing a vast armament at Lisbon for the invasion of England. The Prince of Parma was expected to rescue the Queen of Scots, and even to carry off Elizabeth herself. The Duke of Guise was reported to have actually landed in Sussex, and the Scotch, it was declared, had marched across the Border. These and many other wild stories served to inflame public opinion. At last one report, more credible than the rest, averred that Paulet had put Mary to death. "God grant this is true," writes one of Walsingham's agents, "for she has lived too long; good Protestants blame the Queen for waiting so long, for God commanded that rulers should govern with great severity."[\[90\]](#)

What Paulet's views were of the agitation in general, and of this story, we learn by the following letter to Davison under date of 30th January:—

You may perceive by these letters enclosed, with mine answer to the same, that the report of the Scottish Queen's escape, or her taking away, as it is now termed, carrieth such credit in these parts, as it is followed with hue and cry. And although, considering my late letters to like effect, I did not think needful to advertise you thereof with speed, yet I would not hide it from you, and therefore do send it by one of my servants repairing to London about his own business, not doubting but that the same will come as speedily to your hands as if it had been sent by post. These seditious rumours are not to be neglected, in my simple opinion, and, indeed,

there is not a more ready way to levy forces to the achieving of that which these lewd reporters pretend to fear. I cannot let<sup>[91]</sup> them to flatter themselves with vain hope; but by the grace of God I will not lose this lady, my charge, without the loss of my life; neither shall it be possible for any force to take her out of my hands alive. And thus, etc.<sup>[92]</sup>

Burleigh and Walsingham took every opportunity of making capital out of the reports which they had themselves set going, and terrified their mistress with gloomy prophecies. Elizabeth, who still hesitated between desire for her cousin's death, which she regarded as her only safety, and fear of the results to herself of such a crime, became more and more gloomy and irresolute. She sought solitude in order to give herself more completely to her dark and troubled thoughts, and was often heard to murmur to herself, "*Aut fer, aut feri; ne feriare, feri*"—"Either suffer or strike; not to be struck, strike."

In Elizabeth's mysterious phrases and half-revealed wishes, her ministers understood that their mistress desired that the Queen of Scots<sup>[93]</sup> should be put to death in some secret manner, in which she herself should not be implicated, and without her signing the warrant of execution. She even gave them to understand that the oath of association taken by them for the protection of her person, in a manner bound them to some such act. This interpretation of their oath utterly amazed and alarmed them, not from any special horror of such a crime, but on account of their intimate knowledge of Elizabeth's character. It was evident to them that her wish was to escape from the responsibility of such an act, and that in the event of the crime being committed, on them alone would fall the penalty.

The unsigned warrant remained meanwhile in Davison's charge.

On the 1st of February, the Court being then at Greenwich, Lord Howard (Lord High Admiral) sent for Davison by order of the Queen. The latter arrived in haste, and after a few words with the Admiral, returned to fetch the warrant, which he brought to the Queen placed, as if by accident, with other papers. Elizabeth commenced by speaking of indifferent matters, such as the beauty of the weather, and then demanded what he held in his hand.

Davison replied that he had brought some documents which required the Queen's signature, and among them a certain paper which he had fetched by order of Lord Howard. Elizabeth signed the papers one after the other, including the warrant, which she feigned not to perceive, and threw it carelessly on the table with the rest. Her first intention, apparently, had been to pretend that she had signed the warrant by inadvertence, but suddenly changing her mind, she turned to Davison and told him that she had only delayed so long in order to show her extreme reluctance to sign the warrant. "Are you not distressed to see me do this?" she said. To this curious question Davison replied that he preferred the death of a guilty person to that of an innocent one, and that he could not regret that Her Majesty had taken the only means of protecting herself from the designs of her enemies.

Elizabeth smiled, and presently told Davison to take the warrant to the Lord Chancellor that he might attach the great seal to it, and transmit it to those designed to preside at its execution. The Queen added that this must be done as secretly as possible, as, if the matter were known before the day of execution, it might be dangerous for her. "On the road," she added, with a sinister smile, "you will visit Walsingham to show him the warrant. Ill as he is, I fear the pain it will cause him will kill him outright." After this bitter jest the Queen told Davison that the execution could not be in public; it must not be even in the courtyard at Fotheringay, she said, but must take place in the great hall on the ground-floor, and added that she would be troubled no more about the matter. She desired to hear nothing more till all was over. "For my part," added Elizabeth, "I have done all that can be required of me by law or reason."<sup>[94]</sup> While, however, Davison was collecting the papers before retiring, the Queen spoke again, and for the first time disclosed in full her real wishes. After complaining of the want of zeal of Paulet and her other advisers, she thus continued: "Ought they not better to understand the spirit of the association of which they are members, and so relieve me of this enormous responsibility? Would it not be better for me to risk personal danger than to take the life of a relation? But if a loyal subject were to save me from the embarrassment by dealing the blow, the resentment of France and Scotland might be disarmed. Sir Amyas Paulet and Drury are members of the association; cannot they so arrange that no blame shall attach to me, if you and Walsingham come to an understanding and write to them conjointly to sound their dispositions on the subject?"

"It would be time lost," replied Davison; "it is certain that they would refuse, as the statute only protects them so long as they act under a formal order from your Majesty."

Elizabeth still insisted, and in a firm voice bade Davison see that this matter was settled secretly, and promptly, as her own life was being continually threatened with the greatest dangers.

Seeing that the Queen's mind was made up, Davison, after consulting with Burleigh and Walsingham, composed the following letter, which was sent the same day by a special messenger to Fotheringay:—

### **LETTER TO SIR AMYAS PAULET.[\[95\]](#)**

After our hearty commendations, we find by speech lately uttered by Her Majesty that she doth note in you both a lack of that care and zeal of her service that she looketh for at your hands, in that you have not in all this time of yourselves (without other provocation) found out some way to shorten the life of that Queen, considering the great peril she [Elizabeth] is subject unto hourly, so long as the said Queen shall live. Wherein, besides a kind of lack of love towards her, she noteth greatly that you have not that care of your own particular safeties, or rather of the preservation of religion and the public good and prosperity of your country, that reason and policy commandeth, especially having so good a warrant and ground for the satisfaction of your consciences towards God and the discharge of your credit and reputation towards the world, as the oath of association which you both have so solemnly taken and vowed, and especially the matter wherewith she [Mary] standeth charged being so clearly and manifestly proved against her. And therefore she [Elizabeth] taketh it most unkindly towards her, that men professing that love towards her that you do, should in any kind of sort, for lack of the discharge of your duties, cast the burthen upon her, knowing as you do her indisposition to shed blood, especially of one of that sex and

quality, and so near to her in blood as the said Queen is. These respects we find do greatly trouble her Majesty, who, we assure you, has sundry times protested that if the regard of the danger of her good subjects and faithful servants did not more move her than her own peril, she would never be drawn to assent to the shedding of her blood. We thought it very meet to acquaint you with these speeches lately passed from Her Majesty, referring the same to your good judgments. And so we commit you to the protection of the Almighty.—Your most assured friends,

FRANCIS WALSHINGHAM.

WILLIAM DAVISON.

*At LONDON, 1st February 1586.*

A few hours after the despatch of this letter, Davison, who trembled lest it should ever be made public, sent the following postscript by a fresh messenger: "I pray you let this and the enclosed be committed to the fire, which measure shall be likewise mete to your answer after it hath been communicated to Her Majesty for her satisfaction." And on the 3rd of February Davison sent another anxious reminder: "I entreated you in my last to burn my letters sent unto you for the argument sake, which, by your answer to Mr. Secretary (which I have seen), appeareth not to have been done. I pray you let me entreat you to make heretics of the one and the other, as I mean to use yours, after Her Majesty hath seen it." This second urgent note was written before Davison was aware how little "satisfaction" Paulet's answer was likely to give his mistress. In fact the letter had been received with horror and indignation by Paulet and his colleague.

Although we know by Paulet's own extravagant expressions of his evident wishes for Mary's death, and while we may conclude with Mr. Hosack that he sought his own safety in refusing the assassin's part proposed to him, he apparently retained enough honourable feeling to feel keenly the degradation implied in such a proposal, and sent at once a manly and energetic refusal.

**A. PAULET—D. DRURY.**[\[96\]](#)

(A copy of a letter to Sir Francis Walsingham, of the 2nd of February 1586, at six in the afternoon, being the answer to a letter from him, the said Sir Francis, of the 1st of February 1586, received at Fotheringay the 2nd day of February, at five in the afternoon.)

Your letters of yesterday coming to my hands this present day at five in the afternoon, I would not fail, according to your directions, to return my answer with all possible speed, which (*sic*) shall deliver unto you with great grief and bitterness of mind, in that I am so unhappy to have lived to see this unhappy day, in the which I am required by direction from my most gracious sovereign to do an act which God and the law forbiddeth. My good livings and life are at Her Majesty's disposition, and am ready to so lose them this next morrow if it shall so please her, acknowledging that I hold them as of her mere and most gracious favour, and do not desire them to enjoy them, but with her Highness's good liking. But God forbid that I should make so foul a shipwreck of my conscience, or leave so great a blot to my poor posterity, to shed blood without law or warrant. Trusting that Her Majesty, of her accustomed clemency, will take this my dutiful answer in good part (and the rather by your good mediation), as proceeding from one who will never be inferior to any Christian subject living in duty, honour, love, and obedience towards his sovereign. And thus I commit you to the mercy of the Almighty.—Your most assured poor friends,

A. PAULET.  
D. DRURY.

*From FOTHERINGAY, 2nd February 1586.*

Your letters coming in the plural number seem to be meant as to Sir Drue Drury as to myself, and yet because he is not named in them, neither the letter directed unto him, he forbeareth to make any particular answer, but subscribeth in heart to my opinion.

On the morning of 3rd February Elizabeth summoned Davison again to her presence, and inquired sharply whether he had taken the warrant of execution to the Chancellor. On his replying that he had done so, the Queen, in a brusque and severe tone, asked why he had been in such a hurry.

"I obeyed your Majesty's orders," timidly replied Davison, "and I thought there should be no delay in an affair of so much importance."

"It is true," returned Elizabeth, "but it seems to me that there may be a better and a surer way of ending the matter."

To which Davison answered, that as the execution was to take place, the most honourable way was also the most sure.[\[97\]](#)

On leaving the Queen's presence, Davison, very anxious in mind, hurried to acquaint Burleigh and Sir Christopher Hatton with his suspicions. Burleigh was detained at home by the gout, but he sent at once for all the members of the council. He was now determined to act on his own responsibility; he had the warrant duly signed by Elizabeth in his possession, yet he well remembered that she had before twice signed and twice cancelled the warrant for the Duke of Norfolk's execution. Burleigh was also well aware, as we know, of the correspondence going on with Paulet, but he probably anticipated Paulet's refusal; in any case he resolved to act without waiting for his reply. When therefore his colleagues were assembled,[\[98\]](#) he laid the signed warrant before them, informed them that their mistress had now done all that the law required of her, and suggested that it was now their duty to obey her without troubling her further. He also suggested that in a matter of so grave importance it would be well that all the members of the council should unite in sharing the responsibility of the act, in case any question should arise later regarding it. Burleigh's proposals were carried unanimously, and it was determined that the warrant should be given to Beale, the clerk of council, to be conveyed by him to the Earls of Kent and



Shrewsbury, who were appointed to see to its execution. Burleigh told Beale that the matter required great speed and secrecy, as if known, "H.M.'s life would be in hazard."[\[99\]](#)

Paulet's letter reached London on 4th February, but it was not communicated to Elizabeth till the next day, Sunday. That morning the Queen sent for Davison, on whom, owing to Walsingham's illness, fell the unpleasing task of showing her the letter. At first the Queen made no allusion to the subject. She related to him that she had dreamed the previous night that she was punishing him for being the cause of the death of the Queen of Scots, adding with a smile that she had been so possessed by this dream that if she had had a sword at hand she would have pierced him through with it. Davison, justly alarmed at the Queen's sinister tone and ambiguous words, once more asked her if she had decided to have the Queen of Scots executed or not.

"Yes," cried she impetuously, but, she continued, "I do not like the legal method, as upon me alone will fall all the responsibility;" and as Davison repeated his objections to any other method, Elizabeth shrugged her shoulders, and looking at him contemptuously, remarked that "wiser men than he held a different opinion." Then suddenly changing the subject, the Queen inquired if there had been any reply from Paulet. When Davison, in fear and trembling, had presented the letter, she read it with extreme indignation. Pacing the room uneasily, she gave way to violent anger and disappointment, and abused Paulet in no measured terms. He was no longer her "loving Amyas," but one of those "dainty and precise" fellows who would promise everything and perform nothing. Nay, more, he was a perjurer; for had he not subscribed the bond of association, by which he obliged himself, at the hazard of his life, to save his Queen? "But," added Elizabeth, "I can do without him; I have Wingfield, who will not draw back."

For the next few days Elizabeth made no further sign. She maintained an absolute reserve on the subject which was torturing her till the morning of the day of execution, when, throwing off the mask, she told Davison that it was time this ended, adding with a terrible oath that it was a shame for her ministers that the affair was not yet terminated. Her ministers had indeed ended all, as she was soon to learn.[\[100\]](#)

As soon as Beale had received the warrant he started for Fotheringay.<sup>[101]</sup> Yet the question of the manner of Mary's death was even still undecided, as we learn by the following curious facts now first brought to light: "When R.B. (Robert Beale) was come to Fotheringay, he understood from Sir A. Paulet and Sir Drue Drury that they had been dealt with by a letter if they could have been induced to suffer her to have been violently smothered by some that should have been appointed for that purpose. But they disliked that course as dishonourable and dangerous, and so did R.B., and therefore thought it convenient to have it done by law in such sort as they might justify their doings by law."<sup>[102]</sup> And here Beale adds in his own hand the following: "One Wingfield (as it was thought) should have been appointed for this deed, and it seemed that H.M. would have had it done so rather than otherwise, pretending that Archibald Douglas, the Sco. Ambassador, had so advised her. Of all her councillors it is thought that the Earl of Leicestre did most exhort her unto this course, but both the secretaries misliked thereof, and so did Sir Amis Paulet and Sir Drue Drury. H.M. would fain have had it so, alledging the association whereby men seemed bound to such a thing and promising pardon. But the matter being in consideration at R.B. being at Fotheringay by the example of Edward II. and Richard II., it was not thought convenient or safe to proceed covertly but openly, according to the statute."<sup>[103]</sup>

Walsingham had taken upon himself all the arrangements with the executioner, telling Beale "that he would take order to send down the hangman (Bull) and his instrument by George Digby, his servant.... He was hired by one Anthony Hall, a Londoner, servant under the sd. Mr. Secretary, and then dwelling without Bishops Gate, who afterwards reported unto the said R.B. (Robert Beale) and others, that he agreed with him for £10 for his labour." Walsingham sent Digby first to Sir Walter Mildmay, begging him to lodge the executioner at his house Apthorpe, distant but two miles from Fotheringay. But Sir Walter,—and we are not surprised to learn it,—"misliked therof," and he was eventually lodged "in an inn at Fotheringay, kept secretly until the day."<sup>[104]</sup> Walsingham had announced Bull's arrival to Paulet in these terms: "I send down the executioner by a trusty servant of mine, who will be at Fotheringay upon Sunday at night. His instrument is put in a trunk, and he passeth as a serving-man. There is

great care taken to have the matter pass in secrecy"[105] (signed London, 3rd February).

After informing the Earl of Kent of his duty on the way, Beale had reached Fotheringay on Sunday evening, 5th February, where he showed his commission to Paulet and Drury, and the next day he hastened to communicate it to the Earl of Shrewsbury, who was staying in the neighbourhood. That same evening Beale returned to the castle to dine with Paulet, accompanied by several persons who were to be present at the execution—among them was Dr. Fletcher, Dean of Peterborough. And here let us pause on the eve of the day which brought the fatal tidings to Queen Mary. If Elizabeth was troubled in mind, and haunted with remorse, Mary, on the contrary, awaited in absolute calm and resignation the end of her life of sorrows.[106]

---

## CHAPTER X

### THE LAST DAY ON EARTH

“ON Tuesday the 7th of February several persons arrived, among whom it is supposed was the sheriff, who all dined with Sir Amyas. After dinner came the Comte de Kent, and last of all Monsieur de Sheresburg, at whose arrival we were all dismayed and in great fear, having for the last three days imagined many coming evils for Her Majesty, who herself felt convinced that the blow was about to fall.”[\[107\]](#)

Bourgoing's simple words need no comment. It is easy to realise the suspense and anxiety experienced during these days by Mary's faithful servants. Bourgoing thus continues: "They sent to ask to speak with Her Majesty, who replied that she was in bed, but that if the matter were pressing she begged for a little time to get up. Receiving for answer that the matter was of consequence, Her Majesty prepared to receive them in her chamber seated in her chair at the foot of her bed. When the two said Counts, together with Mr. Beale, Mr. Paulet, and Sir Drue Drury, were come, all of whom remained uncovered while conversing with Her Majesty, [\[108\]](#) the Comte de Sheresburg commenced to say that the Queen of England had sent them to her in her own name and that of the state, to make known to her that after having proceeded as she knew honourably and as was expedient for the affair of which she was accused, found guilty, and therefore condemned, as she knew and had been made aware of, on the part of the Queen, she must now hear her sentence read, which he and le Comte de Kent, together with Mr. Beale, were appointed to carry out according to the Queen's intention; and thereupon the said Beale began to read a document on parchment, to which was appended the great seal of England in yellow wax, in which Her Majesty was named Mary Stuart, daughter of James V., otherwise called Queen of Scotland, Dowager of France.”[\[109\]](#)

Other writers give us a few more details which here supplement Bourgoing's narrative.<sup>[110]</sup> The Queen seems to have received the commissioners surrounded by her whole household, among whom her physician is specially mentioned. We are also told that Shrewsbury informed her that his royal mistress had delayed the execution of the sentence as long as she was able, till at last, being pressed on all sides, she had been obliged to cede to the importunities of her subjects. Mary listened to the warrant with her usual calmness and dignity.<sup>[111]</sup> "When it was finished, Her Majesty, with great constancy and without emotion, replied:—

'I thank you for such welcome news. You will do me a great good in withdrawing me from this world, out of which I am very glad to go, on account of the miseries I see in it, and of being myself in continual affliction. I am of no good and of no use to any one. I have long looked for this, and have expected it day by day for eighteen years. Unworthy though I think myself, I am by the grace of God a queen born and a queen anointed, a near relative of the Queen (of England), granddaughter of King Henry VII., and I have had the honour to be Queen of France, but in all my life I have had only sorrow. I am very happy that it pleases God by your means to free me from so many evils and afflictions. I am quite ready and very happy to die, and to shed my blood for Almighty God, my Saviour and my Creator, and for the Catholic Church, and to maintain its rights in this country, for the welfare of which I have always done everything that has been possible, loving the Queen, my good sister, and this island as dearly as myself, as I have often shown. I have constantly offered to arrange matters peacefully and to bring things to a happy issue, but have always been rejected and put aside. I have been held a prisoner without having merited it, for I came into this country of my own free will in hope of succour, according to the promise of the Queen. We should have agreed very well, and would together have arranged matters so well as to satisfy every one if I had at once been permitted to speak to her.' Mary continued to speak on this capital point, her unjust imprisonment for eighteen years, in violation of all laws human and divine, as also of all the humiliation and sorrow it had brought upon her; and then, placing her hand on an English New Testament which lay on the table by her, she protested on oath that she was innocent of the crime imputed to her. 'I have never,' she said most solemnly, 'either desired the death of the Queen, or endeavoured to bring it about, or that of

any other person.' The Earl of Kent objected that it was a Catholic Bible, the Pope's version, and that therefore the oath was of no avail. 'This is the translation approved by the Church,' replied Mary, 'and if I swear on the book which I believe to be the true version, will not your lordship believe my oath more than if I were to swear on a translation in which I do not believe?'"

Kent now urged Mary to think of her soul, and, being so near death, to confess her faults and embrace the "true religion." Here are Bourgoing's words:—

"They offered her the Dean of Peterbourg, one of the most learned in Europe, to comfort her, from whom she might learn regarding her salvation and which was the true religion. She had, they said, remained in that in which she had been instructed in her youth, and for want of some one to show her the truth, and that now as she had little time to live—only a few hours to remain in this world—she must think of her conscience and recognise the true religion, and not remain longer in these follies and abominations of popery. 'We have the true Word of God,' said they, 'and you can make the comparison when you have spoken to the minister, and then make your choice. We speak in conscience and with the desire that you should be in good case at the hour of death and be converted to God.' Her Majesty said, 'I have been for long sufficiently instructed in my religion. I know well what I ought to know of it, for my salvation and the good of my soul. I have not only heard, or read, the words of the most learned men of the Catholic religion, but also of the Protestant religion. I have spoken with them and heard them preach, but I have been unable to find anything in them which could turn me from my first belief. When I came to this country, being in the house of Monsieur de Sheresburg, in order to satisfy every one, and to show that I acted only by conscience, I listened to the most able Protestant preachers for nearly the whole of one Lent, but at the end, finding no edification, I withdrew.' This the Earl confirmed, adding that he had invited her to return. Mary continued: 'Having lived till now in the true faith, this is not the time to change, but, on the contrary, it is the very moment when it is most needful that I should remain firm and constant, as I intend to do. Rather than be unfaithful to it I would wish to lose ten thousand lives, if I had as many, and, if it were possible, shed all my blood several times over, and endure all the most cruel torments you

could threaten me with. No,' concluded the Queen; 'for my consolation I beg you to let me see my own priest, so that he may help me to prepare the better for death. I wish for no other.'"

On this subject Elizabeth had given stringent orders to the commissioners, [\[112\]](#) and the dying Queen's last request was cruelly denied. "It is our duty," said the lords, "to prevent such abominations which offend God," and they once more pressed her to see the Dean.

"No," replied the Queen vehemently, "I will do no such thing. I have nothing to do with him, and I neither wish to see him nor to listen to him. Let no one take any more trouble to persuade me. I see well that they would wish to destroy my soul together with my body if they could, but they will not succeed. I hope that God will have mercy upon me, as I have already prepared myself (for death). He knows my heart, my will, my intentions, and what is my desire and resolve. He will succour me and grant me pardon for my faults. It surprises me that at the end, when I have most need of my priest, they refuse him to me; I had asked to have him, especially to assist me at my last end. The Queen of England had granted my request and had allowed him to come to me; and since then they have taken him from me and prevented him from coming at the most necessary time,—a thing too cruel and inhuman, and unworthy of Englishmen."[\[113\]](#) The commissioners again declared that it was against their conscience to allow her to see her chaplain, and denied having known that he had been previously permitted to return to Fotheringay.

In the midst of so much painful discussion, and under the trial of being denied the only consolation she desired, Kent's next words must have brought a great joy to Mary. She who had so often and so ardently wished to shed her blood for her faith, was now to be given good cause of thinking her desires were about to be fulfilled. Kent told the Queen "that it had been decided that she could not live without endangering the state, the life of the Queen, and the religion. Your life," said he, "would be the death of our religion, your death will be its life."[\[114\]](#)

"I was far," exclaimed Mary, "from thinking myself worthy of such a death, and I humbly receive it as a token of my admission among the elect servants of God."[\[115\]](#) Mary begged to know whether the other powers had

interceded for her. She was told that they had done so, but that not one of them could show a good reason why she should not be put to death. She then spoke of her son, complaining of his conduct to her, but she was told that he had done all that was in his power, and that she ought to die in charity. "I forgive every one," replied Mary, "and accuse no one; but I may follow David's example and pray God to confound and punish His enemies and those of His divinity and religion, and pardon our enemies."

The Queen asked when she was to die. "Tomorrow morning at eight o'clock," [\[116\]](#) replied Shrewsbury in faltering tones. Mary remarked that the time was very short. She had been unable, she said, to make her will for want of her papers and the account books of her household. She again asked to be permitted to see her chaplain, and to have her papers restored to her. Both requests were unavailing. Her papers, she was told, were in Wade's hands, who was then in France. The Queen then anxiously inquired what Queen Elizabeth had decided regarding her place of burial, and whether she would permit her body to lie beside her royal husband's in St. Denis, or at least by her mother in the church of St. Peter at Rheims.

The lords replied that their mistress would not allow her to be buried in France. "At least then," continued Mary, "my requests in favour of my servants will be granted?" They replied that they had no instructions on this point, but that they saw nothing which should prevent her attendants acting as she wished and having their goods. The lords and their party now withdrew. As they were bowing farewell to the Queen, she asked them what had become of Nau and Curle.

"We do not know," they replied.

"Is Nau dead?" said Mary.

"No," they answered; and Drury added, "He has not escaped; he still drags his fetters."

"Her Majesty," says Bourgoing, "said that she was to die for him who accused her, and who caused her to die to save himself."

The commissioners told her that she was under their guardianship, but that from this moment they entrusted her to Sir Amyas's care, to be delivered to them when they should come.



Mary's followers endeavoured to obtain a reprieve for their beloved mistress. "The servants of Her Majesty with tears and cries declared that the time was too short for her to put her affairs in order. It was impossible that the night could be long enough; she was leaving her servants destitute of all means. They begged the lords to have pity on them, saying that it appeared that by the terms of their commission they had power to have the execution when they wished, and praying them to defer it for some few hours." Bourgoing, who appears to have been the spokesman, addressing Lord Shrewsbury, reminded him how he had cared for his lordship once when he was ill, and recalled the sentiments of generous compassion which he had shown in other days for the Queen when she was his prisoner.

Beale himself said that by the terms of the commission a delay might be granted, but Lord Shrewsbury answered that "he had no power to grant the smallest delay";[\[117\]](#) and having bowed to the Queen, he retired with the other commissioners.

When she was left alone with her sorrowful attendants, the Queen, turning to them, said: "Well, Jane Kennedy, did I not tell you this would happen? Did I not well know that they desired to do as they have done? I saw well by those proceedings at what they aimed. I knew they would never allow me to live; I was too great an obstacle to their religion. Well, let supper be hastened, so that I may put my affairs in order. My children," continued Mary, "it is now no time to weep; that is useless; what do you now fear? You should rather rejoice to see me on such a good road to being delivered from the many evils and afflictions which have so long been my portion. I am of no good in this world—I am of use to no one; you should rather, like me, console yourselves that it has pleased God to give me this grace,—that I die for so good a quarrel. I return thanks to Him, and thank Him with a very good heart that it has pleased Him to call me at this hour, and that He has given me such good occasion to suffer death for His holy name, His true religion, and His Church. No greater good could befall me in this world. You see—are you now not witnesses?—why they put me to death. Consider why they sent Lord Kent with his disputes and religious controversies. Have not they now plainly shown their intention? Is it not notorious that they have always feared that if I lived they would never be in safety regarding their religion? Therefore," concluded Mary, "let each one be patient and leave us here to pray to God."[\[118\]](#)

When all the men had left her room, the Queen spent some time in prayer with her women. Then she set herself to count her money, and after dividing it into several parts, put each amount into as many little purses, with a paper on which the name of each of her servants was written in her own hand.[\[119\]](#)

At supper, which had been hastened according to her order, she, as usual, ate little. Her sorrowing attendants rivalled each other in zeal to serve and wait upon her, listening eagerly to her slightest word. Since Melville's departure, Bourgoing had taken his place as steward. He now presented the dishes with one trembling hand, furtively wiping away his tears with the other. Mary alone remained perfectly calm. Sometimes she seemed absorbed in a profound reverie, while a sweet smile animated her countenance, as if she had received some joyful tidings; at others she conversed with her faithful physician. "Did you remark, Bourgoing," said she, "what Lord Kent said in his interview with me? He said that my life would have been the death of their religion, and that my death will be its life. Oh, how happy those words make me! Here at last is the truth. It has declared itself in a striking manner, and I beg you to observe it. They told me that I was to die because I had plotted against the Queen, and here is Lord Kent sent to me to convert me, and what does he tell me?—that I am to die on account of my religion. If he hoped to make me embrace his faith," continued Mary with a smile, "he has quite lost his time, and certainly to convince me it would have required another sort of doctor than that one. For all the lives in the world I would not change in one little thought."[\[120\]](#)

"When supper was over," says Bourgoing, "Her Majesty sent for all her servants and exhorted them to mutual charity, and in a long discourse took leave of them, forgiving them all, and begging them to pray God for her. She admonished each separately, charging them to live at peace with each other, and to give up all past enmities or bitterness, and she showed in all this great proofs of wisdom, understanding, and constancy."

As the end draws near, the faithful physician curtails his journal, as if unable to describe more fully what it grieved him so deeply to witness, but other authorities give us a fuller picture of this affecting scene, which will serve to supplement this brief description.[\[121\]](#)

At the close of supper, and when her attendants were all assembled round her, the Queen drank to their welfare and asked them if they would not drink to hers. They all threw themselves on their knees, and mingling their tears with the wine, begged her forgiveness for any faults they might have been guilty of.

"With all my heart, my children," she replied with a gentle smile, "even as I pray you to forgive me any injustice or harshness of which I may have been guilty towards you."

She reminded them of their duty to God, and exhorted them to remain firm and constant in their faith, and to live together in good friendship and charity as fellow-Christians, which she said would now be easier, as Nau was no longer among them to sow discord. The Queen repeated that Nau was the cause of her death, but that she forgave him. Although she seems to have felt keenly Nau's apparent ingratitude, and to have fully believed the reports of his conduct, which appeared to be only too well founded,<sup>[122]</sup> Mary was not unjust to him, as she declares expressly in her will that if Nau can be proved innocent towards her, he is to have his pension.<sup>[123]</sup>

Seated in an arm-chair, with an inventory in her hand, the Queen now examined the contents of her wardrobe,<sup>[124]</sup> and distributed among her attendants the garments and jewels and the small quantity of silver plate and valuable furniture which had escaped the search at Chartley and Queen Elizabeth's rapacity. She accompanied each gift with some kind and gracious word, which enhanced its value tenfold. Mary also charged her followers to take certain mementos from her to her son, to the King and Queen of France, the King of Spain, Catherine of Medici, her cousins of Lorraine, and other friends. No one, absent or present, was forgotten.<sup>[125]</sup> When all was arranged, about nine o'clock the Queen wrote the following letter to her chaplain, begging him to watch in spirit with her, and to pray for her:—

**TO PRÉAU.**<sup>[126]</sup>

No date (*7th February 1587*).

I have been attacked to-day concerning my religion, and urged to receive consolation from the heretics. You will hear from Bourgoin and the others that I at least faithfully made protestation for my faith, in which I wish to die. I requested to have you [with me], in order that I might make my confession and receive my Sacrament, which was cruelly refused me, as well as leave for my body to be removed, and the power of making a free Will, or writing anything except what shall pass through their hands and be subject to the good pleasure of their mistress. In default of that, I confess in general the gravity of my sins, as I had intended to do to you in particular, begging you in the name of God to pray and watch with me this night in satisfaction for my sins, and to send me your Absolution, and pardon for the things in which I have offended you. I shall try to see you in their presence, as they have allowed me to see the steward,[\[127\]](#) and if I am allowed, I shall ask the blessing on my knees before all. Advise me as to the most appropriate prayers for this night and to-morrow morning, as the time is short and I have no leisure to write; but I will recommend you, as well as the others, and especially your Benefices shall be spared to you, and I will recommend you to the King. I have no more time. Tell me in writing of all that you shall think best for the good of my soul. I shall send you a last little token.

She then drew up her will. This long and interesting document, written, as the Queen says, "being near to death," testifies to her faith and last wishes. Mary declares that she dies in the Catholic faith, and orders that solemn services for the repose of her soul shall be held at St. Denis and at the Church of St. Pierre at Rheims. She directs that all her debts shall be paid, and whatever money shall remain over she leaves for legacies to her servants. She appoints as her executors the Duke of Guise, the Archbishop of Glasgow, the Bishop of Ross, and her Chancellor, du Ruisseau.[\[128\]](#)

When Mary had written her will, she concluded a letter to the King of France which she had begun on the previous day. Perhaps few historic relics are more touching than this letter, the original of which we have seen, and

which, by its firm, clear characters, bears testimony to the perfect calmness and tranquillity of mind with which it was written.

### LETTER TO HENRY III., KING OF FRANCE.[\[129\]](#)

MONSIEUR, MY BROTHER-IN-LAW—It is now almost twenty years since I—by God's permission, and for my sins, as I think—came to throw myself upon the mercy of this Queen, my cousin, where I have had many trials; and now at last I am condemned to death by her and her Government. I have asked for my papers—which were taken by them—in order to make my will, but I have obtained nothing that can be of use to me, nor have I permission to make another will; and they have even refused the desire I expressed that my body should, after my death, be removed to your kingdom, where I, your sister and former ally, had the honour to be Queen.

To-day after dinner it was announced to me that to-morrow, without fail, I must die like a criminal, at seven[\[130\]](#) o'clock of the morning.

I have not had leisure to write a long account of all that took place, but if you will please to believe my Physician and those others my sorrowful Servants, you will know the truth, and that, thanks be to God, I despise death, and faithfully protest that I suffer it innocent of all crime, even were I their subject, which I can never be. The Catholic Faith and the maintenance of the right which God has given me to this throne, these are the two points of my condemnation; and yet they will not allow me to say that I die for the Catholic Faith, but say that I die because I am dangerous to their religion, and the proof of this is that they have taken my chaplain from me. Although he is in the house, I cannot obtain leave for him to hear my confession, nor give me Holy Communion at the hour of my death; but they made great efforts that I should receive consolation and religious instruction from their minister brought here for the purpose.

The bearer of this and his companions—chiefly subjects of yours—will testify to you of my deportment at this the last

scene of my life. It remains only for me to implore you, as Most Christian King, my brother-in-law, friend and ally, who have done me so much honour as to love me and protest of your affection, that under this blow you show proof of your virtue in these matters by charitably aiding me in that which it is impossible for me to do without your assistance, namely, to reward my desolate attendants by giving them their salaries, and by having prayer made to God for a Queen who has been called Very-Christian, and who dies a Catholic and destitute of all means.

Regarding my son, I commend him to you inasmuch as he shall merit it, as I cannot answer for him; for my servants I beg your help with clasped hands. I venture to send you two rare stones, valuable for health, the which I desire you to have in perfection, as also I wish you a long and happy life. You will receive them as from your very affectionate sister-in-law, who in dying desires to show her affection for you. I will again recommend my servants to you in a memoranda, and you will command, if you please, that my soul shall benefit by a portion of that which you owe me, in honour of Jesus Christ, to whom I will pray for you to-morrow at my death. I beg you to grant sufficient to found an Obit, and to make the desired Alms.—This Wednesday, at two hours after midnight.—Your very affectionate good sister,

MARIE.

When this, her last letter, was written, the Queen made a short memorandum to recommend once more her attendants to Henry III. She begged him to take Bourgoing as his doctor, and "to believe all he should tell him."

Having now set all her affairs in order, Mary told her attendants that "she wished to think no more of worldly matters, but desired to employ the little time she had to live for the things of eternity." It was now two o'clock in the morning. In order to imitate our Lord, and to prepare for her last journey,

the Queen had her feet washed. Then, overcome with fatigue, she lay down on her bed without undressing, while her women, who had already arrayed themselves in mourning garments to mark their grief, watched and prayed around her.<sup>[131]</sup> It was the Queen's custom to have some pages of the lives of the saints read to her every evening. This night she desired Jane Kennedy to look for the life of some saint who had once been a great sinner. She stopped her at the life of the good thief, saying humbly, "In truth he was a great sinner, but not so great as I have been. I wish to take him for my patron for the time that remains to me. May my Saviour, in memory of His passion, remember me and have mercy on me, as He had of him at the hour of His death."

It presently occurred to the Queen that a handkerchief would be required to bandage her eyes. She told one of her women to bring her a very fine and beautiful one, edged with gold embroidery, and carefully put it aside for the occasion. For some hours the Queen rested on her bed. She lay immovable, with closed eyes and hands crossed on her breast, but she did not sleep. Her attendants perceived, by the movement of her lips and an occasional peaceful smile, that she was praying, and all absorbed in the thought of the life to come. As Jane Kennedy expressed it, she seemed to be "laughing with the angels." Outside the Queen's room sinister noises disturbed the silence of the night. From the great hall came ominous sounds of hammering, and in the intervals of silence the measured tramp of the troops posted round the castle could be distinguished.

Thus passed the dreary night, full of anguish to the watchers, but spent in a holy calm and peace by the royal victim herself.

---



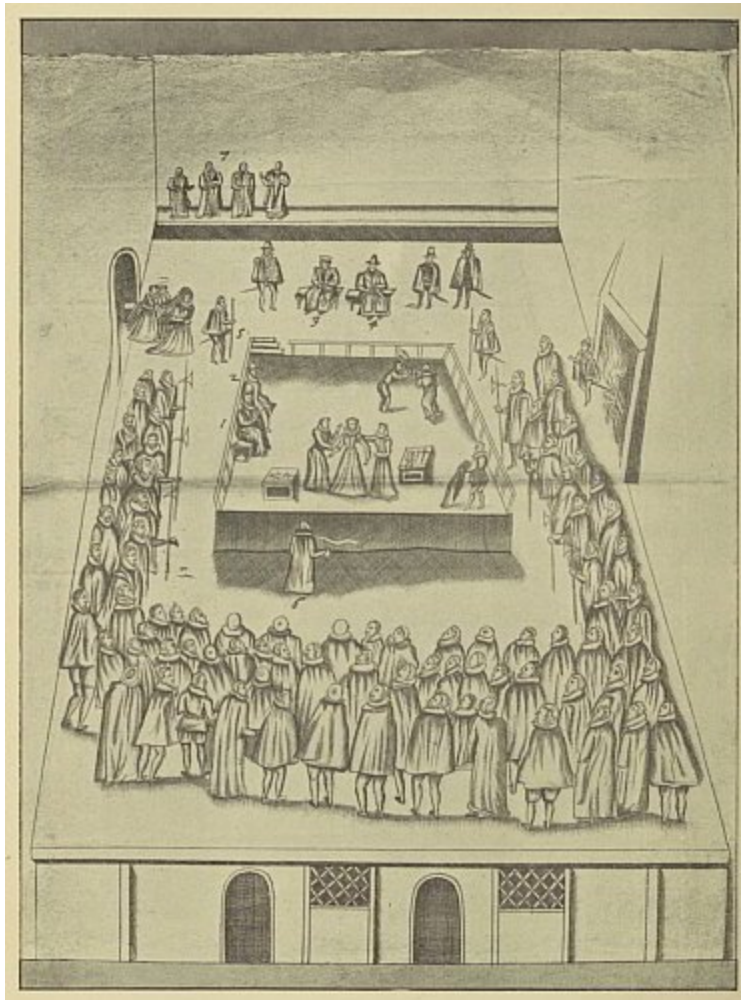
## CHAPTER XI

### THE END

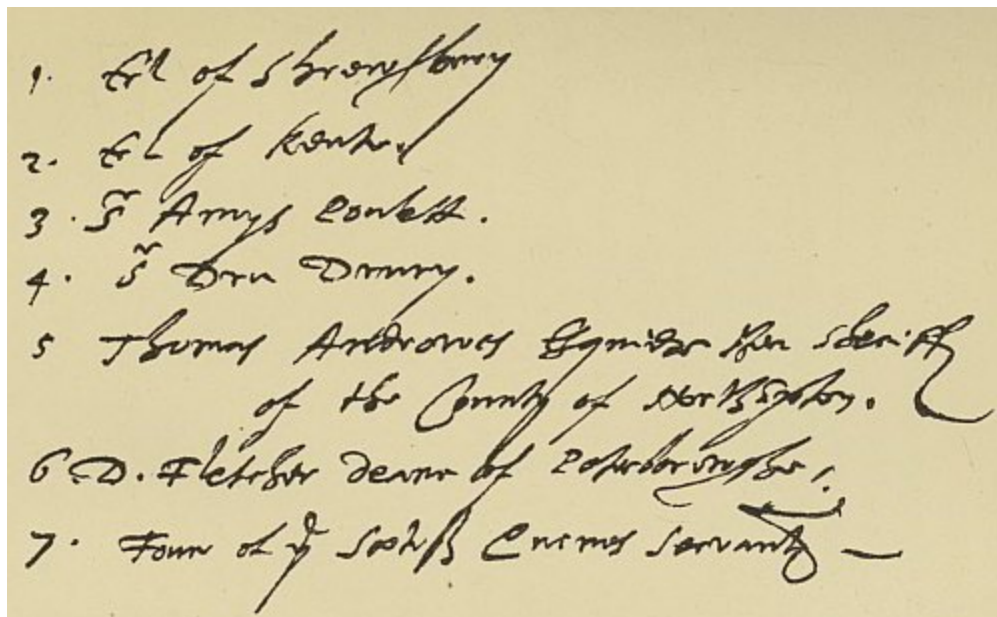
"He is not worthy of the joys of heaven whose body cannot suffer the stroke of the executioner."—Queen Mary to Kent, Camden, p. 454.

**I**T was Tuesday morning, the 8th of February.

When the Queen heard six o'clock strike she called her women to her, reminding them that she had but two hours to live.[\[132\]](#) Then rising, she dressed herself with unusual care and magnificence, as in preparation for some great and solemn occasion. Her robes—the only ones she had reserved of former splendours—were such as were then worn by queens-dowager. The skirt and bodice of black satin were worn over a petticoat of russet-brown velvet; while the long regal mantle, also of black satin, embroidered with gold and trimmed with fur, had long hanging sleeves and a train. The Queen's head-dress was of white crape, from which fell a long veil of the same delicate material, edged with lace. Round her neck she wore a chain of scented beads with a cross, and at her waist a golden rosary.



**Contemporary Drawing of the Execution of Mary Queen of Scots at  
Fotheringhay.  
From the Calthorpe MS.  
[Enlarge](#)**



List of Names, in Beale's handwriting, of those present at the Execution.  
Accompanying the Calthorpe Drawing.

[Enlarge](#)

While Mary dressed she gave orders that all her household should assemble. When this was done, Bourgoing, by her desire, read her will aloud, after which she signed it, and gave it to him to deliver to the Duke of Guise, entrusting him at the same time with her "principal notes and papers" and her gifts to the King and Queen of France; then sending for the casket containing her money, Mary distributed the little purses she had prepared the evening before, and put aside a sum of 700 écus for the poor, which was afterwards given to M. de Préau to distribute. To each of her male attendants the Queen also gave two rose nobles to be given to the poor, *à son intention*, nor were the immediate wants of the little band of followers forgotten, for the Queen gave 150 écus to Bourgoing to help to defray the journey to France. The whole sum at Mary's disposal for her last donations did not exceed 5000 écus.

When all was arranged the Queen took farewell of her people, exhorting and consoling them, once more embracing the women and giving her hand to be kissed by the men. "My dear friends," she said, "I regret infinitely that I have not been able to show my gratitude to you in deed, as I should have wished, for the good and faithful services you have rendered me in my

need.... I beg you all to assist at my death, and to testify to my unalterable devotion to my religion. Be the witnesses of my last acts and my last words. I could not find any more faithful."

The Queen now passed into the ante-chamber, which was arranged as an oratory; and kneeling before the altar, "where mass was said secretly before her chaplain was taken from her," she remained for a long time in prayer, surrounded by her attendants, praying and weeping together. At length Bourgoing, seeing her extreme paleness and fearing for her strength, as he knew she was unable to kneel for any long time, assisted the Queen to rise, and brought her a little bread and wine, which she accepted willingly, thanking him by a smile for his care in bringing her her last repast. She had hardly resumed her prayers when a loud knocking was heard at the door. It was locked inside, and the messenger, raising his voice, announced that the lords were waiting.

Mary, without rising, and the door remaining closed, desired her attendants to ask for a few moments' delay, that she might finish her devotions. As eight o'clock had already struck, which was the latest hour they had assigned, the commissioners feared that the Queen meant to offer resistance, and ordered Paulet's soldiers to break open the door and to bring her by force, if at a fresh summons she refused to appear; but the Queen had no such thought. Calm and ready for her sacrifice, she waited in prayer for the final summons. At the second knock the door opened, and the sheriff, bearing his white wand, entered alone. When he perceived Mary kneeling before the altar, surrounded by her household and wrapt in prayer, he was silent from surprise and perhaps emotion, and after a moment's pause could only murmur, "Madame, the lords have sent me to you."

"Yes, let us go," replied the Queen in a firm voice, turning towards him. Bourgoing, while he supported her under the arms to help her to rise, asked her whether she wished him to give her the ivory crucifix from the altar. "You have given me great pleasure by reminding me," she replied. "It was my intention." She took the cross in her hands, kissed it with fervour, and gave it to Annibal Stuart, her groom of the chamber (*valet de chambre*), to carry before her. Then, assisted by Bourgoing and preceded by the sheriff, she proceeded. Before she passed the threshold, however, Bourgoing, impelled by a feeling of delicacy and affection with which we can

sympathise, told her that neither he nor any of her other attendants could bear to offer her their arm to deliver her to her executioners; the only consolation that remained to them, he said, would be to follow her to assist her to her last breath. "You are right," returned Mary; and addressing the sheriff, she added, "My servants do not wish to lead me to death. I cannot walk without help; let me be a little assisted." Two of Paulet's soldiers came and supported her, and the sad procession moved on, Mary's weeping attendants walking, some in front, some behind. At the door the Queen's followers were stopped, however, and forbidden to follow her farther.

"Then these insist, and pleaded strongly to accompany her. All, even the women, had it been possible, would have used force, declaring that it was not permissible that they should take her away without any one being with her; it was not the custom for princesses to go thus alone, asking what they wanted to do with her now, who for nineteen years had not left her in any place whatsoever without some one to assist her; that it was not seemly to make her die without having her servants present as witnesses to her actions, or they must suppose that they wished to execute some unworthy cruelty which they wished to conceal....

"In all this Bourgoing did not spare himself, thinking he had more credit than the others," etc.

But it was all in vain; they were forced back with menaces into the Queen's apartments.

Mary said nothing, but that they did her wrong in preventing her servants from assisting at her death, and this as gently as possible.

Then taking the crucifix from Annibal, and the gold brodered handkerchief which she had had prepared the night before, the Queen took farewell of her poor servants, whose grief was heartbreaking. "They took leave of her with cries and lamentations, some kissing her hands, some her feet, while others kissed her dress, and she, embracing them, was taken away all alone."

Supported by Paulet's guards, the Queen descended the great staircase. On the first landing the Lords Kent and Shrewsbury were waiting for her. They were struck with the perfect tranquillity and noble demeanour with which she walked to meet her death. At the bottom of the staircase her faithful

master of the household, Melville, who had now been separated from her for three weeks, was permitted to approach. As soon as he saw his mistress he fell at her feet to receive her last instructions, and in accents of profoundest despair told her "how much such a leave-taking was difficult for him to bear, as he had to endure such a sight after having been so long separated from her."

"As thou hast always been a good and faithful servant to me," replied Mary, "so I beg thee to continue in these same sentiments towards my son.<sup>[133]</sup> I die with the regret of not having been able to acquit myself towards thee, but to him is reserved the joy of recompensing thee. Tell him to keep me in memory, and report to him faithfully what thou shalt have seen of his mother's last moments. I have not attacked his religion any more than that of others, and I wish him all prosperity. As I pardon all in Scotland who have offended me, so would I wish that they would pardon me. May God enlighten my son, and send him His Holy Spirit."

Melville, overcome with grief, exclaimed, "Madame, it will be the sorrowfullest message that ever I carried when I shall report that my Queen and mistress is dead."<sup>[134]</sup>

"Not so," rejoined Mary. "To-day, good Melville, thou seest the end of Mary Stuart's miseries, that should rejoice thee. Thou knowest that the world is but vanity and misery. Be the bearer of this news, that I die a Catholic, firm in my religion, a faithful Scotchwoman and a true Frenchwoman. God forgive those who have sought my death. He who is the true Judge of the secret thoughts and actions of men, knows what their intentions have been, and that I have always desired to see England and Scotland happily united. Commend me to the King my son,<sup>[135]</sup> and tell him that I have done nothing that could prejudice his kingdom of Scotland or the dignity of sovereign princes, nor anything which could derogate from our prerogatives and superiority. Take him my blessing." At these words she made the sign of the cross, as if to bless her son.

"The hour has struck," interrupted one of the commissioners. The Queen embraced Melville, who had remained all the time on his knees, saying, "And thus adieu, good Melville, till we meet in the next world;—and pray

to God for me," she added as she moved on, making an effort to restrain her tears.

The contemporary accounts of this scene all note that Mary addressed Melville with the familiar "thou," "in which it is to be remarked," says Blackwood, "that the Queen never had used this term 'thou' to any one, whoever he might be." At this moment William Fitzwilliam, the Castellan of Fotheringay, advanced and respectfully kissed Mary's hand. We have before referred to the gratitude felt by the Queen for this gentleman's courtesy and sympathy,—a gratitude which she evinced by making him a small present before her death.

The Queen, addressing Kent and Shrewsbury, earnestly begged them to intercede with Queen Elizabeth on behalf of her secretary Curle, "and for certayne monye to be paid to him," and also to permit her servants to assist at her death, so that they might bear witness that she persevered in her faith to her last breath.[\[136\]](#) To her first request they returned no answer, but after conferring together regarding the second, they asked Mary which of her people she wished to be with her, limiting the number to five or six. She mentioned Melville, Bourgoing, Pierre Gorion, Jacque Gervais, Didier; and of her women Elizabeth Curle and Jane Kennedy.

To the men no objection was raised, but the lords absolutely refused to allow the women to enter the hall, declaring that their cries and lamentations would be an occasion of trouble and scandal, as no doubt they would wish to dip their handkerchiefs in the Queen's blood.

"Alas! poor souls," replied the Queen, "they will do none of the things you fear, my lords; I promise you that in their name. No, your Queen, who is a maiden Queen, cannot have given this cruel order to refuse to the women of another Queen the consolation of assisting at her death. Assuredly you would not wish to refuse me such a just request. My dear women only ask one boon—that of being present at my last moments." As Mary uttered these words she was observed to weep, the first tears she had shed since the reading of the warrant of execution.

Kent and Shrewsbury still hesitated. "Do you then forget," exclaimed the Queen, with noble indignation, "that I am cousin to your Queen, that I am



of the blood royal of Henry VII., that I am Queen-Dowager of France, and anointed Queen of Scotland?"[\[137\]](#)

Vanquished by this appeal, the commissioners permitted that Jane Kennedy and Elizabeth Curle, the two women designated by Mary, should accompany her.[\[138\]](#)

The procession now moved on and entered the hall; the sheriff and his escort leading the way, followed by Paulet, Drury, Beale, and the two earls. The Queen followed, attended by Bourgoing and her other servants, Melville carrying her train.

The great hall of the castle was hung entirely with black. At the upper end of the apartment, near the large Gothic fireplace, "in which was a great fire,"[\[139\]](#) stood the scaffold, which was raised about two feet from the ground, and measured about twelve feet square. It was covered with black serge, as were the stool and cushion prepared for the Queen, and surrounded on three sides by a balustrade, made low enough to allow the spectators to see all that passed. At the fourth side, towards the end of the hall, the scaffold was approached by two steps. The block, made of oak and covered also with black, was placed near the chimney-piece. By it stood the executioner and his assistant, both in long black velvet gowns, with white aprons, and both wearing black masks. The executioner bore a large axe mounted with a short handle, "like those with which they cut wood."[\[140\]](#) In front of the block chairs were placed for my Lords Kent and Shrewsbury. Two other chairs, placed higher up the room, outside the balustrade, awaited Paulet and Drury. Round the scaffold was stationed a guard of halberdiers, the men of Huntingdon.[\[141\]](#) Among the 300 spectators who alone were permitted to enter the hall might be observed Lord Montague, his eldest son, and Robert Tyrell. A large crowd surrounded the castle, kept in order by a troop of horsemen which had arrived the preceding night.

The Queen had now reached the threshold of the hall.[\[142\]](#) When she perceived the scaffold she elevated the crucifix which she carried above her head, and undismayed by the terrible scene before her, advanced with great dignity.[\[143\]](#) Arrived at the scaffold, Mary, unable to ascend the steps without assistance, accepted Paulet's arm, saying gently, "Thanks for your courtesy, Sir Amyas; this will be the last trouble I shall give you, and the



most agreeable service you have ever rendered me." Mary seated herself on the stool covered with black prepared for her with her usual grace and majesty, Shrewsbury and Kent standing on each side of her, the sheriff in front. She made the sign of the cross, then addressing Elizabeth's officers, she begged them of their good pleasure to bring her chaplain to her, in order that she might console herself in God, and receive from him some admonitions with his last blessing; the which was absolutely refused her. Beale now ascended the scaffold and read aloud the royal commission for the execution.<sup>[144]</sup> The Queen appeared to be listening attentively, but those near her observed, by the expression of her countenance, that her thoughts had left the things of this world and were occupied with those of heaven. At the conclusion of the sentence the hall rang with a loud "God save the Queen." Mary, unmoved by this demonstration, made the sign of the cross.<sup>[145]</sup> Shrewsbury, turning to her, said, "Madame, you hear what we are commanded to do."

"Do your duty," Mary answered simply. She again made the sign of the cross, and looking at the assembly "with a joyous countenance, her beauty more apparent than ever, a bright colour in her face," she made a speech, of which her servants recorded the sense at least, if not the text.

"My lords," said Mary, "I was born a queen, a sovereign princess, not subject to laws, a near relative of the Queen of England and her legitimate heir. After having been long and wrongfully imprisoned in this country, where I have endured many pains and evils, no one having any right or power over me, I am now, through force, and being in men's power, about to close my life. I thank my God that He has permitted that in this hour I die for my religion, and that He has given me this grace that before dying I have been brought before a company who will be witness that I die Catholic. As to the crime which they have fixed upon me—the death of the Queen—I never suggested it, nor consented to it, nor to anything against her person. I have always loved her, and the country also. I have offered myself, under many good and most honourable conditions, to bring to an end the troubles of this kingdom and my deliverance from captivity, but I was neither heard nor believed. You, my lords, and you, Beale, know this. At last my enemies have come to the end of their designs to make me die; however, I forgive them with a good heart, as I do all those who have done or attempted anything against me; and each one, whoever he may be, who

may have offended me, or done me harm, as I beg all to be so good as to forgive me. After my death it will be known and seen to what end those who are the authors of my being sent from this world have desired and procured my death. I accuse no one any more than I have done previously; my tongue shall do harm to no one."[\[146\]](#)

The Dean of Peterborough, Dr. Fletcher, now advanced, and placing himself in front of the Queen, made her a profound reverence, and said that he had come to her by his mistress's command in order to prepare her for death.

"Peace, Mr. Dean," replied Mary gently, "I have nothing to do with you; I do not wish to hear you; you can be silent if you please, and go from hence."[\[147\]](#) And as he began again to exhort her, Mary said resolutely, "You gain nothing; I will not listen to you; be silent, please," and turned her back upon him. Fletcher, however, continued to insist, placing himself again before her and exhorting her to repent "of her crimes," till Shrewsbury, shocked, bade him be silent and begin to pray.

Kent, observing that Mary often made the sign of the cross with the crucifix she held in her hand, rudely exclaimed, "Madame, what does it avail you to hold in your hands this vain image of Christ if you do not bear Him in your heart?"

"How is it possible," returned the Queen gently, "to have such an image in one's hands without the heart being profoundly touched by it? Nothing is more suitable for a Christian about to die than to bear in his arms the true mark of his redemption."

Shrewsbury now proposed that as the Queen would not listen to the Dean's exhortation, they should all pray for her in common. "I thank you, my lords," said Mary, "but I cannot pray with you, because we are not of the same religion. Pray if you wish, I will pray also."[\[148\]](#) Fletcher now commenced to pray in English that God would grant repentance to Mary; that He would bless Queen Elizabeth in granting her a long life, victory over her enemies, and the triumph of the Protestant religion. This prayer was repeated in chorus by the assembly.

Meanwhile the Queen prayed aloud in Latin, repeating some of the penitential Psalms. The "Miserere," "In te Domine-speravi," "Qui habitat in

adjutorio," etc.[149]

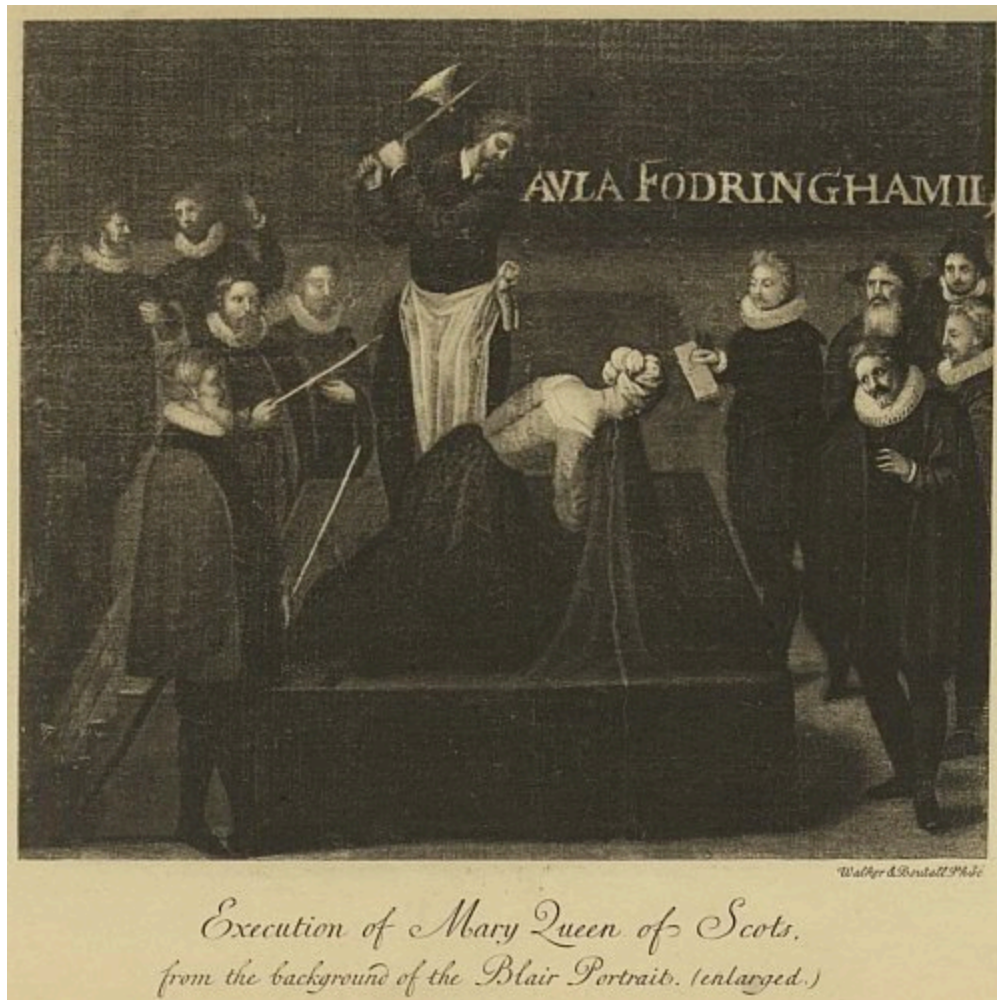
When the Dean had finished his prayer there was a deep silence. Mary continued to pray aloud, but now in English, often striking her breast with her crucifix and kissing it with great devotion.[150] With hands clasped and eyes raised to heaven, she prayed thus: "Send me your Holy Spirit, Lord, that at the hour of my death He may enlighten me and enable me to understand the mystery of your Passion, so that I may persevere in your faith till my last breath, and that I may bear with patience the torment inflicted in my person on the Catholic Church. Grant, Lord," continued Mary with great fervour, "that my death may ensure the peace and union of all Christendom, peace between Christian princes, the conversion of England to the true faith, the perseverance of Catholics in their creed and their constancy in martyrdom."

Mary also prayed for the Pope and pastors of the Church, and for all her enemies, "that He would pardon them as she did;"[151] for Queen Elizabeth, "that it would please Him to give her His blessing, so that she might worship Him in the truth;"[152] and for her son's conversion to the Catholic faith. She declared that she hoped to be saved in, and by, the blood of Christ, at the foot of whose crucifix she would shed her blood,[153] and lovingly confided herself to the protection of the blessed Virgin and all the saints, invoking in particular St. Peter, and St. Andrew, the patron of Scotland. When her prayer was finished the Queen once more kissed the crucifix, and looking upon it with an expression of love and immense confidence, she exclaimed, "As Thy arms, my God, were extended on a cross, so receive me into the arms of Thy mercy. Extend to me Thy mercy, and pardon me all my sins." "Then turning herself towards the side on which her attendants were, she asked them in like manner to pray her Saviour to condescend to receive her, and forthwith she embraced them with great fortitude ... kissing her cross without ceasing." The Queen now rose and reseated herself.[154] Kent and Shrewsbury approached, and asked her if she had no secret matter to reveal to them, but she replied that she had said enough, and was not disposed to say more. Then seeing that the time had come, without being asked, she rose and prepared herself calmly and cheerfully for death.[155] The executioner, his face hidden by his black mask, advanced to remove her dress, but the Queen gently moved him aside with her hand, saying smilingly, "Let me do this; I understand this business

better than you; I never had such a groom of the chamber."[\[156\]](#) She took out the pins of her head-dress, and calling Jane Kennedy and Elizabeth Curle, who were praying at the foot of the scaffold, she began, with their assistance, to disrobe, observing that she was not accustomed to do so before so many. The poor women, unable to restrain their emotion, wept bitterly, and uttered heartrending cries, "and crossed themselves, praying in Latin;" but their mistress placed her finger on their mouths and chid them tenderly. "Do not weep any more," said she. "I am very happy to go from this world; you should rejoice to see me die for such a good quarrel; are you not ashamed to cry? If you weep any more I will send you away, as I promised for you."[\[157\]](#) The Queen then took from her neck the gold cross, wishing to give it to Jane Kennedy. "My friend," she said to the executioner, "you cannot make use of this, leave it to this lady; she will give you more than its value in money." But Bull seized it roughly, saying, "It is my right," and put it into his shoe.[\[158\]](#) The Queen had now laid aside her mantle and veil, her collar and *pourpoint*, and remained in her brown velvet skirt and black satin bodice with long sleeves.[\[159\]](#) "Then she, with a smiling countenance, turning to her men-servants as Melville and the rest, standing upon the bench near the scaffold, crossing them with her hand, bade them farewell, and bade them pray for her until the last hour. Then embracing her women, she blessed them, making the sign of the cross on their foreheads."

"Adieu for the last time," she said in French. "Adieu, au revoir;" and when Jane Kennedy had bandaged her eyes, she desired them to go down from the scaffold. The executioners fell on their knees at the Queen's feet, begging her, as was the custom, to forgive them her death. "I forgive you with all my heart," she replied, "for in this hour I hope you will bring to an end all my troubles." The Queen, who was seated on her stool, unbound, and still holding her crucifix, raised her head and stretched out her neck, thinking she was to be beheaded with a sword, according to the privilege granted in France to royal persons.[\[160\]](#) "My God," she said fervently, "I have hoped in Thee; I give back my soul into Thy hands." The executioners, seeing her mistake, assisted her to rise and conducted her to the block, where they made her kneel down, and as she knelt upright, still thinking she was to be beheaded with the sword, they made her lie flat with her head on the low block, only a few inches high.[\[161\]](#) As the Queen repeated the words

"In te Domine-speravi," Lord Shrewsbury raised his wand to give the fatal signal.



Walker & Boutall, Ph. Sc.

**Execution of Mary Queen of Scots,  
from the background of the [Blairs Portrait](#). (enlarged.)  
[Enlarge](#)**

The executioner lifted the axe, but stopped at a sign from his assistant, who had perceived that the Queen, to enable herself to breathe, had placed her hands under her chin. The assistant moved them and held them behind her back. Mary continued to pray aloud, and in the deep silence that reigned in the hall she could be heard repeating the verse, "In manus tuas Domine commendo." These were her last words. The executioner, affected perhaps



by sympathy and by the general emotion visible among the bystanders, struck with an ill-assured aim, and only wounded the Queen severely, but she neither moved nor made a sound.[\[162\]](#) At the third blow the soul of Mary Stuart passed to its eternal reward.

And here we would fain end our narrative, letting our thoughts dwell only on the sorrow that filled the hearts of the Queen's desolate servants and the sympathy evinced by others present at her execution,[\[163\]](#) for, as a contemporary writer tells us, "it was remarked that the Earl of Shrewsbury and many others were bedewed with tears;" but other and cruel incidents claim our attention.

As soon as the Queen was dead the executioner "forthwith took the head, and raising it and showing it to the people, he said, according to custom, 'God save the Queen.'... To these words the people answered, 'Amen.' 'Yes,' said the Earl of Kent, with a loud voice and with great forwardness, 'Amen, Amen. May it please God that all the Queen's enemies be brought into the like condition.' The Dean of Peterbro spoke to the same effect."[\[164\]](#) "The gates of the castle were kept closed, so that no one could pass out until a messenger had been despatched first to the court (and this was about one o'clock of the same day) with a letter and the certificate of the execution."[\[165\]](#) This messenger was Henry Talbot, third son of Lord Shrewsbury, from whose report we have already quoted.

When Kent and Shrewsbury had left the scaffold, "every man being commanded out of the hall except the sheriff and his men, she was carried by them up into a great chamber, lying ready for the surgeons to embalm her;"[\[166\]](#) but before this was done the executioner placed the head on a dish and showed it from the window to the crowd assembled in the courtyard. This he did three times.[\[167\]](#) About four o'clock in the afternoon the body was "stripped, embalmed, and placed in a coffin, after having been wrapped in a waxed winding sheet."

Mary had earnestly charged her women to care for her body as they had done for her soul, but they were absolutely denied this last favour. "The tragedy ended," says Blackwood, "these poor ladies, careful of their mistress's honour, addressed themselves to Paulet, and begged that the executioner should not touch the body of Her Majesty, and that they might

be allowed to undress it after every one had left," but he sent them away *fort lourdement*, telling them to leave the hall. The room belonging to the Queen's ladies was next the great chamber where the body was placed. They could see the remains of their beloved mistress by looking through the keyhole, and consoled themselves by kneeling and praying by the door; but Paulet, discovering this, had the keyhole stopped up.<sup>[168]</sup> The story of the Queen's faithful little dog has been often told, but it is impossible not to refer to the touching incident as recorded by a contemporary. "The Queen of Scotland," says he, "had a little dog with her upon the scaffold, who was sitting there during the whole time, keeping very quiet and never stirring from her side, but as soon as the head was stricken off and placed upon the seat, he began to bestir himself and cry out; afterwards he took up a position between the body and the head, which he kept until some one came and removed him, and this had to be done by violence."<sup>[169]</sup> The poor animal was washed, and everything else stained by the Queen's blood was either washed or burnt. "The Paternosters were tossed into the fire which was in the hall," and the executioners were sent away, "not having any one thing that belonged unto her."<sup>[170]</sup>

Thus ends one of the great tragedies of history in which the vanquished becomes truly the victor. To use the words of an old Scottish writer, "The Queen of England may do what she will, the tomb of our Queen is more durable than she imagines, as her effigy and that of her virtues are better engraven in our hearts than they could be in marble."<sup>[171]</sup>

---

## CHAPTER XII

### PETERBOROUGH

"Non tibi contextis lucent funalia lignis,  
Sed cœli stellæ; nœnia tristis abest,  
Sed canit ad feretrum superum chorus aliger, et me,  
Cœlesti incipiens voce, silere jubet."

MAFFEI, *Poemata*, p. 145.

FOR six long months the body of the dead Queen was to remain neglected and apparently forgotten within the walls of Fotheringay, and her attendants, in spite of their natural desire to return to their homes and friends, were condemned to a quasi-imprisonment for even a longer space of time. After the scaffold had been removed Mary's chaplain, Du Préau, was allowed to join the other mourners, and on the morning after the execution he said mass for her soul. But later in the day Paulet sent for Melville and Bourgoing, and ordered that the altar should be taken down, and asked them to take an oath that mass should not be said again. Melville excused himself, saying he was a Protestant and not concerned. Bourgoing energetically refused. Paulet therefore sent for Du Préau, who was evidently a timid man, and who took the oath insisted upon.<sup>[172]</sup> Paulet also demanded the box containing the vestments, and the following note in his inventory of Mary's effects probably refers to its contents: "Memorandum that the Priest claimeth as of the late Queen's gift a silver chalice with a cover, two silver cruets, four images, the one of Our Lady in red coral, with divers other vestments and necessities belonging to a Massing Priest." Paulet likewise entered the Queen's oratory and made an inventory of its contents; among them was a book in which he may have read these words written by Mary, "On my garments they have cast lots."<sup>[173]</sup> Paulet had already written to Davison asking for orders regarding Mary's household, etc.; he concludes his letter,—written on the day itself of the execution,—thus: "The children of God have daily experience of His mercy and favour



towards such as can be content to depend of His merciful providence, who doth not see as man seeth, but His times and seasons are always just and perfectly good. The same God make us all thankful for His late singular favours." There is a significant postscript added by Beale: "We may not forbear to signify unto you that these two Earls<sup>[174]</sup> (Kent and Shrewsbury) have showed a very singular and faithful affection to Her Majesty's service in this action, as you shall be informed more particularly by me, Robert Beale, at my return to the court, which shall be shortly by the grace of God."

It is curious to find that the "singular and faithful affection" manifested by the commissioners did not save them from an unpleasant moment with Elizabeth. There is a petition signed by Kent, Shrewsbury, Paulet, and Beale, in which they justify their conduct to their irate mistress, who was then endeavouring to throw the blame of Mary's death on every one but herself.<sup>[175]</sup> This document bears the mark of two cuts made by scissors. "Does this indicate that the minute was considered unnecessary and never presented?" says M. Kervyn de Lettenhove, "or should we, on the contrary, see in this the anger of Elizabeth, on whom the suppliants wished to fix the responsibility at the moment when she most energetically denied her participation?"<sup>[176]</sup> Beale, on his side, thought it necessary to justify himself separately. "I thought," he writes, "that I ought to fulfil the order; I was the Queen's servant and bound to obey her. If, in those circumstances, the Queen had been exposed to some danger, it would have been my fault. I was convinced that her safety depended on the death of the Queen of Scotland; I found sufficient warrant in an order signed by herself."<sup>[177]</sup>

Paulet rejoiced to see the end of his residence at Fotheringay, of which, as he said, the cause was withdrawn, "to my great joy and to the joy of all faithful Christians, subjects of the Queen," but when he reached London he found matters quite different to his expectations, and in the time of trouble is said to have thrown all the blame on Walsingham. The storm did not last long, however, as Paulet was made Chancellor of the Garter in the month of April 1587.

Although absent from Fotheringay he still seems to have retained his jurisdiction over Queen Mary's attendants. It was to him that Melville and Bourgoing applied in March for permission to sell their horses, and to write

to France regarding the bequests made to them by their late mistress; and to him that Darrell in the following June sends "the petition of the whole household and servants of the late Queen of Scotland," asking to be released from prison and to be allowed to leave the country. This petition was either never answered, or refused, as the household remained at Fotheringay till October.<sup>[178]</sup>

Before then Elizabeth's policy had caused her to give her victim a royal funeral. This incident—would that we could say, act of reparation—has hitherto, perhaps, met with less attention than it deserved, and we will endeavour to gather together the details regarding what is an unique fact in history, sympathising the while with the sentiments of Mary's attendants, who stoutly refused the mourning mantles offered them by Queen Elizabeth for an occasion which must have seemed to them a very questionable tribute to their mistress's memory.

In a tract entitled "A Remembrance of the Order and Manner of the Burial of Mary Queen of Scots," we learn that on Sunday, the 30th July 1587, "there went from Peterborough M—— Dethick (Sir William), *alias* Garter, principal king of arms, and five heralds, accompanied with forty horse and men, to conduct the body of Mary, late Queen of Scots, from Fotheringham Castle in Northamptonshire to Peterborough aforesaid, ... having for that purpose brought a royal coach, drawn by four horses and covered with black velvet, richly set forth with escutcheons of the armes of Scotland, and little penons round about it, the body, being enclosed in lead and the same coffined in wood, was brought down and reverently put into the coach; at which time the heralds put on their coats of arms, and bareheaded with torches light, brought the same forth of the castle about ten of the clock at night, and so conveyed it to Peterborough." Behind the heralds walked Melville, Bourgoing, Gorion, Gervais, and two others of Mary's household. The procession moved slowly, and reached Peterborough, twelve miles distant, between one and two in the morning. At the door of the cathedral the body was received by the Bishop of Peterborough, the Dean and Chapter, and Clarencieux, king at arms, "and in the presence of the Scots which came with the same,"<sup>[179]</sup> "and without bells or chanting"<sup>[180]</sup> it was placed in a vault prepared for it in the south aisle at the entrance of the choir. Thus Mary's tomb was opposite that of Catherine of Aragon, and the

same grave-digger, Scarlet,[\[181\]](#) prepared both vaults for these royal and injured occupants.

As soon as the coffin had been lowered, the grave was covered with a brick vaulting, only a small opening being left, and no further ceremony took place until the Tuesday following.

On Monday afternoon the principal personages who were to take part in the ceremony arrived.[\[182\]](#)

The hall of the Episcopal Palace was hung with black, and at one end was erected the royal dais and chair of state, as if Queen Elizabeth were to be present in person. "On Tuesday, being the first of August, in the morning, about Eight of the Clock, the chief mourner, being the Countess of Bedford, was attended upon by all the lords and ladies, and brought into the presence chambre within the Bishop's Palace, which all over was hanged with black cloath; she was by the Queens Majesties' gentlemen ushers placed somewhat under a cloth of estate of purple velvet; where, having given to the great officers these staves of office, viz. to the lord steward, lord Chamberlayne, the treasurer and comptroller, she took her way into the great hall where the corps stood."[\[183\]](#)

The last words must refer to the figure in wax of the dead Queen, which had no doubt been prepared according to custom. Lady Bedford, bearing all the insignia of her sovereign whom she represented, supported by the Earls of Rutland and Lincoln, her train borne by Lady St. John, now respectfully followed the royal bier to the cathedral, escorted by Garter king at arms, by the heralds, and a great number of peers, peeresses, knights, and ladies in deep mourning, as well as by the household of the dead Queen. The cathedral had been draped in black "six or seven yards high from the ground." Every second pillar hung with black baize and adorned with escutcheons, some bearing Mary's arms alone, and some those of Francis and Darnley, impaled severally with the arms of Scotland. The choir was also hung with black baize, "garnished with escutcheons as aforesaid," and the space above the choir "was in most solemn manner hanged with four bredthes of black bayes sowed together; garnished at the upper end with escutcheons of mettall, and one each side, as aforesayde."[\[184\]](#)

The procession was met at the church door by the bishop and clergy, and advanced slowly to the choir while anthems were sung. "The concourse of people was of many thousands." Mary's weeping attendants and her chaplain bearing a cross, took, as may be seen, their part in the procession, but before the service began all save Melville and Barbara Mowbray, who were Protestants, left the church and remained outside in the cloisters until the close of the ceremony.[\[185\]](#) We give the order of procession according to the report drawn up by Garter king at arms.

***The Order for the Buriall for Marie Queen of Scotts,  
at Peterborough, observed the First of  
August, on Tuesday, 1587.[\[186\]](#)***

|              |   |               |
|--------------|---|---------------|
| Two          |   |               |
| Conductors   | } | The Sheryfes  |
| with         |   | Bailie, and   |
| black staves | } | the Baylie of |
| in           |   |               |
| coates.      | } | Peterborough. |

Poore men[\[187\]](#) (One hundred) in gownes, two and two.

|            |   |             |
|------------|---|-------------|
| Two        |   | John        |
| Yeomen     | } | Hamshiere,  |
| harbingers | } | and         |
| in clokes. | } | John Keyes. |

**THE STANDARD**

Borne by Sir George Savill knight.

**GENTLEMEN IN CLOKES, TWO AND TWO, *videlizet.***

Syxe Groomes.  
 The Deane of Peterborough's man.  
 Mr. Stafforde's sonne.  
 Master of Wardrobe's two men.  
 The Bishope of Peterborough's Stewarde.  
 James Howland.  
 Edward Jackson.  
 Richard Kylefett.  
 Robert Cotton.  
 The Lorde Compton, one man.  
 The Lady St. John, of Basinge, one.  
 The Lorde Willoughby of Parram, one.  
 The Lorde Mordant, and Ladie, two.  
 The Lorde Dudley, and the Ladie, two.  
 The Lady Marie Savell, one.  
 The Lady Talbott, one.  
 The Lord St. John, and the Ladie, two.  
 The Bishope of Peterborough, one.  
 The Bishope of Lyncolne, one.  
 The Erle of Lyncolne, and the Countis, three.  
 The old Countis of Bedford, chief Mourner, three.

### GENTLEMEN IN GOWNES.

|               |   |                    |
|---------------|---|--------------------|
| Mr. Worme.    |   | }                  |
| Mr. Howland.  |   | }                  |
| Mr. Horseman, | } | }                  |
| Mr. Femis,    | } | Three<br>Sewars. } |
| ....          | } | } Ten.             |
| Mr. Creuse.   |   | }                  |
| Mr. Watsonn.  |   | }                  |
| Mr. Alyngton. |   | }                  |
| Mr. Marmaduke |   | }                  |
| Darrell.      |   | }                  |

Docture Fortescue  
Thomas. }

# SCOTTES IN CLOAKES,

seventeen.

A Scottish Priest.[\[188\]](#)

# GOWNES.

Two Chaplayns to the Bishops aforesayde.  
Mr. Fortescue, master of Queene Elizabeth's wardrope.  
The two Bishoppes, Peturborough and Lincolne.

## THE GREATER BANNER.

Borne by Sir Andrew Nowell.

{ Mr. Melvin, and Sir  
Edward Montague, }

{ Comptroller and Treasurer  
to the Queen }

{ of Scottes. }

The Lord  
Chamberlayne, } Great  
The Lord } Officers.  
Stewarde, }

The Lorde Dudley.

The Lord St. John of Basnige  
(sic.)

Two Yeomen of the garde, in  
clokes,  
with black staves in their  
handes.

**THE HALM AND CREASTE,**

borne by .... pourcyvant of armes.

**THE TARGETT,**

borne by Rouge dragon, a pourcyvant of armes.

**THE COATE OF ARMES,**

borne by Somersett, herald of armes.

Then Clarentius Kinge of Armes,  
and a Gentleman huisher goyng with him.

Then

***The Body***

Was carryed by these

**SIX GENTLEMEN IN CLOAKES; videlizett.**

|                    |        |
|--------------------|--------|
| Francis Fortescue. | }      |
| William Fortescue. | }      |
| Thomas Stafforde.  | }      |
| Nycholas Smythe.   | } Six. |
| Nycholas Hyde.     | }      |
| Fortescue Senr. of | }      |
| Aywood.            | }      |

**BANNERROLLS,**

eight,  
 borne by these gentlemen,  
 videlizett,  
 William Fitz William. }  
 Mr. Gryffith, of }  
 Drugley.[\[189\]](#) }  
 Mr. Robert }  
 Wyngfield. }  
 Mr. Bevill. }  
 Mr. Lynne. }  
 Mr. John Wyngfield. }  
 Mr. John Spencer. } Eight.  
 Mr. Fortescue of }  
 Aywood. }

### THE CANOPIE.

borne by these four Knightes,  
 videlizett,  
 Sir Thomas Manners. }  
 Sir George Hastings. }  
 Sir James Harrington. } Four.  
 Sir Richard }  
 Knightley. }

### THE BODIE

assisted be these Four,  
 The Lorde Mordantt. }  
 The Lorde Willoughby } Four.  
 of Param. }  
 The Lorde Compton. }



Sir Thomas Cycill,       }  
Knight.

Then,

**GARTER KINGE OF ARMES,**

and a Gentleman huisher with him.

Then,

**THE CHIEF MOURNER.**

**THE COUNTIS OF BEDFORD.**

Assisted by the Erles of Rutland and Lyncolne,

**HER TRAYNE**

borne by  
The Ladie St. John of Basing,  
who was assisted by  
Mr. John Manners, Vize Chamberlain.

**THE OTHER MOURNERS, videlizet,**

Twelve.

  
The Countis of Rutland.  
The Countis of Lyncolne.



The Ladie Talbott.  
The Ladie Marie Savill.[\[190\]](#)

---

The Ladie Mordantt.  
The Ladie St. John of Bletfoe.

---

The Ladie Manners.  
The Ladie Cecill.

---

The Ladie Montague.  
The Ladie Nowell.

---

Mistris Alington.  
A Scottish Gentlewoman.

Then,  
two of the

**YEOMEN OF THE GUARDES**

in clokes.

**SCOTTISH GENTLEWOMEN,**

Eight,  
too and too.

Then,

**GENTLEWOMEN OF COUNTISSES,**

too and too.

Then,

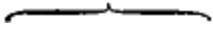
**BARONISSIS AND LADIES,**

accordinge to ther degree.

Then,

**GENTLEWOMEN.**

Thirty.



The Countis of Bedforde, four.  
The Countis of Rutland, three.  
The Countis of Lyncolne, three.  
Ladie St. John of Baznige, two.  
Ladie Talbott, two.  
Ladie Marie Savill, two.  
Ladie Mordantt, two.  
Ladie St. John of Bletneshoe, two.  
Ladie Manners, two.  
Ladie Cycill, two.  
Ladie Montegue, two.  
Ladie Nowell, two.  
Mystris Alyngton, two.

**ALL YEOMEN IN COATES.**

The Countise of Bedforde, allowed for ten men.  
The Countis of Rutland, eight men.  
The Countis of Lincolne, eight men.  
The Ladie of St. John of Basing, five men.  
All Baronissis and Ladies, five apeece.  
All knightes, two men apeece.  
All knightes wyfes too apeece.  
All esquires one man apeece.[\[191\]](#)

When the bier reached the choir it was placed on a catafalque, which Derrick describes as "a stately hearse with a topp 8 square rising lik a field-bed, which was covered on the tipps with black bayes, garnished with escutions as affore of mettall and besett with pinecles from the topp, on each quarter, most butiful to behoulde: whereupon were painted, on some, the Scottish armes alone, and on others some, the armes of France and Darnley, impaled, and St. Andrewe's Crosse, A, in a filde, O; and also an unicorne tripping, A, attyred and unguled, Or, with felde, B; with a crowne, and a chayne turning over his back, Or. On the topp of the hearse was set two escutchions of the Scotch armes, cut out in paste boarde, guilded, and an impereall crowne, guilded, and cut out in past board." Dean Fletcher arranged the ceremonials, and the Bishop of Lincoln preached the well-known sermon, commencing by rejoicings for the "happy death of the high and mighty Princesse Mary," of whom he very cleverly says: "I have not much to say of her life or death, knowing little of the one, and not having assisted at the other."[\[192\]](#) Prayers followed, and at the offering Lord Bedford advanced and placed before the altar the coat of mail, helm, sword, and shield which were afterwards hung over the grave.[\[193\]](#) At the end the heralds, according to custom, broke their staves and threw them into the grave, "and so every one departed as they came, after their degrees, to the Bishop's Palace, where was prepared a most royal feast, and a dole given unto the poore."[\[194\]](#) Mary's attendants were invited to take part in the banquet, the hosts "praying them to eat well, and to ask for anything they wished, so that nothing should be wanting to them, such being the orders of their mistress;"[\[195\]](#) but, as we may readily believe, they replied by their tears. "The servants of the dead Queen," says Blackwood, were "in a separate room, mingling many tears with their food and drink."[\[196\]](#)

Amidst all the pomp and display of this funeral one point had been omitted: no tablet or inscription marked the spot where Mary lay, and it remained for a faithful subject of the dead Queen, the same Adam Blackwood, to supply this omission. On occasion of a pilgrimage made by him to Peterborough, Blackwood placed the following well-known epitaph over his mistress's grave:—

Mary Queen of Scots, daughter of a king, widow of the King of France, cousin and next heir to the Queen of England, endowed with royal virtues and a royal mind (the right of Princes being oftentimes in vain implored) by barbarous and tyrannical cruelty, the ornament of our age, and truly Royal light is extinguished. By the same unrighteous judgement both Mary Queen of Scots with natural death, and all surviving kings (now made common persons) are punished with civil death. A strange and unusual kind of monument this is, wherein the living are included with the dead; for with the Sacred ashes of this blessed Mary, know that the Majesty of all Kings and Princes lieth here violated and prostrated. And because regal secresy doth enough and more admonish kings of their duty—traveller, I say no more.

It, however, "continued not long, but was taken away and cast aside,"<sup>[197]</sup> probably on account of the sympathy it called forth, and the tomb remained almost forgotten till James, having ascended the English throne, thought of honouring his injured mother's remains.

Regarding Mary's faithful followers and their after-fate we know the few following particulars. By their refusal to assist at the service or to share in the funeral banquet, they seem to have incurred afresh Elizabeth's displeasure, and this is one of the reasons alleged for their continued imprisonment after the ceremony. When at length they obtained their freedom Bourgoing, "who had assisted Mary from the first day of her stricter imprisonment until the hour of her death,"<sup>[198]</sup> and to whom, as we know, fell the solemn duty of narrating the incidents of the Queen's death to the King and Queen of France, no doubt fulfilled his mission, and his

written narrative attests his devotion to his mistress, but we have been unable, to our great regret, to trace his further history. Gorion fulfilled his task by transmitting to Mendoça Mary's farewell letter, accompanied by an interesting narrative of her last moments, written presumably by himself. [\[199\]](#) Elizabeth Curle also acquitted herself of her charge by taking to Morgan the diamond ring left him by Mary in gratitude for his "good and long service." She afterwards joined her former companion and friend Barbara Mowbray, nor were they divided in death, as they were buried together at Antwerp, under the tomb bearing the effigy of their beloved mistress. The Latin inscription referring to the Queen's martyrdom recalls the fact that Elizabeth assisted at her execution and received her last kiss. The faithful Jane Kennedy, whom we may perhaps consider as Mary's favourite attendant, after returning to Scotland, married Andrew Melville, and was drowned in a storm when on her way to meet Anne of Denmark on her arrival in Scotland as James's Queen.

---

## CHAPTER XIII

### WESTMINSTER

"It appertaynes to ye duty we owe to our dearest mother that like honour should be done to her body, and like monument be extant to her as ourselves have already performed to our deare sister ye late Queen Elizabeth."—James VI. 28th Sept. 1612.

SIXTEEN years after the ceremony we have described in the last chapter James, now King of England, at last desired to show some mark of respect to his mother's memory, and Sir William Dethick was again intrusted with this mission.

On the 14th of August 1603 he was sent to Peterborough with "a rich pall of velvet, embroidered with the arms of the mighty princess Mary Queene of Scotts." He was also the bearer of letters to the Bishop of Peterborough to ask leave to place it on the coffin, which, being obtained, the pall was "by him caryed and laid uppon and over the corps of the said late Queene, assisted by many knights and gentlemen." A large concourse of people were present at the ceremony. The Bishop preached a sermon suitable to the occasion in the morning, and in the afternoon the Dean "preached of the same." In the interval there was a splendid banquet. "Then the Queene of Scotland," says our authority quaintly, "was most royally and sumptuously (re)entered by the said gentee on the 14th August."[\[200\]](#)



Walker & Boutall, Ph. Sc.

*Medallion containing*  
**Miniature of Mary Queen of Scots**  
**and Relics**

*now in the possession of Lady Milford.*

[Enlarge](#)

Nine years later James, after erecting the well-known monument to Queen Elizabeth in Westminster Abbey, determined to do the same honour to his mother. He therefore addressed the following letter to the Dean and Chapter of Peterborough:[\[201\]](#)—

**TO THE DEAN AND CHAPTER OF PETERBOROUGH.**[\[202\]](#)

To our trusty and well-beloved the Dean and Chapter of our Cathedral Church of Peterborough; and in their absence, to the Right Reverend Father in God, the Bishop of Peterborough, and to such of the Prebendaries and other officers of the Church as shall be found there.



JAMES R.

Trusty and well-beloved, we greet you well, for that we think it appertains to the duty we owe to our dearest mother that like honour should be done to her body and like monument be extant of her, as others, hers, and our progenitors have been used to be done, and ourselves have already performed to our dear sister the late Queen Elizabeth, we have commanded a memorial of her to be made in our Church of Westminster, the place where the kings and queens of this realm are usually interred: and for that we think it inconvenient that the monument and her body should be in several places; we have ordered that her said body, remaining now interred in that our cathedral church of Peterborough, shall be removed to Westminster, to the Reverend father in God, our right trusty and well-beloved servant the Bishop of Coventry and Lichfield, bearer therof; to whom we require you (or to such as he shall assign) to deliver the corps of our said dearest mother, the same being taken up in as decent and respectful manner as is fitting. And for that there is a Pall now upon the hearse over her grave which will be requisite to be used to cover her said body in the removing therof, which may perhaps be deemed as a fee that should belong to the Church; we have appointed the said reverend father to pay you a reasonable redemption for the same, which being done by him, we require you that he may have the pall to be used for the purpose aforesaid. [203] Given under our signet at our honour of Hampton Court, the eight and twentieth day of September in the tenth year of our reign of England, France, and Ireland, and of Scotland the six and fortieth.

Here follows a memorandum to this effect:—

These Letters were delivered to the Right Reverend father in God, the Lord Bishop of Peterborough, and to me, Henry

Williamson, one of the Prebends of the said Cathedral Church, in the absence of the Dean and the rest of our Prebends, and the contents thereof were executed the fourth day of October, in the year aforesaid,

(signed) W.K.

Although no doubt the removal of the body was effected with great solemnity and state, no detailed record of the ceremony has been discovered. The beautiful tomb in Westminster is too well known to need description. In it we see, as remarks one of Mary's latest historians, if not a memorial of filial piety, at least a mark of James's taste for art.[\[204\]](#) The effigy of the Queen seems to have been taken from a contemporary portrait, possibly from the fine picture still in the possession of the Earl of Morton, but neither this fact nor the name of the sculptor can now be known.

Our task is now concluded. At the foot of Queen Mary's tomb we lay this small tribute to her memory.

---

## **APPENDIX**

### **ACCOUNT OF THE EXECUTION OF QUEEN MARY STUART**

**FROM THE TANNER MS. 78, F. 129, IN THE  
BODLEIAN LIBRARY, OXFORD**

A report of the manner of execution of the Scottish Queen performed the eighth day of February anno 1586 in the great hall within the castle of Fotheringham with relation of speeches uttered and actions happening in the said execution from the delivery of the said Scottish Queen unto Mr. Thomas Andrewes, Esq., Sheriff of the county of Northampton unto the end of the same execution.

FIRST, the said Scottish Queen, being carried by two of Sir Amias Pawlett's gentlemen and the Sheriff going before her, came most willingly out of her chamber into an entry next the hall; at which place the Earl of Shrewsbury and the Earl of Kent, commissioners for the execution, with the two governors of her person and divers knights and gentlemen, did meet her; where they found one of the Scottish Queen's servants, named Melvyn, kneeling on his knees; who uttered these words with tears to the Queen of Scots, his mistress, "Madam, it will be the sorrowfullest message that ever I carried when I shall report that my Queen and dear mistress is dead." Then the Queen of Scots shedding tears, answered him, "You ought to rejoice and not to weep for that the end of Mary Stuart's troubles is now done. Thou knowest, Melvin, that all this world is but vanity and full of troubles and sorrows. Carry this message from me and tell my friends that I died a true woman to my religion, and like a true Scottish woman and a true French woman; but God forgive them that have long desired my end. And He that

is the true Judge of all secret thoughts knoweth my mind, how it hath ever been my desire to have Scotland and England united together. And commend me to my son, and tell him that I have not done any thing that may prejudice his kingdom of Scotland. And so, good Melvin, farewell." And kissing him she bade him pray for her.

Then she turned her unto the Lords and told them that she had certain requests to make unto them. One was for a sum of money (which she said Sir Amias Pawlett knew of) to be paid to one Curle, her servant. Next, that all her poor servants might enjoy that quietly which by her will and testament she had given unto them. And lastly, that they might be all well entreated and sent home safely and honestly into their own country. "And this I do conjure you, my Lords, to do." Answer was made by Sir Amias Pawlett. "I do well remember the money your grace speaketh of, and your grace needeth not to make any doubt of the not performance of your request, for I do surely think they shall be granted." "I have (said she) one other request to make unto you, my Lords, that you will suffer my poor servants to be present about me at my death, that they may report when they come into their countries how I died a true woman unto my religion." Then the Earl of Kent, one of the commissioners, answered, "Madam, that cannot well be granted, for that it is feared lest some of them would with speeches both trouble and grieve your grace and disquiet the company; of which already we have had some experience, or seek to wipe their napkins in some of your blood, which were not convenient."

"My Lord (said the Queen of Scots), I will give my word and promise for them that they shall not do any such thing as your Lordship hath named. Alas, poor souls, it would do them good to bid me farewell, and I hope your mistress, being a maiden Queen, in regard of womanhood will suffer me to have some of my own people about me at my death; and I know she hath not given you so straight a commission but that you may grant me more than this if I were a far meaner woman than I am." And then feigning to be greived, with some tears uttered these words: "You know that I am cousin to your Queen and descended from the blood of Henry the VIIth., a married Queen of France and the anointed Queen of Scotland." Whereupon after some consultation they granted that she might have some of her servants according to her grace's request, and therefore desired her to make choice of half a dozen of her men and women. Who presently said that of her men she

would have Melvin, her apothecary, her surgeon, and one other old man besides; and of her women those two that did use to lie in her chamber. After this she, being supported by Sir Amias's two gentlemen aforesaid and Melvin, carrying her train, and also accompanied with Lords, knights, and gentlemen aforesaid, the Sheriff going before her, she passed out of the entry into the hall with her countenance careless, importing thereby rather mirth than mournfull chere, and so she willingly stepped up to the scaffold which was prepared for her in the hall, being two foot high and twelve foot broad with rails round about, hanged and covered with black, with a low stool, long cushion and block, covered with black also. Then having the stool brought her, she sat down, by her, on her right hand the Earl of Shrewsbury and the Earl of Kent, and on the left hand stood the Sheriff, before her the two executioners; round about the rails stood knights, gentlemen, and others.

Then silence being made the Queen's Majestie's commission for the execution of the said Queen of Scots was opened by Mr. Beal, clerk of the council, and these words pronounced by the assembly, "God save the Queen," during the reading of which commission the Queen of Scots was silent, listening unto it with as small regard as if it had not concerned her at all; and with as cheerfull countenance as if it had been a pardon from her majesty for her life; using as much strangness in word and deed as if she had never known any of the assembly or had been ignorant of the English language.

Then Mr. Doctor Fletcher, Dean of Peterborough, standing directly before her without the rails, bending his body with great reverence, began to utter this exhortation following: "Madam, the Queen's most excellent Majesty," etc.; and uttering these words three or four times she told him, "Mr. Dean, I am settled in the ancient Catholic Roman religion, and mind to spend my blood in defence of it."

Then Mr. Dean sayd, "Madam, change your opinion and repent you of your former wickedness, and set your faith only in Jesus Christ, by Him to be saved."

Then she answered again, "Mr. Dean, trouble not yourself any more, for I am settled and resolved in this my religion, and am purposed herein to die."

Then the Earl of Shrewsbury and the Earl of Kent, perceiving her so obstinate, told her that since she would not hear the exhortation begun by Mr. Dean, "We will pray for your grace that if it standeth with God's will you may have your heart lightened even at the last hour with the true knowledge of God, and so die therein."

Then she answered, "If ye will pray for me, my Lords, I will thank you, but to join in prayer with you I will not, for that you and I are not of one religion."

Then the Lords called for Mr. Dean, who kneeling on the scaffold stairs began his prayer, "O most gracious God and merciful Father," etc., all the assembly, saving the Queen of Scots and her servants, saying after him: during the saying of which prayer the Queen of Scots, sitting upon a stool, having about her neck an Agnus Dei, in her hand a crucifix, at her girdle a pair of Beads with a golden Cross at the end of them, a Latin book in her hand, began with tears and loud voice to pray in Latin, and in the midst of her prayers she slid off from the stool and kneeling said divers Latin prayers. And after the end of Mr. Dean's prayer she kneeling prayed to this effect in English; for Christ, His afflicted Church, and for an end of their troubles, for her son and for the Queen's Majesty, that she might prosper and serve God aright. She confessed that she hoped to be saved by and in the blood of Christ, at the foot of whose crucifix she would shed her blood.

Then said the Earl of Kent, "Madam, settle Christ Jesus in your heart and leave those trumperies." Then she, little regarding or nothing at all his honor's good counsel, went forward with her prayers; desiring that God would avert His wrath from this Island, and that He would give her grace and forgiveness of her sins. These with other prayers she made in English, saying she forgave her enemies with all her heart that had long sought her blood, and desired God to convert them to the truth; and in the end of prayer she desired all Saints to make intercession for her to Jesus Christ, and so kissed the crucifix, and crossing of herself, said these words, "Even as Thy arms, O Jesus, were spread here upon the cross, so receive me into Thy arms of mercy and forgive me all my sins."

Her prayer ended, the executioners kneeling desired her grace to forgive them her death. Who answered, "I forgive you with all my heart, for now I

hope you shall make an end of all my troubles." Then they with her two women helping of her up, began to disrobe her of her apparell. Then she laying her Crucifix upon the stool, one of the executioners took from her neck the Agnus Dei, which she laying hands of it gave it to one of her women and told the executioners that they should be answered in money for it. Then she suffered them with her two women to disrobe her of her apparell, of her chain, of her pomander beads, and all other her apparell most willingly; and with joy rather than with sorrow helped to make unready herself, putting on a pair of sleeves with her own hands which they had pulled off, and that with some haste, as if she had longed to be gone.

All this while they were pulling off her apparell she never changed her countenance, but with smiling chere she uttered these words that she had never such grooms to make her unready, and she never put off her clothes before such a company.

Then she being stripped of all her apparell saving her petticoat and kirtell, her two women beholding her made great lamentation and crying and crossed themselves prayed in Latin. Then she turning herself to them embracing them, said these words in French, "Ne criez vous, j'ay promis pour vous;" and so crossing and kissing them, bade them pray for her, and rejoice and not mourn, for that now they should see an end of all their mistress's troubles.

Then she with a smiling countenance, turning to her men-servants, as Melvin and the rest standing upon a bench nigh the scaffold, who sometimes weeping, sometimes crying out, and loudly and continually crossing themselves, prayed in Latin, crossing them with her hand, bade them farewell, and wishing them to pray for her even until the last hour.

This done one of her women, having a Corpus Christi cloth lapt up the corner ways, kissing it, put it over the Queen of Scot's face and pinned it fast to the caul of her head. Then the two women departed from her, and she kneeling down upon a cushion most resolutely and without any token or fear of death, she spake aloud this Psalm in Latin, "In te Domine confido, non confundat in eternum," etc. Then groping for the block she laid down her head, putting her chin on the block with both her hands, which holding there still had been cut off had they been not espied. Then lying upon the

block most quietly, and stretched out her arms and legs, cried, "In manus tuas, Domine," etc., three or four times.

Then she lying very still on the block, one of the executioners holding of her slightly with one of his hands, she endured two strokes of the other executioner with an axe, she making very small noise or none at all, and not stirring any part of her from the place where she lay; and so the executioners cut off her head saving one little gristle, which being cut asunder he lifted up her head to the view of all the assembly and bade God save the Queen. Then her dressing of lawn falling off from her head it appeared as grey as one of threescore and ten years old, and polled very short, her face in a moment being so much altered from the form she had when she was alive as few could remember her by her dead face. Her lips stirred up and down almost a quarter of an hour after her head was cut off. Then Mr. Dean said with a loud voice, "So perish all the Queen's enemies," and afterwards the Earl of Kent came to the dead body, and standing over it with a loud voice said, "Such be the end of all the Queen's and the Gospel's enemies."

Then one of the executioners pulling off her garters espied her little dog, which was crept under her clothes, which could not be gotten forth but by force. It afterwards would not depart from the dead corpse, but came and laid between her head and her shoulders, which being imbrued with her blood was carried away and washed, as all things else were, that had any blood, was either burned or clean washed, and the executioners sent away with money for their fees; not having any one thing that belonged unto her. And so every man being commanded out of the hall except the Sheriff and his men she was carried by them up into a great chamber lying ready for the surgeons to embalm her.

---

## **FROM MS. ENDORSED "EXECUTIO REGINA SCOTORUM"**

The description of the Queen of Scots, both for her own as also for the manner of her apparrell as she came to suffer death the 8th of February



1586.

First, she was of stature high, big made and somewhat round shouldered, her face broad and fatt, double chinned and hazel eyed: her borrowed hair aborne, having on her head a dressing of lawn edged with bone lace, a pomander chain, an Agnus Dei about her neck, a crucifix in her hand, and a pair of Beads at her girdle with a golden Cross at the end of them, a veil of lawn fastened to her caul bowed out with wire and edged round about with bone lace, a gown of black satin printed with a train, and long sleeves to the ground set with acorn buttons of jet trimmed with pearl, and short sleeves of satin black cut with a pair of sleeves of purple velvet, whole under them a whole kyrtle of figured satin black, her petticoat upper body's unlaced in the back of crimson satin and her petticoat skirts of crimson velvet, her shoes Spanish leather with the rough side outward, a pair of green silk garters, her nether stocks of worsted coloured watchette clocked with silver and edged on the tops with silver, and next her legs a pair of Jersey hose white.

---

**FROM THE ASHMOLE MS. 830, F. 13, IN THE  
BODLEIAN LIBRARY, OXFORD**

The manner of the Scottish Queen's execution performed the  
8th of February 1586 in the great hall within the Castle  
of Fotheringham.

The said Scottish Queen being attended by the sheriffs and supported by two of Sir Amias Paulet's gentlemen, came out of her chamber down into an entry next to the hall about 10 of the clock, at which place the Earl of Shrewsbury, the Earl of Kent, commissioners for the execution, with the two governors of her person, and divers knights and gentlemen, justices of the peace within the County of Northampton, going out of the hall did meet her, where they found one of her servants named Melvin kneeling on his knees uttering these words, "Madam, it will be the sorrowfullest message that ever I carried when I shall report that my Queen and mistress is dead." Then the Queen of Scots weeping answered him, "You ought to rejoice

rather than weep, for that the end of all Marie Stuard's troubles is now come; thou knowest, Melvin, that all this world is but vanity and full of troubles, but carry thou this message unto my son, and tell my friends that I die a true woman to my religion, true Scottish and true French. God forgive them that have long desired my end, but God, the true Judge of all secret thoughts, knoweth my mind, how that ever it hath been my desire to have Scotland and England united together. But commend me to my son once again, and tell him that I have not done anything that can be prejudicial to his state, and say unto him from me that he trust not too much to practices and policies, for practices and policies will have an end. Farewell." And kissing him she bade him pray for her. Then she turned her face to the Lords, the commissioners, and told them she had certain requests to make unto them, one was for a sum of money to be paid to one Curle her servant; secondly, that all her poor servants might enjoy that quietly which by her will and testament she gave them; next, that they may be all well entreated and sent home safely and honestly into their countries. "And this as I crave so do I conjure you, my Lords, to do." Answer was made by Sir Amias Paulet. "Your grace need not to make any doubt of the not performance of your request, for I am sure they shall be well used." "I have," said the Queen of Scots, "another request to make unto you my Lords, which is that you would suffer my poor servants to be present about me at my death, that they may report when they come into their countries how I died a true woman to my religion." Then my Lord of Kent, one of the commissioners, answered, "Madam, it cannot well be granted, for that it is feared lest some of them would with speeches both trouble and grieve your grace and disquiet the company of which already we have some experience, or seek to wipe their napkins in some of your blood, which is not convenient." "My Lord," said the Queen of Scots, "I will give my word and promise for them that they shall not do any such thing as your lordships have named. Alas! poor souls, it will do them good to bid me farewell. I hope your mistress, being a maiden Queen, in regard of womanhood will suffer me to have some of my own people about me at my death, and I know she hath not given you so straight a commission but you might grant me more than this if I were far meaner than I am." And then seeming to be much grieved, with some tears, uttered these words: "You know that I am cousin to your Queen, and descended from the blood of Henry the 7th, and have been a married Queen of Scotland." Where upon some consultation they granted that she

might have some of her servants according to her request, and therefore they desired her to make choice of some 6 of women and men. Who presently said that of her men she would have Melvin, her apothecary and physician, and one other old man beside; and of her women, those two that did lie in her chamber. After this she being supported by the two gentlemen aforesaid, and accompanied with the lords, knights, and gentlemen above named, and the sheriffs going before her out of the entry into the great hall, her countenance careless, importing rather mirth than mourning, and so with silence she went up to the scaffold which was prepared for her in the hall, being two foot high and twelve foot broad, with rails round about hanged and covered with black cotton. Then having the stool brought her she sat her down, by her on the right hand on two stools the Earl of Shrewsbury and the Earl of Kent, her majestie's commissioners; on the left hand stood Mr. Thomas Andrewes, sheriff, and before her the two executioners; round about the rails stood the knights and gentlemen and the halberdiers, and without the rails directly before her stood Mr. Doctor Fletcher, Dean of Peterborough. Then silence being made the Queen's majesty's commission for the execution of the said Queen of Scots was openly read by Mr. Beale, clarke of the county, and after that these words pronounced by the assembly, *God save the Queen*. During the reading of which commission the said Queen of Scots used silence but listed unto it with small regard, as if it had not concerned her at all, and with a cheerful countenance using as much strangeness in word and deed as if she had never known any of the assembly or had been ignorant of the English language. Then Mr. Dean of Peterborough, bending his body with great reverence, began to utter his exhortation, beginning thus, "Madam, the Queen's most excellent majesty," etc., as it is before written; and uttering these words three or four times, she said, "Mr. Dean, Mr. Dean, trouble me not; I am settled and persuaded in the Catholick Roman faith and mind to spend my blood in defence of it." Then Mr. Dean said, "Madam, lay aside those unclean dregs of superstition which you have about you, and repent you of your sins and settle your faith only on Jesus Christ by him to be saved." Then she answered again and again, "I am settled and resolved in the Catholick Roman faith, and am purposed therein to die." Then the Earls of Shrewsbury and Kent, perceiving her so obstinate, told her that since she would not hear the exhortation began by Mr. Dean, we will pray for your grace that if it stand with God's will you may have your heart lightened

even at the last hour with the true knowledge of God. Then she answered: "If you pray for me, my Lords, I will thank you, but to join in prayer I will not, your prayers will do me no good, for that you and I am not of one religion." The Lords called for Mr. Dean, who, kneeling upon the scaffold staires, began this prayer:—

#### A PRAYER

All the assembly except the Queen of Scots and her servants saying after him, during the time of which prayer the Queen of Scots, sitting upon her stool, having about her necke an Agnus Dei, in her hand a Crucifix, at her girdle a pair of beads with a medal at the end of them, and a Latin primer in her hand, began with loud and fast voice to pray in Latin, and in the midst of her prayers she slided off her stool, and kneeling said divers Latin prayers, and after the end of Mr. Dean's prayer she kneeling prayed in English to this effect—for Christ's poor afflicted Church, and for an end of all their troubles, for her son that he might prosper and fear God, and for the Queen that she might prosper and serve God aright; she confessed that she hoped to be saved by the blood of Christ, at the foot of whose crucifix she would shed her blood. Then said my Lord of Kent, "Madam, settle Christ Jesus in your heart and leave these trumpery things." She prayed that God would avert his wrath from this Island, and that God would give her grief and forgiveness for all her sins. These with other prayers she made in English, saying she forgave her enemies with all her heart that had long sought her blood, and desired God to convert them to the truth, and in the end of her prayer she desired all the company of heaven to make intercession for her, and so kissing her crucifix and crossing herself said these words, "Even as the arms of Jesus are spread here upon the cross, so receive me unto thy mercy and forgive me all my sins." Her prayer being ended the two executioners, kneeling on their knees, desired her grace to forgive them, who answered, "I forgive you with all my heart, for now I hope you shall make an end of all my troubles." Then they, with her two women keeping her up, begin to disrobe her of her apparel. Then she letting fall her crucifix, one of the two hangmen took from her neck the Agnus Dei, which she, laying hand on, gave it to one of her women, and told one of the executioners that he should be answered money for it. Then she suffered her two women to disrobe her of her chain of pomander beads and all other her apparel most willingly, and with joy rather than with sorrow helping to

make unready herself, putting on a pair of sleeves with her own hands which they had pulled off, and that with some haste, as though she longed to be gone; all the time they were putting off her apparel she never changed her countenance, but with smiling cheer she uttered these words—That she never had such women to make her unready, and that she never put off her clothes before such a company. Then she being stripped of all her apparel saving her petticoat and kirtel, her two women began to cry and lament, then she turned her to them, and embracing them, said these words in French: "Ne cry point pour moi. Ja promys pour vous." And so crossing and kissing them both she told them that they had more cause to rejoice than to weep, for that now they should see an end of their mistress's troubles. Then she with a smiling countenance turning to her men-servants, as Melvin and the rest standing upon the bench near the scaffold, crossing them with her hand bade them farewell, and bade them pray for her until the last hour. This done she went alone to the block and kneeled down, then one of her women, having a corpus cloth lapped three-corner-wise, kissing it, put it over her face and pinned it fast to the caul of her head, and so kneeling upon the cushion most resolutely and without any token of the fear of death she spake aloud certain verses of the Psalms in Latin. "In te, Domine, confido, non confundes in eternum." Then groping for the block she laid down her head, putting her chin over the block with both her hands under it, which had been cut off had they not been preseen. Then lying upon the block and stretching out her body, she cried aloud, "In manus tuas Domine," etc., three or four times, then one of the executioners kneeling held her down by the middle and the other gave the stroke, missing her neck cut into the bone of the head behind, but she moved not, and at the second time he cut off her head save only one sinew, which, being sawed asunder with the axe, lifted up the head to the view of all the standers by and bid God save the Queen. And the Dean said, "And so perish all her enemies." Her head was grey as one of 70 years of age, polled very short, her face being so much altered immediately from the form she had when she was alive as few could remember for her dead face; she gasped after her head was cut off by the space of half a quarter of an hour, and after, the body lying there headless bleeding, my Lord of Kent standing by it said with a loud voice, "This be the end and reward of all that hate the gospel and her Majesty's government." Then one of the executioners putting off her stockings, her little, waiting dog was got under her clothes, which could not be gotten

forth but by force, which afterwards came and lay betwixt her head and her shoulders, which being imbrued with her blood was carried away and washed, and the executioners departed with money for their pains, and not having any one thing that belonged to her, either of her apparel or any other thing that was hers. And so the dead body and the head was carried by the Sheriff and his men into the great chamber, lying there ready for the chirurgeons to embalme her. Finis.

---

**FROM THE ASHMOLE MS. 830, F. 18, IN THE  
BODLEIAN LIBRARY, OXFORD**

The manner of the execution of Mary Queen of Scots, anno  
1586, the 8th of February, in the presence of such  
whose names be underwritten.

First, after she was brought down by the Sheriff to the place prepared in the hall for the purpose, by the command of us the Earls of Shrewsbury and Kent, her Majesty's commission was openly read, and then, according to a direction given before to Mr. Doctor Fletcher, Dean of Peterborough, he was willed to use some short and pithy speech which might tend to admonish her of the dreariness of her death and the only means of salvation in Christ Jesus. As soon as he began to speak she interrupted him, saying she was a Catholick, and that it was but a folly, being so resolutely determined as she was, to move her otherwise, and that our prayers would do her little good. Nevertheless a prayer was read by the said Dean, which was pronounced (*sic*) by all the assembly, That it would please God if it were His will to send her His Spirit and true repentance to bless her Majesty and confound her enemies. During which time of prayer she, being come down with many superstitions, crosses, and a pair (praier) of beads, prayed also aloud. When the Dean had done then she openly pronounced a prayer to this effect: To beseech God to send her His Holy Spirit, and that she trusted to receive her salvation in His blood, and of His grace to be received into His kingdom. She besought God to forgive her enemies as she forgave them, and to turn His wrath from this Island, to bless the Queen's Majesty

that she might serve Him, likewise to be merciful to her son, and to have compassion of His afflicted Church, and though she was not worthy to be heard, yet she had a confidence in His mercy, and prayed all the saints to pray unto her Saviour to receive her. After this, turning aside towards her servants, she desired them to pray for her that her Saviour would receive her. Then upon petition made by the executioners, she pardoned them, and said she was glad that the end of all her sorrows was so near, then she misliked the whining and weeping of her women, saying that they ought rather to thank God for her resoluteness, and so kissing them willed them to depart the scaffold, and again with a cross, with her hands towards her said servants, she bade them farewell, and so resolutely kneeled down, and having a kerchief bound over her eyes, laid down her neck, whereupon the executioners proceeded, she repeating these words, "In manus tuas Domine commendo spiritum meum," and certain other verses of the Psalms.

The names of them that were present at the execution:—

|              |           |             |
|--------------|-----------|-------------|
| Ea.          |           | R. Fletcher |
| Shrewsbury   | R. Beale  | D. Drurie   |
| Ea. Kent     | Th.       | Ed.         |
| Am. Paulett  | Andrewes  | Montague    |
| R. Knightley | Th.       | Th.         |
| R. Wingfeild | Montague  | Brudewell   |
|              | Jo.       | Ri. Forrest |
|              | Wingfild  |             |
|              | Jo. Crues |             |
|              | Finis.    |             |

---

## THE QUEEN OF SCOTS

### “WHAT IS TO BE ANSWERED”

1586 (Dec.)—To that which Cicero "Pro Deiotaro" sayd to Cæsar, est ita in usitatem Regem cap. reum esse ut ante hoc tempus non sit auditum.

Porsenna pardoned Q. Mutius that wold have slayn hym.

Remedia sanguinolenta sunt mitia ... calamitate.

Sanguis sanguinem procreat.

Quamquam somnus sit necessarius, medici tamen ... dare capava.

Nunquam auditum est, neque ratio potest comprehendere, Reginam Scotorum esse judiciabili.

For takyng away of the Scots Queen's liff cannot be a preservatyve to the Queen, but contrary, for the offence that hir frends will conceive, shall provoque them. The Queen of Scotts is so afflicted as she can lyve but few yers or dayes, and therfor not to be doutd (feared) but rather to be pitied ever.

The French Kyng promiseth that he will impeach with his power, that there shall be no such attemtat as ar pretended to have bene against the Queen's Majesty. He will gyve order that the Queen of Scotts' kynsfolk that ar in France shall bynd themselves, and shall sign uppon ther fayths, that the Queen of Scotts, nor any for hir, shall enterprise any thing against the Queen's Majesty.

If the Queen's Majesty will propound any other meanes which she shall judg more proper for her suerty and satisfaction and will shew the same to the Ambassadors, they will employ ther power therin.

Endorsed—"Reasons in the Lord Treasurer Burghley's owne hand concerning the Queen of Scots."

Burghley's holograph, 1 p.

Hist. MSS. Com., Hatfield House Papers, Part iii. p. 206.

---

**MEMORIAL FROM SECRETARY WALSINGHAM TOUCHING  
THE EXECUTION OF THE QUEEN OF SCOTS**



1586-87, Feb. 2.—Letters presently to be sent to E.L. (Earl of Leicester), with order to return speedy answer.

Sir Amias to be assured of the E(arl) of K(ent) repair to Fotheringhay at the day appointed before he send the particular letter to the Earl of Shrewsbury.

After the return of the Earl of Kent's answer, Burnell to be sent down unto Sir Amias with the commission and letters unto the two Earls. For the colouring of his going down he is to have a commission to be furnished with post-horses in Scotland.

(Noted in margin) The Earl of Kent may be ordered to advertise Sir Amias of the time of his coming by some trusted servant of his own.

The Earl of Shrewsbury to be warned by the particular letter immediately after Burnell's arrival.

To consider what speeches were fit for the two Earls to use at the time of the execution.

(Noted in margin by Burghley) To express her many attempts both for destruction of the Queen's person and the invasion of this realm; that the hope and comforts she hath given to the Prince Palatine, traitors of this realm, both abroad and here at home, are the very occasions of all the attempts that have been against Her Majesty's person, and so confessed, and yet so continue, so as sure by the laws of God and man she is justly condemned to die. The whole realm hath often time vehemently required that justice might be done, which Her Majesty cannot longer delay.

To set down a form of proceeding in the execution by way of advice.

The Lords that are to be made acquainted with this matter are to consult on these points.

To appoint only the Scottish Queen's chief officers and servant to assist at the execution, excluding the women.

To direct the Earls what to do in case she shall desire any private speech.

(Noted by Burghley) Not to refuse it, so it be to three or two at the least.

Some especial person to be appointed to note her speech.

Her servant(s) both (s) and (*sic*) for to be stayed for a time in this realm.

(Noted by Burghley) To remain also in the Castle until further order.

Sir Amias to be directed to the gates "strayte" after warning given to the Queen.

The Earl to be appointed how many of the servants shall attend at the time of the execution.

The body to be buried in the night in the parish church in such uppermost<sup>[205]</sup> place as by the two Earls shall be thought fit.

Whether not meet to be "barlmed" (embalmed).

To send down the "shryve" (sheriff) of Northampton if he be here.

The exec(utioner) to be sent down.

To take order that her jewels and plate may not be embezzled by her servants.

That Melvill and her principal women be acquainted therewith, and their seals to be put to the cases, etc.<sup>[206]</sup>

If the Sheriff by some great impediment cannot attend, to advise what then to be done.

The Lords at the court<sup>[207]</sup> to give out that there will be no execution.

(The sheet of paper has been torn through from end to end, but has since been repaired.)

Endorsed by Burghley—"2nd Feb. 1586. Memorial for the Scots Queen from Mr. Secretary Walsingham."

Hist. MSS. Com., Hatfield House Papers, Part iii. No. 471.

---

## THE PRIVY COUNCIL TO THE QUEEN

(1586-87) 12th Feb.—We, your born, bound, and sworn subjects, servants, and counsellors, attending in your court, for your service only, do most lowly, humbly, and sorrowfully pray and beseech your Majesty, that you will suspend your heavy sensure against us, until we may declare the intention of our late councils for the orderly removing of the danger of your life, and the manner of our proceedings therin.

And in the meantime, to the bottom of our hearts, we confess that we are most heartily sorry to hear that your Majesty is so deeply grieved in your mind, as thereby your health, the maintenance of your life, must needs be hindered, and the present government of your state being now environed with many difficulties, or rather dangers, for lack of your favourable audience to be given to us, must needs receive great detriment, and hardly to be recovered. And howsoever your Majesty doth make our actions to be the ground of your grief and offence towards us, wherof we are most sorry, yet we beseech your Majesty, in your great wisdom, though you will yet continue offended against us, yet cease to grieve yourself with thinking of that which never can be revoked, and let us hear your offence to our griefs, until it may please your Majesty either to hear us for our defence, or to change your mind, when you shall plainly see with the eyes of all your faithful subjects, that there was never any worldly act that could bring more surety to your own life, more strength to all your good subjects at home, and your friends abroad, nor, contrarywise, more grieve and discomfort your enemies, in seeing the anchor of their hold lost, and the foundation of all their intended machinations dissolved.

Thus, most gracious Lady, though we are most desirous to have your offence against us qualified, as we hope in God's goodness to obtain by means of the clearness of our consciences, yet we rather prefer with sobbing hearts our desire to have your grief of mind to cease, and to give yourself to your natural food and sleep, to maintain your health, without which we have no comfort to live or breathe.

Endorsed by Burghley—"A writing in the name of all the counsellors that sent Mr. Beale to the Earl of Shrewsbury."

Burghley's draft, 1½ pp.

Hist. MSS. Com., Hatfield House, vol. iii.

---

**THE CONFERENCE OR COMMYSSONE BETWEEN THE QUENE  
OF SCOTTES AND THE LORDES CONCERNINGE HER EXAMINACION**

F. 196, 1586....—In the morninge upon Frydaie, shee resolved to appeare, and so aboute 9 of the clocke came furthe into the presence chamber, which was prepared and hanged with clouthe of state in the upper parte and downe alonge bothe sides. There were formes covered with grene for the Earles and Lordes on the righte side, and for Barons on the lefte side. Somewhat below the middle of the chamber was a barre sette and within the barre a fourme for the Knightes of the Privie Counsell, and before there fourmes was a chair with a quishione and a foote carpett, for the Quene of Scottes, dyrectlie againste the seate belowe. In the middle of the chamber was a table, wherat sate the Quene's Attorney and Sollicitor, the Quene's Sergeaunte, the Clerkes of the Crowne, the two notaries directlie above the table. In the middeste of the chamber were two fourmes, wherupon sate, on the righte side, the Lord Chief Justice of England, the Lorde Chief Baron, Doctor Dalle, Doctor Forde. Over againste them sate the Lord Chief Justice of the Common Pleas, Justice Piream; belowe the barre sate suche gentlemen as came to see the action.

On the right  
side were  
these Lordes:

—

The Lord  
Chauncelor        }  
The Lord  
Treasourer        }  
Earle of  
Oxford             }

[On the left  
side.]

{ The Lord  
Aburgaveny  
{ The Lord  
Zouche  
{ The Lord  
Morley

|                      |   |                         |   |                            |
|----------------------|---|-------------------------|---|----------------------------|
| Earle of Shrewsburie | } |                         | { | The Lord Stafford          |
| Earle of Kente       | } |                         | { | The Lord Graye             |
| Earle of Derby       | } |                         | { | The Lord Sturton           |
| Earle of Worcester   | } |                         | { | The Lord Sandes            |
| Earle of Rutlaund    | } |                         | { | The Lord Wentworth,        |
| Earle of Cumberland  | } | Sir James Crofte        | { | The Lord Mordant,          |
| Earle of Warwicke    | } | Sir Walter Mildmaie     | { | The Lord St John of Bletso |
| Earle of Lincolne    | } | Sir Ralphe Sadler       | { | The Lord Compton           |
| Earle of Penbrooke   | } | Sir Frauncis Walsingham | { | The Lord Chenie            |
| Viscounte Montague   | } | Mr. Vice-chamberlaine   |   |                            |

Hist. MSS. Com., Lord Kenyon, 1894.

---

### NOTE TO [PAGE 49](#)

From *Mary Stewart: A Brief Statement*, Hosack, p. 33.

There is a note in Cecil's writing, written about the time of the York Conference (1568), which contrasts curiously with Bromley's words. Cecil says, "She is to be helped because she came willingly into the realm upon trust of the Queen's Majesty. She trusted upon the Queen's Majesty's help, because she had in her troubles *received many messages to that effect*."

---

## NOTE TO [PAGE 80](#)

"Att her risinge first upp, shee talked longe with the Lord Treasurer, cominge to him to his seate, after to Mr. Vice-Chamberlaine and to Mr. Secretarye, excusinge herselfe unto them, and like a serpente to winde herselfe unto them. She said unto the Earle of Warwicke that shee hard hee was an honourable gentleman, desiringe him not to beleve all thinges that hee hard of her, desiringe him to comende her to my Lord of Leycester, sayinge that shee wished him good successe in all his affaires."—Hist. MSS. Com., Lord Kenyon, 1894, pp. 621-626.

## INSCRIPTION ROUND THE [MINIATURE](#), AND LIST OF THE RELICS

|                | <i>Reverse</i>  |
|----------------|-----------------|
| Maria [...]    | Ex Ligno S      |
| Scotiæ Regina  | Crucis          |
| Martyrio       | S. Quirini S.   |
| affecta ao     | Victor          |
| 158[6] 20      | S. Bernardi     |
| Septembris in  | Abb.            |
| Anglia.        | —               |
| —              | B.P. Ignatii B. |
| S. Margaretæ   | Campiani M      |
| S. Barbaræ,    | S. Flori M B.   |
| V.M.           | Walpole         |
| S. Mar.....    | B.P. Xaverii B. |
| S. Catharin[æ  | Stanislai       |
| S]enens        | B. Aloysii B.   |
| S. Aldegundis, | Garneti         |
| V.             | —               |
| S. Margaretæ   | S. Car Boromei  |
| Scotiæ         | S. Vincentii M  |

|                |                   |
|----------------|-------------------|
| S. Co...enæ    | S. Jacobi Minor M |
| S. Scholasticæ | S. M... M         |
| V.M.           | S. Thomi          |
| B.M. Teresæ    | S. Iovini M       |
|                | S. Polycarpi M    |

---

THE END

---

*Printed by R. & R. CLARK, Edinburgh.*

---

## FOOTNOTES

[1] The late Rev. Charles Gordon (well known in Aberdeen as Priest Gordon, having been in charge of the Roman Catholic Congregation for sixty years), then a student in the College, assisted in concealing the picture.

[2] For list of relics contained in the reliquary see [Appendix](#), p. [272](#).

[3] Soon after these words were written my valued friend Father Stevenson was taken from us. He died on the evening of 8th February, the same day on which Queen Mary, whose honour he had done so much to maintain, suffered death, and I by a further coincidence finished the writing of this book.

[4] "Dedans une grande salle à laquelle on entroit immédiatement de l'autre chambre de sa Majesté par une porte simple ... ils avoient dressé et tendu, au bout d'icelle, le dais de la Reyne, et, des deux costez, au dessous, le long de la paroy, estoient assis les seigneurs et toute la noblesse sus nommée en la commission, estat et ordre que dessus; et au meilleu, quelques tables de long et les bancs où estoient assis les commissairs et la justice sus nommée, chacun en leur ordre. Et au dessous, avoient dressé une barrière laissant une partie qui se levoit pour entrer et sortir, faisant separation comme d'un parquet auquel n'entroit personne que ceulx qui avoient affaire pour la commission, et avoient charge en icelle. Et en l'autre separation, en bas, estoient gentilshommes et servans des dits seigneurs de la commission, auditeurs et spectateurs."—From Bourgoing's Journal, Chantelauze, p. 513.

[5] Fotheringay, 23rd November 1586. Labanoff, tom. vi. pp. 447-454. Among Mary's last requests to her brother-in-law, Henri III., there is a passage referring also to Bourgoing. It runs thus: "Further, I beseech him to take my physician into his service, and to give credit to what he shall say, and to pay regard to my recommendation of him."



- [6] Chantelauze, p. 467.
- [7] Sir Thomas Gorges.
- [8] Chantelauze, p. 469.
- [9] Chantelauze, p. 476.
- [10] Paulet to Walsingham, 27th August, Record Office.
- [11] Chantelauze, p. 479.
- [12] Probably the Mr. Bagot who is mentioned by Paulet.
- [13] See also the *Letter Books of Sir Amyas Paulet*, pp. 288-292.
- [14] Chantelauze, p. 490.
- [15] Miss Strickland says that the Queen's passage through Burton is recorded by a Latin inscription engraved on a window at Hill Hall Castle.
- [16] This conversation with Gorges is mentioned in Bourgoing's Journal alone. See Chantelauze, pp. 401, 402.
- [17] "Beat down the castle in a fit of revenge."—*Archæologia*, xv. 221; Gough's *Camden*, ii. 181.
- [18] It is a curious fact that the thistle is to be found growing near all the places in which Queen Mary resided or was imprisoned, both in England and Scotland.
- [19] Bourgoing's Journal; see Chantelauze, p. 493.
- [20] See *Letter Books of Sir Amyas Paulet*, p. 290; and Chantelauze, p. 495.
- [21] See *Letter Books of Sir Amyas Paulet*, p. 295.
- [22] The full list is given by Bourgoing; see Chantelauze, p. 496.
- [23] See R.O., Mary Queen of Scots, vol. xx. No. 6, dated 6th October.

[24] Made at the time of the Sheffield Conferences.

[25] A curious note in Beale's hand (Yelverton MSS. 31,465) gives us the reason for Burleigh's "vehemence" against Mary at this moment. It runs as follows: "The Bishop of Glasgow, the Scottish Q.'s Ambassador in France, had written unto her how W. Cecill, son and heir to Sir Tho. Cecill, had been at Rome and reconciled. That there was good hope that the L. Treasurer, his grandfather, would do her what pleasure he could. Item, in another letter he advertised her how Sir Edward Stafford (?), Her Maj.'s Ambassador in France, had shewed unto him a letter from the L. Treasurer, whereby he presumed that the said L. Trr. did favour her. These letters came to the Q. Mty.'s knowledge, and the matter came to the L. Trr.'s knowledge, which for the purgation of himself to be nothing inclined that way, made him, as it is thought, more earnest against her."

[26] Chantelauze, pp. 505-508.

[27] Chantelauze, pp. 508-511.

[28] Egerton, pp. 86, 87.

[29] Chantelauze, p. 512.

[30] *Ibid.*

[31] Chantelauze, p. 513.

[32] It is interesting to compare Queen Mary's words with those of M. de Sèze in his defence of Louis XVI., 26th December 1792: "Je cherche parmi vous des juges, et je n'y vois que des accusateurs."

[33] Chantelauze, p. 515.

[34] Chantelauze, pp. 515, 516.

[35] See [Appendix](#), p. [271](#).

[36] Chantelauze, p. 518.

[37] Chantelauze, p. 520.

[38] Chantelauze, pp. 522-527.

[39] Hosack, vol. ii. p. 426.

[40] Chantelauze, pp. 240, 241.

[41] See [Appendix](#), p. [271](#).

[42] Chantelauze, p. 539.

[43] Walsingham, writing upon the same subject to Leicester, says: "We have received a secret counter-order, and have found ourselves constrained to adjourn our assembly upon some pretext. This accused creature seems to have been chosen by God for the punishment of our sins, as it appears the Queen is powerless to act

against her as her safety demands."—See Hosack, vol. ii. p. 430; also *Letter Books of Sir Amyas Paulet*, p. 296.

[44] Chantelauze, pp. 539, 540.

[45] The Queen's words in the original French are too expressive to be omitted: "Sa Majesté dict que c'estoit manteau blanc, ou blanc manteau—mais qu'enfin estoit tout ung, quelque coulleur qu'ils luy en baillassent."—Chantelauze, pp. 540-545.

[46] *Letter Books of Sir Amyas Paulet*, pp. 300, 301.

[47] "Parlt. has pressed E. to proceed to the execution, adding thereto that the forbearing thereof was, and would be daily, a certain and undoubted danger not only to her own life but to themselves, their posterity and the public state of this realm, as well for the cause of the Gospel and the true religion of Christ, as for the peace of the whole realm. Greenwich, 1 Feb., 29 Eliz."—Yelverton MSS., f. 534.

[48] Hosack, pp. 430-433.

[49] Bourgoing omits to give the Dean's name.

[50] Chantelauze, pp. 548-550.

[51] Labanoff, vi. 466.

[52] Camden, ii.

[53] *Letter Books*, p. 311.

[54] See Labanoff, vi. 466. "When the So. Q.'s cloth of Estate was plucked down by Sir A. Paulet and Sir D. Drury, after signification given unto her to prepare herself to die by the L. Buckhurst and R.B., she mentioned the murder of K. Richard II., but Sir Drue answered that she needed not to fear it, for that she was in the charge of a Christian gentleman."—Note by Beale, Yelverton MSS., p. 529.

[55] A sad office was reserved for the cover of this table; it was afterwards used to enshroud the body of the Queen after her

execution, as we may see by the following passage from Brantôme: "Immediately after the execution, when the headsman had despoiled Mary's corpse, it was carried into a room adjoining that in which her maids of honour were confined; and they, looking through a crevice, saw the body of their mistress half covered by a piece of rough woollen stuff, which had been hastily taken from the billiard-table."

[56] *Letter Books*, p. 315.

[57] Chantelauze, pp. 293-295.

[58] Paulet to Mr. Secretary Davison, 28th November 1586. See *Letter Books*, p. 319.

[59] In consequence of the delays by which the members of Mary's household were kept in a state of quasi-imprisonment for months after their mistress's execution, these letters only reached their destination in the course of the following autumn.

[60] Labanoff, vi. 447.

[61] This passage, we believe, refers to Bourgoing, as before stated.

[62] Burleigh.

[63] Labanoff, vi. 456.

[64] The person referred to appears to have been Pierre Gorion, who took the letter to Mendoça, and presented him likewise with an interesting memoir of his mistress. See Teulet, vi. 500.

[65] Elizabeth Curle and Jane Kennedy.

[66] Labanoff, vol. vi. p. 461.

[67] The Duke of Lorraine.

[68] *Letter Books of Sir Amyas Paulet*, p. 320.

[69] *Letter Books*, p. 323.

[70] The steward appointed by Elizabeth to serve Queen Mary.

- [71] Paulet to Walsingham, *The Letter Books*, p. 325.
- [72] Paulet to Burleigh, *The Letter Books*, p. 328.
- [73] Bourgoing's Journal says that M. de Préau arrived on the 16th about four o'clock in the evening.
- [74] Chantelauze, p. 552.
- [75] See also letter, p. 338, *Letter Books*.
- [76] Labanoff, vi. 474.
- [77] Chantelauze, pp. 552-556.
- [78] *Letter Books*, p. 338.
- [79] Mary sent a ring to her cousin with this letter; Hosack, ii. 440.
- [80] Chantelauze, p. 578.
- [81] *États*, probably papers or accounts relating to her French estates.
- [82] Her son. Here occur a few lines which, through errors of the copyist, are very unintelligible. See Chantelauze, pp. 579-581.
- [83] Chantelauze, pp. 561-567.
- [84] See *Paulet's Letters*, p. 351.
- [85] This practice had probably been adopted by Mary from the French custom. M. de Chantelauze quotes the following from a court ceremonial of the reign of Louis XIV.: "La viande de sa Majeste sera porté en cette ordre, deux des gardes marcheront les premiers, ensuite l'huissier de Salle, *le maître d'hôtel avec son bâton*," etc.
- [86] Chantelauze, pp. 567-571.
- [87] *La Mort de la Royne d'Escosse*, Paris, 1588; *ap.* Jebb, ii. 620.
- [88] *La Mort de la Royne d'Escosse*, Paris, 1588; *ap.* Jebb, ii. 620.

[89] Teulet, v. 4.

[90] Brit. Mus. Harley MS., 290, No. 104.

[91] Hinder.

[92] *Letter Books*, p. 356.

[93] See [Appendix](#), p. [265](#)—"The Queen of Scots."

[94] Hosack, ii. 453. Chantelauze, pp. 368-371. Davison's defence. *Life of Davison*, by Sir Henry Nicolas, etc.

[95] Paulet's *Letter Books*, p. 359.

[96] Paulet's *Letter Books*, p. 361.

[97] "2 Feb. Davison sent word to R.B. (Robert Beale) at 11 o'clock at night to meet him at Walsin{m}'s house next morning.

"3 R.B. went, and Wm. shewed him the Com. signed, and that he had been appointed to carry it down. At a later time R.B. said unto Sir Ch. Hatton and Sec. Davison that he doubted not but that H.M. was resolved that the execution should be done, and the answer was that he needed not to doubt thereof, seeing the commission under her hand and the great seal of Eng., but that she would rather be therewith well pleased."—Yelverton MSS., f. 224—Report by Mr. Henry Talbot, third son of Earl of Shrewsbury.

[98] "Davison and R.B. on their arrival had a meeting with these,—the Treasurer, E. of Derby, E. of Leicester, Lds. Cobham, Hunsden, Chamberlain, Vice-chamberlain, and Wolley."—Yelverton MSS., f. 224—Talbot's Report.

[99] No officer of the Chancery knew of the sealing of the commission save the Chancellor and Davison.—Yelverton MSS., f. 224.

[100] See Chantelauze, pp. 371-379.

[101] "To divert attention from R.B. leaving London, a commission was given to him to go into Herts, Bedf., etc., to hear hues and

cries."—Yelverton MSS., f. 224.

[102] Report sent up by Mr. Henry Talbot, third son of Earl of Shrewsbury. Yelverton MSS., f. 31.

[103] Yelverton MSS. 31, f. 529. See Queen Mary's words at [chap. viii](#), p. [159](#).

[104] MSS. folio 525, Yelverton; Lord Calthorpe. Note in Beale's hand.

[105] MSS. folio 533. Lord Walsingham to Paulet by Digby, 3rd February.

[106] Beale's note continues thus: "Wherefore the speech delivered to the Sc. Queen the day before her death was, that the Earls had a message to deliver unto her from H. Mty., which she should understand by the commission under H. Mty's. hand and great seal openly shewed and read. And for that purpose the commission was also openly read upon the scaffold, and divers gentlemen's hands taken unto a declaration of the manner of her execution, the original wherof remaineth with the E. of Shrewsbury."

[107] Walsingham wrote to Paulet to this effect: "This will be brought by Beale along with the commission for the execution of your charge. R.B. cannot well arrive before Monday at 10 A.M. It is thought well that the two Earls should in some place meet unto you and have some conference touching the form of the excn. You may do well to think of some convenient place for the purpose. I send you a letter to the sheriff from my lords unsealed, to the end you may see what colour is used for his employment."

Walsingham's Memorial, see [Appendix](#), p. [266](#).

[108] *La Mort de la Royne*, ap. Jebb, ii. 612.

[109] According to M. Kervyn de Lettenhove (*Marie Stuart*, ii. 329) Shrewsbury expressed himself with more sympathy, and with a return of his former friendliness for the Queen. "Madame," said he, "I would have greatly desired that another than I should announce to



you such sad intelligence as that which I now bring on the part of the Queen of England, but he and I being both faithful servants, I could but obey the commandment she gave me. It is to admonish you to prepare yourself to undergo the sentence of death pronounced against you."

[110] Chantelauze, p. 572; *La Mort*, p. 613, where the document is given at length.

[111] "She seemed not to be in any Terror, for ought that appered by any of hir outward Gesture or Behaviour (other than marvelling shee should die), but rather with smiling Cheer and pleasing Countenance digested and accepted the sayde Admonition of Preparation to hir (as she sayde) unexpected Execution: saying that hir Death should be welcome unto hir, seeing hir Majestie was so resolved, and that that Soule were too too far unworthye the Fruition of the Joyes of Heaven for ever, whose Bodye would not in this World be content to endure the Stroake of the Executioner for a Moment. And that spoken, shee wept bitterlye and became silent."—"Execution of Mary Queen of Scots," R. Wingfield, *Clarendon Hist. Soc.*

[112] M. Chantelauze, p. 387.

[113] Chantelauze, p. 573.

[114] *La Mort de la Royne*, p. 621; Chantelauze, p. 575.

[115] Miss Strickland, vii. 469; see Kervyn de Lettenhove, ii. 333.

[116] Jebb, *ibid.*; Chantelauze, p. 575.

[117] See Chantelauze, pp. 390, 391; *La Mort*, p. 625.

[118] *La Mort de la Royne d'Escosse*, Jebb, ii. 625.

[119] *La Mort de la Royne d'Escosse*, Jebb, ii. 625.

[120] Chantelauze, p. 393.

[121] Some of the facts of Bourgoing's narrative of the last days were communicated by him to the anonymous author of the *Mort de la Royne d'Escosse*, and to Blackwood. See Jebb, ii.

[122] Chantelauze, p. 394.

[123] *La Mort de la Royne d'Escosse*, Jebb, ii. 625; Blackwood, Jebb, ii. p. 302.

[124] "Elle annonça l'intention de descendre dans sa garde-robe pour leur en faire le partage; mais Bourgoing lui representa qu'elle recontrerait les gardes, placés aux pied de l'escalier."—K. de Lettenhove, ii. 338.

[125] Among these last gifts Bourgoing received "two rings, two small silver boxes, the Queen's two Lutes, her music-book bound in velvet, and the red hangings of her bed." While among those given to Elizabeth Curle we find mentioned a gold and enamelled tablet containing portraits of the Queen, her husband (Francis II.), and her son. This portrait, it seems probable, was the original of the picture of Mary afterwards placed in the Church of St. Andrew in Antwerp.

[126] The original French in Labanoff, vi. 483; and in Blackwood, *ap.* Jebb, ii. 303.

[127] Melville.

[128] This will was preserved for long at the Scotch College in Paris. It bore the traces of the tears shed by the Queen as she wrote it.—Strickland, vii. 482; see also Blackwood, p. 304.

[129] Labanoff, vi. 492.

[130] The copies of this letter here differ, some reading seven, some eight o'clock.

[131] Chantelauze, p. 399.

[132] The details respecting the last hours of the life of Queen Mary are derived chiefly from two original narratives, both of which are printed in the second volume of Jebb. They are the following: (1)

Blackwood, Adam, *Martyre de Marie Stuart*, Paris, 1644, Jebb, p. 175; (2) *La Mort de la Royne d'Escosse*, 1589, *ibid.* p. 611. The information which they contain has been carefully used by Hosack, Chantelauze, Bourgoing, and Kervyn de Lettenhove, thereby rendering unnecessary further references to the several authorities given by Jebb.

[133] She "charged him as he would answer before God, to deliver her speeches and messages to her son in such sort as she did speak them, all which tended to will him to govern wisely in the fear of God, to take heed to whom he betook his chiefest trust, and not to be an occasion to be evil thought of by the Queen of England, her good sister."—MSS. Cal. B. v. f. 175 b.

[134] "'Ah, madame, unhappy me, what man on Earth was ever before the Messenger of so important Sorrow and Heaviness as I shall be, when I shall Reporte that my good and gracious Queen and Mistress is behedded in England?' This sayde, Tears prevented him of any further speaking; whereupon the sayde Queen, powring forth hir dying Tears, thus answered him," etc. etc.—"Account of the Execution by Robert Wyngfield" (Clarendon Hist. Soc.)

[135] "But commend me to my son once again, and tell him that I have not done anything that can be prejudicial to his state, and say unto him from me that he trust not too much to practices and policies, for practices and policies will have an end."—See Ashmole MSS., [Appendix](#), p. [258](#).

[136] "The true report of the death of that rare and princely martyr Mary Stuardo," etc.—*Mary Queen of Scots*, vol. xxi. No. 14. "Being come into the hall, she stayed, and with a smiling countenance asked Shrewsbury why none of her own servants were suffered to be present at her death. He answered that the Queen his mistress had so commanded.

"And that all her poor servants might enjoy that quietly which by her will and testament she had given them. And lastly, that they might be well entreated and sent home safely and honestly into their

own country. And to this I do conjure you my lords to do."—See Tanner MSS., [Appendix](#), p. [250](#).

[\[137\]](#) Account of Mary's execution in a letter to Burleigh-Ellis, 2nd series, p. 258.

[\[138\]](#) "The above named were sent for, who were, together with the others, in prayer, and at their arrival thought she was dead, but being descended into the hall, found that they were only commencing to read her sentence.

"Who coming into the hall and seeing the place of execution prepared and their sovereign mistress expecting death, they began to cry out in most woful and pitiful sort. Wherewith she held up her hands, willing them for her sake to forbear and be silent. 'For,' quoth she, 'I have passed my word to these lords that you shall be quiet and not offend them.' And presently there appeared in them a wonderful show of subjection and loyal obedience, as to their natural prince, whom even at the instant of death they honoured with all reverence and duty. For though their breasts were seen to rise and swell as if their wounded hearts would burst in sunder, yet did they (to their double grief) forbear outward complaints to accomplish her pleasure."—Contemporary MSS.

[\[139\]](#) Contemporary MSS., f. 175 b.

[\[140\]](#) Chantelauze, p. 578.

[\[141\]](#) These details regarding the scaffold are taken chiefly from the valuable drawing of the execution found among Beale's papers.—Yelverton MSS.

[\[142\]](#) "From the moment of her arrival in the hall until she received the blow of the axe, no change was perceptible in her countenance, but, on the contrary, overcoming her suffering by her natural fortitude, her speech was always assured, and her mode of action was exceeding tranquil."—MSS. Report of Execution (Teulet, iv. 153).

[143] In order probably to divert the attention of the crowd, and perhaps as an insult to the Queen, the musicians placed in the courtyard played as she entered the hall a mournful dirge, an air commonly played at the execution of witches. The MSS. of this music was discovered some years ago at Oxford, and is now published.

[144] "During the reading of which commission the Queen of Scots was silent, listening unto it with as small regard as if it had not concerned her at all, and with as cheerfull countenance as if it had been a pardon from Her Majesty for her life, using as much strangeness in word and deed as if she had never known any of the assembly, or had been ignorant of the English language."—See Tanner MSS., [Appendix](#), p. [252](#).

[145] Conn says that at the conclusion of the reading the Queen, looking at her crucifix, was heard to say, "Judica me, Deus, et discerne causam meam."

[146] Chantelauze, p. 411. This speech was communicated by Bourgoing to the anonymous author of *La Mort de la Royne d'Escosse*, Jebb, ii.

[147] "Mr. Dean, Mr. Dean, trouble me not; I am settled and persuaded in the Catholick Roman faith, and mind to spend my blood in defence of it."—See Ashmole MSS., [Appendix](#), p. [260](#).

[148] Brantôme.

[149] "She slided off her stool, and kneeling, said divers Latin prayers."—See Tanner MSS., [Appendix](#), p. [253](#).

[150] "Whenever she wished to express any vehement passion of her soul in these prayers, every one wept and wailed, seeing her strike her breast with her crucifix of ivory, and this she did very frequently."—Contemporary MSS., Report of Execution.

[151] Teulet, iv. 153.

[152] "She prayed that the Queen's Majesty might long reign peaceably, might prosper and serve God, ... and that the God of heaven would of His goodness avert His plagues from this silly island; ... that He would receive her soul into His heavenly hand."—Contemporary MSS., f. 175 b.

[153] See Tanner MSS., [Appendix](#), 253.

[154] "Her meditations ended, she arose and kissed her two gentlewomen, and bowed her body towards her men, and charged them to commend her to her sweet son, to whom she sent her blessing, with promise to pray for him in heaven, and lastly to salute her friends wheresoever."—Contemporary MSS.

[155] "She laying her crucifix upon the stool, one of the executioners took from her neck the Agnus Dei, which she, laying hands of it, gave it to one of her women, and told the executioners that they should be answered in money for it."—See Tanner MSS., [Appendix](#), p. 254.

[156] "Then came one Bulle, the hangman of London."—Contemporary MSS.

[157] Ashmole MSS. 830, f. 13: "Ne cry point pour moi; ja promys pour vous."

[158] Chantelauze, p. 416.

[159] "And with joy rather than with sorrow helped to make unready herself, putting on a pair of sleeves with her own hands which they had pulled off, and that with some haste, as if she had longed to be gone."—See Ashmole MSS., [Appendix](#), p. 261.

[160] "The executioners had prepared cords to bind her, but she put them aside."—*Vera relazione*, Milan, 1587.

[161] "Then being ready to the block ... Mr. Doctor willed her to die in the true faith of Christ. Quoth she, 'I believe firmly to be saved by the Passion and Blood of Jesus Christ, and therein also I believe according to the faith of the ancient Catholic Church of Rome, and

therefor I shed my blood."—Contemporary MSS.; see also *Marie Stuart*, by Kervyn de Lettenhove, ii. 377.

[162] "After the which stroke she spoke these words, 'Lord Jesus, receive my soul.'"—Contemporary MSS.

[163] "La plus part la tenoient innocente et, si l'exécution eust été publique, il y eust eu rumeur bien grande, et elle eust été secourue et délivrée."—*Les derniers propos de la Royne d'Escosse*.

[164] "And after, the body lying there headless, bleeding, my Lord Kent, standing by it, said with a loud voice, 'This be the end and reward of all that hate the Gospel and Her Majesty's Government.'"—See Ashmole MSS., [Appendix](#), p. 263.

[165] Teulet MSS.; Ashmole MSS., *ibid*.

[166] "And embalmed and sered and rested to the burial."—Contemporary MSS., f. 175 b.

[167] "It is said that one of Mary's attendants, Amyas Cawood, painted the head of the dead Queen, and the picture now at Abbotsford, dated 8th Feb. 1588, and signed by Cawood, confirms this tradition."

[168] Jebb, ii. pp. 306, 489, 640.

[169] Teulet MSS.

[170] *Ibid.*; Tanner MSS., [Appendix](#), p. 256.

[171] Funeral oration by R.P., 1587.

[172] "Il jura sur la Bible de ne faire aucune office de religion craignant d'estre resserré en prison."—Jebb, ii. 649-656.

[173] Labanoff, vii. 346.

[174] Yelverton MSS. 31.

[175] *Marie Stuart*, Baron Kervyn de Lettenhove, ii. 406.

[176] See [Appendix](#), p. [269](#), "Privy Council to the Queen."

[177] Yelverton MSS. 31.

[178] On 24th October Mendonça announces their arrival in France.

[179] "The Bishop of Peterborough, the Deane, the Prebendes, and the rest meeting the same at the Bridge, being not far from the town."—From *The Scottish Queen's Buriall at Peterborough*.

[180] "There was at that time not any offices of the Church Service done, the bishop being ready to have executed therein; but it was by all that were present, as well Scotch as others, thought good and agreed that it should be done at the day and time of solemnity."—"Manner of the Solemnity," etc., from Gunton's *Hist. of Peterborough*, Lond. 1686.

[181] "There is a memorial entred on the wall of the cathedral of Peterborough for *one* who, being *sexton* therof, interred *two* Queens therein (Katherine Dowager and Mary of Scotland), more than *fifty* years intervening betwixt the several sepultures."—Fuller's *Worthies*, ii. 174.

[182] "Upon Monday in the afternoon came to Peterborough all the lords and ladies, ... and at the Bishop's Palace was prepared a great supper for them."

[183] "A Remembrance of the Order and Manner of," etc., *Archæologia*, i. 155.

[184] "The Solemnity of the Funeral," etc., drawn up by Sir William Dethick, Garter king of arms.

[185] "Les Hérauts à quelque temps de là et après le sermon fait par l'Evesque de Lincolne, les fut initer dans le cloistre où ils estoient, de venir à l'offrande, ce qu'ils refuserent de faire, disans qu'ils n'offraient point à un autel qu'ils n'approuvient pas."—*Martyre de Marie Stuart*, Blackwood.

[186] From the *Bibliotheca Topographica Britannica*, Article No. XL. "Hist. of Ant. Fotheringay," p. 75.



[187] All other accounts agree in calling these "poore women," "poore old women, for the most part widowes."

[188] Du Préau, Mary's French chaplain. "Monsieur du Préau aumosnier, en long manteau, portant une croix d'argent en main."—From "Ordre du Convoy," etc.

[189] Dingley?

[190] She was an Erle's daughter.

[191] It is curious that Paulet does not appear in any list of those present at the funeral.

[192] *Archæologia*, i. 355; Miss Strickland, vii.

[193] "The royal ensigns of an helmet, sword, and scutcheon remained to the year 1643 hanging high over the place of burial."—"Manner of the Solemnity," etc., from Gunton's *Hist. of Peterborough*.

[194] "A Remembrance," etc., *Archæologia*, p. 155.

[195] Jebb, ii. 203.

[196] *Martyre de Marie Stuart*, Collected Works of Adam Blackwood, Paris, 1644, p. 703.

[197] *Martyre de Marie Stuart*, Collected Works of Adam Blackwood, Paris, 1644, p. 703.

[198] Teulet, iv. 204 (Chateauneuf's words).

[199] *Ibid.*, v. 500.

[200] Harl. MSS., 293, p. 211.

[201] *History of Fotheringay*. By some confusion of dates the year 1587 is here given instead of 1603.

[202] *Antiquities of Fotheringay*, p. 59. Noble's *Hist. of the College of Arms*, p. 200.

[203] The same as sent nine years before. Oh, royal economy!

[204] Chantelauze, p. 433.

[205] This word interlined in Burghley's hand.

[206] The words are interlined by Burghley.

[207] *Ibid.*

\*\*\* END OF THE PROJECT GUTENBERG EBOOK THE TRAGEDY  
OF FOTHERINGAY \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to



you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

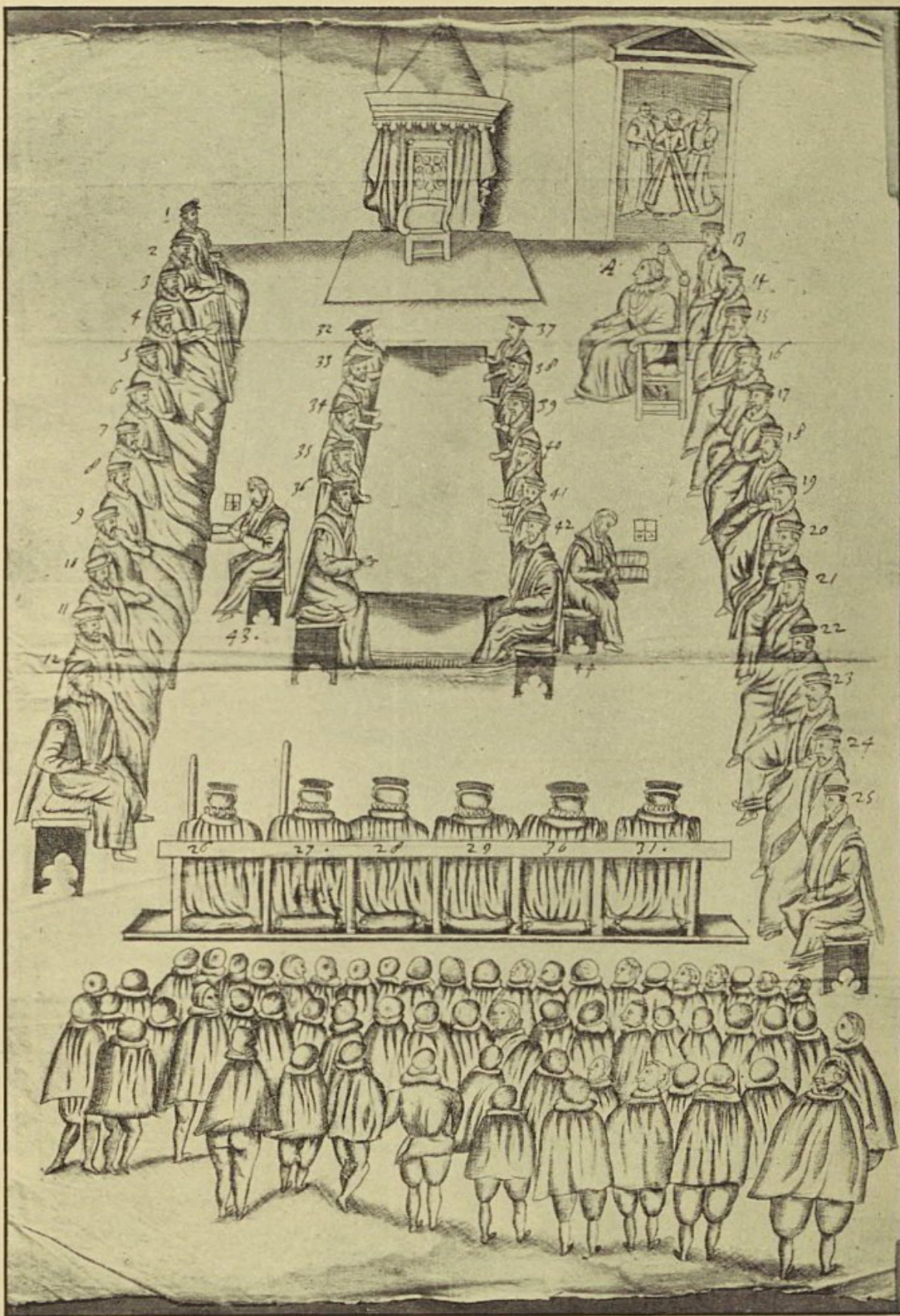
This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



*Mary Queen of Scots,  
 from the Memorial Portrait  
 in the possession of the Trustees of Blair's College, Aberdeen.*

[back](#)





[back](#)



A. The Soliss Current.

1. Bromley. L. Chancelor
- 2 L. Thier.
3. El of oxide
- 4 El of Brombury
- 5 El of Iron
- 6 El of Derby
- 7 El of Worcester
- 8 El of R. Mandy
- 9 El of <sup>Wideland</sup> ~~London~~
- 10 El of biarsly ~~London~~
- 11 El of birch.
- 12 virtual ~~London~~
13. L. Abingdon
14. L. Eorger.
15. L. Morley
16. L. Stafford
17. L. Gray Nether.
18. L. Lark
19. L. Dunton.
20. L. Sandy
21. L. Wom. ruff
22. L. Mor. dard
23. L. John of Blith
24. L. Lough.
25. L. Lobery.

~~25. L. Chaffin~~

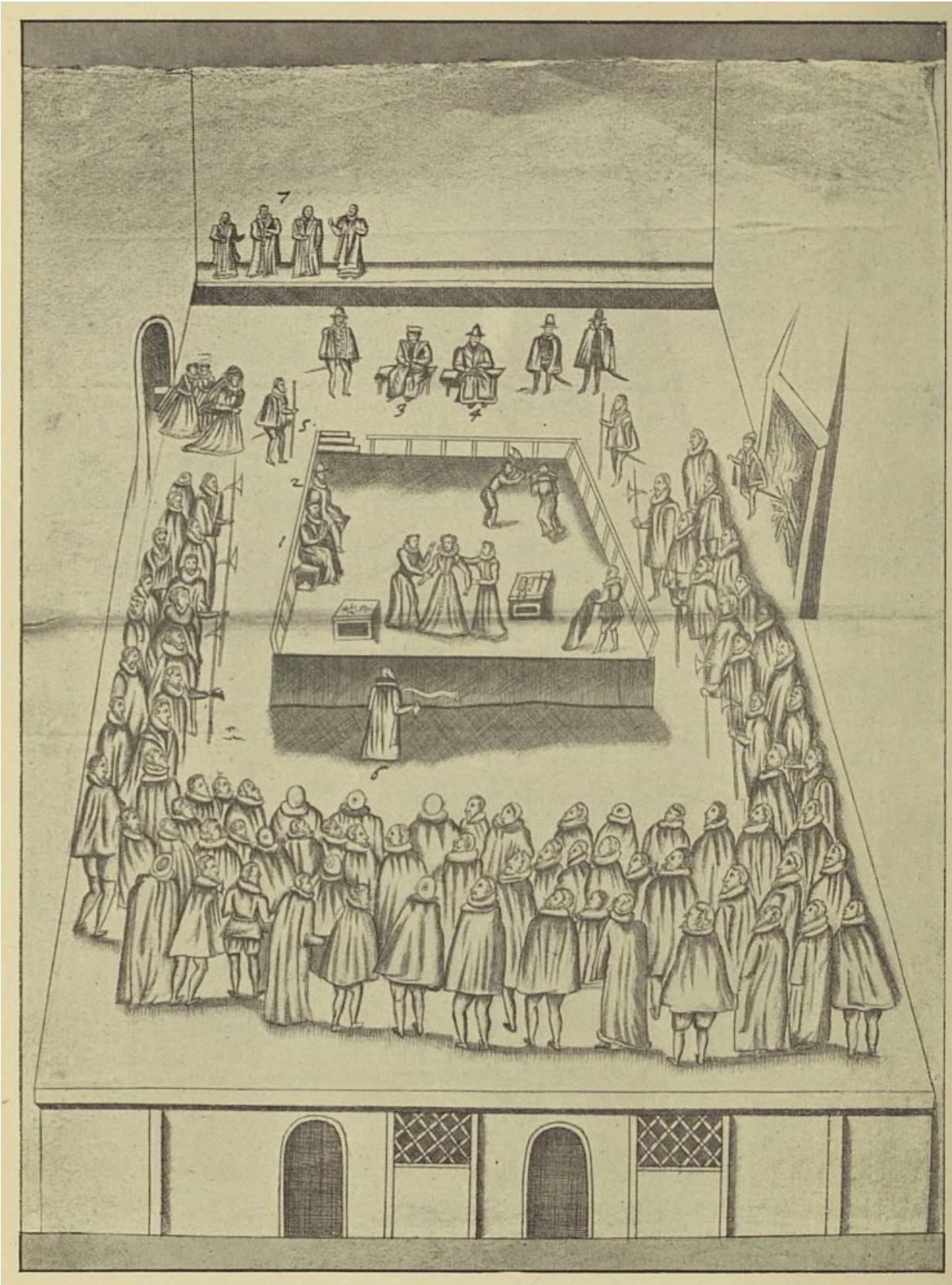
26. ~~James~~ 26. James Goff Capelle.
27. 5 Christ. John in ~~London~~
28. February ~~London~~
29. 3 Ruff. Cadore.
30. 3 Ruff. Whitton.
31. 3 Amys. Carter

32. L. G. of Juffin. Wry.
33. M. Juffin. L. G. of Bury.
34. M. Juffin. Bury.
35. M. D. Fother.
36. M. Juffin. Bury.
37. L. G. of Juffin. Wry.
38. M. Juffin. Bury.
39. M. D. D. L.
40. M. Juffin. Bury.
41. M. Juffin. Bury.
42. M. Juffin. Bury.

43. M. Bury.
44. M. Bury.

[back](#)





[back](#)

1. El of 5 bronferry
2. El of Kent
3. 5 Arms Conell.
4. 5 Den Denny.
5. Thomas Andrews Esquire the Sheriff  
of the County of Northampton.
6. D. Fletcher Esq of Peterborough.
7. Four of 5 Lord's Enemies servants -

[back](#)





Walker & Boutall, Photo

*Execution of Mary Queen of Scots,  
from the background of the Blair Portrait. (enlarged.)*

[back](#)



Walker & Gossall Ph. 55

*Medallions containing  
Miniature of Mary Queen of Scots  
and Relics  
now in the possession of Lady Milford.*

[back](#)